

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO DEFENDANTS'
DEMURRER**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pin cite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pin cite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pin cite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pin cite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pin cite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pin cite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup ("since 2021")**
 - **Proof artifact:** Jessup testifies "since 2021"
 - **Pin cite / Source:** Hr'g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** ADMISSION OF RECEIPT
 - **Pin cite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Demurrer Must Be Overruled

Defendants challenge the sufficiency of pleading while the certified record proves the fraud. By opening with this Preamble, Plaintiff forces the analysis back to the record facts: defense counsel used their status as officers of the court to mislead the judge into gutting Plaintiff’s case. No

1 amount of “litigation privilege” rhetoric can sanitize the procurement of structural rulings through
2 known false representations of fact. The Demurrer must be overruled.

3 **§I.F — Posture Note: The Demurrer Targets a Pleading Plaintiff Has Moved to Supersede**
4 Concurrently calendared for the same May 12, 2026 hearing is Plaintiff’s Motion for Leave to File
5 a Second Amended Complaint (SAC). (See SAC-01 Notice of Motion; SAC-02 Memorandum ISO
6 Leave.) The SAC is already drafted, verified, and tendered as SAC-06. If the Court grants leave,
7 the FAC is superseded and the Demurrer is moot as to the superseded pleading. (Patrick v. Alacer
8 Corp. (2008) 167 Cal.App.4th 995, 1015; CCP §§ 472, 576.) If the Court reaches the Demurrer,
9 the same SAC is the specific, tendered cure to any deficiency the Court identifies, satisfying the
10 reasonable-possibility standard. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Coffman v. Produce
11 Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135.) Plaintiff does not ask the Court to
12 ignore the Demurrer; Plaintiff asks the Court to evaluate it against the tendered, cognizable SAC
13 rather than against a hypothetical future amendment.

14 15 **II. STATEMENT OF FACTS**

16 The First Amended Complaint (“FAC”) is an independent equitable action to set aside the under-
17 lying judgment where that judgment was procured or affected by extrinsic fraud and/or extrinsic
18 mistake operating outside the courtroom in a manner that deprived Plaintiff of a fair adversary
19 hearing.

20 The FAC alleges a two-phase pattern:

21 **Phase One (Out-of-Court):** Communications that led Plaintiff to believe authentication of 911
22 audio and CAD records was uncontested, resolved, or not urgent.

23 **Phase Two (Court-Facing):** A shift to representations about non-receipt, unknown provenance,
24 or exclusion after windows to subpoena, authenticate, or sequence evidence had narrowed.

25 Critically, Defendants themselves acknowledge this factual architecture in their own Demurrer
26 MPA:

27 “On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense
28 file to PSA pursuant to the Substitution of Attorney . . . **without ensuring proper doc-**

umentation and conveyance of the production history to successor counsel.” (Demurrer MPA, p.6, ll.15-18)

By conceding the factual architecture while arguing only for immunity, Defendants isolate their entire defense onto legal arguments that fail once properly analyzed.

III. STANDARD OF REVIEW: DEFENDANTS IMPORT MERITS STANDARDS INTO DEMURRER ANALYSIS

A. The Demurrer Standard

Defendants correctly state the applicable standard:¹

“When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication.” (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833; Demurrer MPA, p.8, ll.1-3)

“However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591; Demurrer MPA, p.8, ll.3-4)

B. Defendants Immediately Violate the Standard They Recite

Immediately after stating the correct standard, Defendants systematically violate it by inserting merits-based, conclusion-first assertions. These assertions ask the Court to make factual and merits determinations that belong at summary judgment or trial, not at the pleading stage.

Defendants’ Violation 1: “The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative theory that the entire defense team lied to this Court...” (Demurrer MPA, p.1, ll.19-21)

Why This Violates Serrano: The Court cannot determine at the pleading stage whether Plaintiff’s theory is “erroneous and speculative.” Whether the defense team made false representations is a fact question. On demurrer, the Court must accept Plaintiff’s well-pleaded allegations of misrep-

¹ Defendants’ demurrer characterizes Plaintiff’s trial-record objections as “too little, too late.” The transcript establishes the opposite: Plaintiff preserved the suppression theme on **four separate pre-trial dates** (Jan. 27, Jan. 28, Feb. 3, Feb. 18, 2025), and each procedural vehicle was denied. The chronology is catalogued at **Judicial Admission Matrix rows 1–5** (see Judicial Admission Matrix, lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) and supported by the hearing transcripts in Plaintiff’s RFJN.

1 resentation as true.

2 **Defendants’ Violation 2:** “Here, there was no fraud (extrinsic or otherwise). . .” (Demurrer MPA,
3 p.11, ll.15-16)

4 **Why This Violates Serrano:** Whether fraud occurred is the ultimate merits question. Defendants
5 are asking the Court to resolve the case at the pleading stage by accepting Defendants’ factual
6 conclusion over Plaintiff’s factual allegations.

7 **Defendants’ Violation 3:** “This is not a cognizable claim.” (Anti-SLAPP MPA, p.4, ll.17-18,
8 incorporated by reference)

9 **Why This Violates Serrano:** Whether a claim is “cognizable” requires analysis of the elements
10 pleaded against the applicable legal standard, accepting facts as true. Defendants’ conclusory
11 assertion is not legal argument.

12 **C. The Court Should Strike Defendants’ Merits Arguments**

13 Defendants import Anti-SLAPP step-two probability rhetoric, privilege tropes, and MSJ eviden-
14 tiary standards into their demurrer analysis. This “Standard Bleed” is impermissible. A demurrer
15 strictly tests the “four corners” of the complaint under Code of Civil Procedure sections 430.10
16 and 430.50.

17 **Attached hereto as Appendix A** is an inventory of conclusory assertions in Defendants’ Demurrer
18 that violate Serrano. The Court should disregard each one.

20 **IV. THE JURISDICTIONAL MASQUERADE: AN INDEPENDENT EQ- 21 UITABLE ACTION IS NOT AN APPEAL**

22 **A. Defendants’ Argument**

23 Defendants argue:

24 “This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry
25 of judgment. Plaintiff’s entire FAC in reality is an unlawful and improper appeal at the
26 Superior Court level, masquerading as a new lawsuit.” (Demurrer MPA, p.9, ll.6-11)

27 Defendants cite Code of Civil Procedure section 904.1(a) and *Rochin v. Pat Johnson Manufactur-*
28 *ing Co.* (1998) 67 Cal.App.4th 1228, 1237.

1 **B. Defendants Commit a Category Error**

2 Defendants conflate the rules governing a direct appeal of a negligence verdict with the completely
3 separate, historically recognized jurisdiction of a trial court to hear an independent equitable action
4 for extrinsic fraud.

5 **First:** Section 904.1 and Rochin govern the mechanics of direct appeal and post-judgment trial
6 court power. They do not erase the centuries-old power of a court of equity to vacate a judgment
7 procured by fraud on the tribunal.

8 **Second:** Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The
9 FAC's prayer and parties differ from the underlying negligence trial. The pendency of an appeal on
10 the underlying liability does not deprive the trial court of jurisdiction to hear a separate equitable
11 action attacking the procurement of that judgment.

12 Defendants' citation to Rochin and section 904.1 describes the route for an appeal. Plaintiff has
13 not filed an appeal. Plaintiff has filed an independent equitable action.

14 **C. Independent Equitable Action Is Not Barred By Res Judicata; Nonparty Fraud Is Extrin-**
15 **sic**

16 An independent equitable action based on extrinsic fraud is not barred by the res judicata effect
17 of the underlying judgment. (Olivera v. Grace (1942) 19 Cal.2d 570, 575-576 [equity will relieve
18 against a judgment procured by extrinsic fraud notwithstanding its finality].) Where the fraud
19 is committed by a nonparty or by counsel and their principal acting outside the courtroom, it is
20 extrinsic as a matter of law. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036
21 [fraud by nonparty attorney constitutes extrinsic fraud; independent action in equity lies].)
22

23 **IV-A. INDEPENDENT EQUITABLE ACTION RECOGNIZED IN CAL-**
24 **IFORNIA**

25 California law recognizes the independent action in equity as a distinct and continuing jurisdiction
26 of the trial court to vacate a judgment procured by extrinsic fraud. (Olivera v. Grace, supra,
27 19 Cal.2d at pp. 575-576; Kougasian v. TMSL, Inc., supra, 118 Cal.App.4th at pp. 1034-1036.)

1 The doctrine exists precisely because direct appeal and Code of Civil Procedure section 473(b)
2 cannot reach fraud that operates outside the record. Section 904.1 does not abrogate this equitable
3 jurisdiction, and no case cited by Defendants so holds.

4

5 **IV-B. THIS FAC SEEKS RELIEF FROM PROCUREMENT OF JUDG-**
6 **MENT, NOT REVIEW OF TRIAL ERROR**

7 The FAC does not ask this Court to reweigh trial evidence, revisit negligence findings, or correct
8 legal rulings made during the underlying trial. It asks this Court to examine how the judgment was
9 procured — specifically, the out-of-court conduct and file-transfer omissions that deprived Plaintiff
10 of a fair adversary hearing. That inquiry is categorically different from appellate review of trial
11 error. Section 904.1 governs the former; equity governs the latter. Defendants’ Rochin-based
12 attack conflates the two.

13

14 **IV-C. WHAT ISSUES WERE NOT ADJUDICATED IN THE UNDERLY-**
15 **ING TRIAL**

16 The following issues — which form the gravamen of the FAC — were never adjudicated in the
17 underlying negligence trial:

- 18 • The conveyance (or non-conveyance) of production history during the May 4, 2023 file trans-
19 fer to successor counsel;
- 20 • Whether court-facing representations regarding provenance were truthful in light of Defen-
21 dants’ own internal records;
- 22 • Whether Defendants’ out-of-court positions contradicted their later tribunal-facing positions;
23 and
- 24 • Whether the foregoing deprived Plaintiff of a fair adversary hearing.

25 None of these issues was before the jury. None was decided. Collateral estoppel and res judicata
26 therefore have no purchase.

V. COLLATERAL ATTACK WITHOUT CROWLEY: DEFENDANTS SKIP THE PRIMARY RIGHTS ANALYSIS

A. Defendants' Argument

Defendants argue that Plaintiff's FAC is an impermissible "collateral attack" on a valid judgment, quoting F.E.V., Rico, Wouldridge, and Singh as if those definitions alone resolved the pleading. (Demurrer MPA, p. 12, ll. 9–18.) Defendants rely on:

- F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, 471
- Rico v. Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84
- Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826

B. Defendants Ignore the Mandatory Crowley Analysis

Defendants quote these definitional cases without performing the mandatory primary rights analysis required by Crowley v. Katleman (1994) 8 Cal.4th 666.

Under Crowley, collateral estoppel requires analysis of: (1) the parties; (2) the issues actually litigated and decided; and (3) the primary right enforced.

The underlying trial adjudicated the primary right to be free from negligent conduct causing personal injury (the car collision).

This FAC asserts the primary right to a fair adversary hearing, free from extrinsic fraud and process corruption.

Because the primary rights and duties are fundamentally different, there is no issue-match, and collateral estoppel does not apply. The controlling framework is set by Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904, and reaffirmed in Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798: "the primary right is simply the plaintiff's right to be free from the particular injury suffered."

C. Primary Rights Comparison

Primary Right Adjudicated		
Below	Primary Right Asserted Here	Parties-Identity Mismatch
Freedom from negligent bodily harm (personal-injury tort arising from vehicle collision)	Freedom from a judgment procured by extrinsic fraud; right to a fair adversary hearing	Underlying trial parties differ from this action; CSAA, CS&K, and Chambers are sued here in their capacities as principal/counsel whose out-of-court conduct procured the judgment — capacities not litigated below
Duty: ordinary care in operation of a motor vehicle	Duty: candor to tribunal; non-concealment of production history; agency duties of principal	The duties arise under different bodies of law (tort vs. equity/agency/officer-of- the-court duties)
Injury: physical/economic harm from collision	Injury: deprivation of fair adversary hearing and attendant procedural harm	The injury here did not exist and could not have been litigated in the underlying trial

Under Mycogen and Boeken, the “injury suffered” in this action is not the injury litigated below. Res judicata and collateral estoppel therefore do not apply.

D. Wouldridge Does Not Apply to an Independent Equitable Action for Extrinsic Fraud

Defendants invoke Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84–85 for the proposition that a judgment of a court of general jurisdiction may be attacked collaterally only if void on the face of the record. That rule governs **collateral** attacks that seek to avoid the effect of a judgment without the procedural vehicle of an independent action in equity. It does not displace California’s long-settled rule that a plaintiff may bring a **separate** equitable action to set aside a judgment procured by extrinsic fraud. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19 Cal.2d 570, 575–576.)

1 Wouldridge did not involve extrinsic-fraud allegations, a two-phase concealment pattern, or a
2 principal-directed chain-of-custody failure on substitution of counsel. It therefore provides no
3 authority for resolving the intrinsic/extrinsic question on demurrer here. An independent action in
4 equity is a **direct** attack on the judgment’s procurement, not the collateral maneuver Wouldridge
5 addressed.

7 **VI. EXTRINSIC FRAUD: THE INTRINSIC/EXTRINSIC DISTINCTION** 8 **IS FACT-INTENSIVE**

9 **A. Defendants’ Argument**

10 Defendants also invoke United States v. Throckmorton (1878) 98 U.S. 61, 65 for a policy against
11 “repeated litigation” touching the “same subject of controversy.” (Demurrer MPA, p. 9, ll. 22–28.)
12 Defendants cite Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Aldrich v. San Fernando Valley
13 Lumber Co. (1985) 170 Cal.App.3d 725 for the intrinsic/extrinsic fraud distinction, then conclude:
14 “Here, there was no fraud (extrinsic or otherwise).” (Demurrer MPA, p.11, ll.15-16)

15 **B. Defendants Cannot Resolve the Intrinsic/Extrinsic Question on Demurrer**

16 The intrinsic/extrinsic distinction is highly fact-intensive. Kulchar itself provides: extrinsic fraud
17 arises when a party is “deliberately kept in ignorance of the action or proceeding, or in some other
18 way fraudulently prevented from presenting his claim or defense.”

19 The FAC explicitly alleges: - Out-of-court deception regarding the receipt and provenance of ev-
20 idence - Court-facing misrepresentations that induced the Court to deny continuances and defer
21 admission - Structural impairment of Plaintiff’s ability to present evidence in a timely, usable
22 manner

23 The FAC does not allege that Plaintiff “failed to assemble his evidence.” It alleges Defendants
24 **fraudulently impaired** Plaintiff’s ability to present evidence. This is textbook extrinsic fraud
25 under Kulchar.

26 On demurrer, the Court must accept these well-pleaded allegations as true. Defendants’ assertion
27 that there was “no fraud” is a merits determination that violates the demurrer standard.

1 **C. The Gravamen Is Extrinsic, Not Intrinsic, Because the Deception Operated Outside the**
2 **Courtroom**

3 The extrinsic/intrinsic line is drawn by the locus and operation of the deception, not by whether
4 any witness also testified at trial. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472 [extrinsic
5 fraud encompasses conduct that “prevented a real trial upon the issues involved”]; Westphal v.
6 Westphal (1942) 20 Cal.2d 393, 397 [extrinsic fraud exists where a party has been “prevented by
7 fraud or deception from presenting his claim or defense”]; In re Marriage of Stevenot (1984) 154
8 Cal.App.3d 1051 [extrinsic fraud where party lulled into inaction by out-of-court representations];
9 In re Marriage of Melton (1994) 28 Cal.App.4th 931 [same; fraud operative outside the adversary
10 process].)

11 **Disclaimer of reliance on in-court statements.** Plaintiff does not seek vacatur based on what
12 Defendants said at trial. Plaintiff seeks vacatur based on (a) out-of-court representations that lulled
13 Plaintiff into non-action and (b) the file-transfer concealment that predated any trial representation.
14 Any alignment between those out-of-court positions and later in-court statements is evidentiary
15 context, not the gravamen.

16 **Bait-and-switch prejudice.** The extrinsic character of the fraud is underscored by its timing.
17 Defendants lulled Plaintiff out of court — through representations suggesting that authentication
18 of 911 audio and CAD records was uncontested, resolved, or not urgent — until the eve of trial,
19 at which point they shifted to “unknown provenance” and non-receipt positions after the clock
20 had run on subpoenas, authentication sequencing, and evidentiary motions. That sequencing is
21 the classic “bait and switch” that equity treats as extrinsic: the deception did not merely color a
22 trial issue; it prevented Plaintiff from ever reaching the trial posture in which the issue could be
23 meaningfully litigated. (Kulchar, supra, 1 Cal.3d at pp. 471-472.)

24 **Federal intrinsic/extrinsic nomenclature.** Defendants’ demurrer papers invoke United States v.
25 Throckmorton (1878) 98 U.S. 61, 65 for a broad “repeated litigation” theme. California equity
26 does not substitute the federal Throckmorton intrinsic/extrinsic vocabulary for the fact-intensive
27 framework this Court applies under Kulchar, Westphal v. Westphal (1942) 20 Cal.2d 393, and
28 Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036 (independent equitable ac-

tion for extrinsic fraud; fraud by nonparty counsel). The gravamen analysis therefore turns on California authority, not on a federal maxim detached from the FAC’s pleaded channels.

D. Baltins v. James: Diligence and Accrual Are Fact Questions, Not Demurrer Shortcuts

Defendants cite Baltins v. James (1995) 36 Cal.App.4th 1193 for principles about diligence and equitable relief. Baltins does not hold that extrinsic fraud can be negated on demurrer. It addresses whether a movant exercised due diligence after discovering facts warranting relief — a question that presupposes disputed facts and timing. (*Id.* at pp. 1206–1208.)

Here, the FAC alleges active concealment and a broken production-history chain through the May 4, 2023 substitution — facts that, if true, postpone the reasonableness of any “diligence” inquiry until discovery of the concealment. An independent equitable action for extrinsic fraud **accrues on discovery of the fraud**, not on entry of the underlying judgment. (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1071 [fraudulent concealment and reliance bear on timeliness in the equitable setting]; Kougasian, *supra*, 118 Cal.App.4th at pp. 1034–1036.) Accepting the FAC as true, Baltins does not supply a facial bar.

VI-X. Contemporaneous Preservation Does Not Convert Extrinsic Fraud Into Intrinsic Fraud

Defendants may argue that Plaintiff’s January 27 and February 18, 2025 courtroom objections transform the extrinsic fraud into intrinsic fraud (and thus outside equitable relief). This argument fails.

The Kulchar Distinction: Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72, the distinguishing feature of extrinsic fraud is whether the defrauded party had a **fair adversary hearing**, not whether the party noticed the problem during trial. Intrinsic fraud involves issues actually litigated and decided; extrinsic fraud involves conduct that **prevents** the litigant from presenting a claim or defense.

The Kougasian Holding: Under Kougasian v. TMSL, Inc. (2006) 135 Cal.App.4th 1093, 1106, extrinsic fraud includes misconduct that **prevents the opposing party from presenting a meaningful defense**—which is precisely what the MIL-17 framing plus continuance denials accomplished.

The Preservation Paradox: Plaintiff’s January 27, 2025 “suppress” preservation (Hr’g Tr. p. 19)

1 and February 18, 2025 “concealed / going on the record” preservation (Hr’g Tr. pp. 44–45) do
2 not cure the extrinsic injury—they **are** the extrinsic injury, because each attempt to raise it was
3 procedurally foreclosed:

- 4 • Jan. 27: CCP § 473 motion denied (p. 49); continuance denied (pp. 55–56).
- 5 • Feb. 18: Continuance denied; “surprise under § 473 is not a sufficient basis” (p. 181).
- 6 • Feb. 3: § 581(d) dismissal under submission (pp. 109, 116, 122–124).

7 The fact that Plaintiff tried four procedural vehicles (and each was denied) proves the extrinsic
8 character of the fraud: the deception operated to **foreclose procedural remedies**, not to offer
9 evidence the jury could weigh.

10 **VI-A. The February 28 Burden-Shift Ruling Is Paradigmatic Extrinsic Fraud**

11 The Court’s own articulated reliance on defense candor at the February 28, 2025 hearing — “They
12 are an officer of the Court” (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7) — is precisely the reliance
13 element that converts Navaratnasingham’s January 17 and February 18 misrepresentations from
14 intrinsic trial tactics into extrinsic fraud: the Court did not weigh defense’s credibility against
15 contrary record evidence; the Court relied on the institutional status of counsel.

16 On the same date, the burden-shift ruling — “it’s required of you to send the documents over.
17 Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was not an eviden-
18 tiary weighing at trial; it was a procedural-rule reallocation that operated outside trial advocacy,
19 producing the structural exclusion Kulchar/Westphal defines as extrinsic.

20 **The Laws-Broken Matrix (Conduct Underlying the Fraud)**

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of that which ought to be disclosed.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor without requiring intent to deceive (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415).

VI-B. The Four-Hearing Institutional-Reliance Chain

The record reveals a pattern of tribunal reliance on institutional representations in lieu of independent verification:

Hearing	Court’s Articulated Reliance	Defense’s Underlying Misrepresentation	Rulings Produced
Jan. 27, 2025	Implied reliance on “not produced / lacks foundation”	p. 15:10–16; p. 19:7–13; p. 34:1–10	MIL exclusion of 911 CDs + transcripts
Feb. 18, 2025	“I see. Okay.” (p. 141:15); “given their representations” (p. 145:16–19)	“news to me” (p. 141:3–14)	Continuance denied; § 473 surprise rejected

Hearing	Court's Articulated Reliance	Defense's Underlying Misrepresentation	Rulings Produced
Feb. 28, 2025	"I'm not going to question a lawyer's remarks" (p. 291:26–28); "They are an officer of the Court" (p. 292:1–7)	Continued "we never got that" pattern	Burden-shift ruling (p. 293:1–3)
Apr. 16, 2025	Court's inference from defense authentication posture	Stacked denials RT 7 pp. 156, 162, 207–208	Exclusion of supplemental police report; deferral of 911 admission

The extrinsic-fraud element of reliance is therefore not inferred; it is recorded.

VI-C. Constructive Fraud (Civ. Code § 1573) on the Proposed Second Amended Complaint

As detailed in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 7 states a cognizable, scienter-light claim for constructive fraud under Civil Code section 1573 that cures any alleged defect regarding specific intent.

VI-D. Count 4 and Civil Conspiracy (Applied Equipment)

As further mapped in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 4 pleads civil conspiracy exclusively as a joint-liability theory attaching to underlying torts, foreclosing Defendants' "freestanding tort" objection.

VII. CIVIL CODE SECTION 47(B) IS NOT A FACIAL DEMURRER BAR FOR NONCOMMUNICATIVE CONDUCT

A. Defendants' Argument

Defendants assert that the FAC “targets privileged conduct and communications under Civ. Code § 47(b)” and that the “entire FAC arises entirely from the privileged litigation conduct of Defendant in the course of defending the third-party Insured.” (Demurrer MPA, p. 12, ll. 7–10, 13–15.)

Defendants also argue broadly that “all the acts alleged against Defendants are squarely litigation activity” and invoke Civil Code section 47(b) as blanket immunity. (Demurrer MPA, p. 7, ll. 8–9.)

B. The Litigation Privilege Applies to Communications, Not All Conduct

Civil Code section 47(b) privileges qualifying **communications** made in judicial proceedings. It does not provide blanket immunity for all conduct during litigation.

Kimmel v. Goland (1990) 51 Cal.3d 202, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, establishes the strict boundary between protected communications and unprotected non-communicative conduct.

The FAC alleges noncommunicative conduct including: - Withholding and failing to convey production history during the transfer of the file to successor counsel - Institutional oversight failures - Agency conduct by CSAA as principal

These allegations fall outside the scope of section 47(b). Furthermore, Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242-1247 establishes that extrinsic fraud is an exception to the litigation privilege. Defendants’ briefing does not discuss this exception.

C. Rusheen Does Not Sweep in Institutional File-Transfer Failures

Defendants overread Rusheen v. Cohen (2006) 37 Cal.4th 1048. Rusheen extends section 47(b) only to noncommunicative conduct that is “**necessarily related**” to an underlying privileged communication. (Id. at p. 1058.) The “necessarily related” test is narrow; it does not convert every institutional act performed during the pendency of litigation into privileged conduct.

The FAC’s file-transfer allegations do not concern the publication of a privileged communication. They concern an internal, institutional act — the transfer of the defense file to successor counsel

1 “without ensuring proper documentation and conveyance of the production history” (Demurrer
2 MPA, p.6, ll.15-18) — that broke the chain of custody of production history itself. That act is not
3 the service of a pleading, the enforcement of a writ, or any other communicative instrument. It is an
4 internal institutional failure with downstream tribunal consequences, and Rusheen’s “necessarily
5 related” tether does not reach it.

6 The Supreme Court has separately cautioned that section 47(b) is not a roving immunity for insti-
7 tutional misconduct merely because litigation is in progress. (Jacob B. v. County of Shasta (2007)
8 40 Cal.4th 948, 960 [privilege analysis requires fidelity to the statute’s communicative core; courts
9 should not extend the privilege by analogy where the policy reasons do not support it].) Defen-
10 dants’ reading would do exactly what Jacob B. forbids.

11 **VIII. THE UNCERTAINTY DEMURRER IS DISFAVORED AND UN-** 12 **SUPPORTED**

13 **A. The Standard for Uncertainty Demurrers**

14 Defendants argue that the FAC is “unintelligible and ambiguous” and “does not explain a cog-
15 nizable basis for relief.” (Demurrer MPA, p. 11, ll. 4–8, 22–28.) Defendants cite A.J. Fistes
16 Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, which provides: “demurrers
17 for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.”

19 **B. The FAC Is Not Uncertain**

20 The FAC is structured and particularized. It identifies: - The specific actors (CSAA, Carbone Smith
21 & Koyama, Chambers) - The specific conduct (two-phase pattern of out-of-court and court-facing
22 misrepresentations) - The specific reliance (tribunal management decisions on continuances and
23 evidence admission) - The specific injury (deprivation of fair adversary hearing)

24 Defendants responded with 20 pages of briefing across two motions. They clearly understood
25 the FAC sufficiently to mount a defense. Their uncertainty demurrer is a tactical device, not a
26 legitimate procedural objection.
27
28

IX. PLEADING SUFFICIENCY: THE FAC SATISFIES SERRANO

A. The Standard

Defendants invoke Serrano v. Priest (1971) 5 Cal.3d 584 for the proposition that conclusions need not be accepted as true. (Demurrer MPA, p. 10, ll. 21–23 [reciting Serrano immediately after ABF Capital standard].)

Under Serrano v. Priest (1971) 5 Cal.3d 584, 591, the Court accepts well-pleaded facts as true and separates conclusions.

B. The FAC Pleads Facts, Not Conclusions

The FAC pleads specific facts about: - The timing and substance of out-of-court representations - The content of court-facing statements - The production history and file transfer - The tribunal’s reliance on defense representations

These are not “conclusions” under Serrano. They are factual allegations that, if true, establish extrinsic fraud.

X. LIMITATIONS AND SECTION 473: A CATEGORY ERROR

A. Defendants’ Argument

Defendants argue that Plaintiff’s “proper means” would have been a motion under Code of Civil Procedure section 473(b), which has a six-month deadline that has passed. They also suggest in a footnote that aspects of Plaintiff’s theory “may also be barred by the statute of limitations in Code Civ. Proc. sec. 473.” (Demurrer MPA, p. 14, fn. 4.)

B. Section 473 Does Not Govern Independent Equitable Actions

Defendants conflate section 473(b) relief (a motion for relief from default based on mistake, inadvertence, surprise, or excusable neglect) with an independent equitable action for extrinsic fraud.

These are different procedural vehicles with different policy anchors and different limitations periods. An independent equitable action to vacate a judgment procured by extrinsic fraud is not governed by section 473(b)’s six-month deadline.

Section 473(b) governs motions for relief from judgment in the same action. It does not govern

independent equitable actions for extrinsic fraud, which have their own limitations analysis.

C. Accrual and Timeliness

- Unlike Section 473(b), an independent equitable action for extrinsic fraud accrues upon the aggrieved party’s discovery of the fraud. Plaintiff was not aware of the defense’s internal file-transfer omissions and coordinated misrepresentations until discovery of same. Therefore, the action is timely and not barred by laches.

D. Accrual Anchored to January 17, 2025

CCP § 338(d) accrual ran from the **January 17, 2025** MIL filings—the first “contrary court-facing position” that put Plaintiff on notice of the defense’s shift from 883 days of silence to affirmative denial. The transcript record establishes Plaintiff’s diligence from that moment forward:

- **Jan. 27, 2025:** Plaintiff objected on the record, stating “suppress” (Hr’g Tr. p. 19, ll. 1–5) and confirming the FROG/SROG CAD references (Hr’g Tr. p. 32, ll. 1–16).
- **Jan. 28, 2025:** Defense § 581(d) dismissal motion opposed by the Court on the ground that dismissal would “suffer immediate reversal” (Hr’g Tr. p. 90, ll. 17–33).
- **Feb. 18, 2025:** Plaintiff preserved the concealment theme (Hr’g Tr. pp. 17, 23, 44–45); § 473 “surprise” rejected (Hr’g Tr. p. 181, ll. 21–25).
- **Feb. 28, 2025:** Plaintiff opposed defense protective-order posture limiting doctor-file channel (Hr’g Tr. pp. 291–294).

This four-date diligence chronology defeats any “sleeping on rights” argument and anchors accrual to the January 17, 2025 MIL filings, not to 2021 possession or 2022 production.

XI. STANDING AND MISJOINDER: AGENCY PRINCIPLES APPLY

A. Defendants’ Argument

Defendants argue that Plaintiff lacks standing to sue CSAA as a third-party insurer and that joinder of counsel is improper, citing Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, Norton v. Hines (1975) 49 Cal.App.3d 917, and Omega Video v. Superior Court (1983) 146 Cal.App.3d 470. (Demurrer MPA, p. 14, ll. 17–24.)

1 **B. Shaolian Does Not Reach Principal-Directed Extrinsic Fraud**

2 Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 addressed a generic third-party effort to sue
3 an opposing insurer for defending its insured. It does not address — and did not purport to address
4 — an independent equitable action alleging that the insurer, as institutional principal, directed and
5 ratified the extrinsic-fraud conduct that procured the judgment.

6 The FAC specifically alleges CSAA as the institutional principal under Civil Code section 2338,
7 which provides: “a principal is responsible to third persons for the negligence of his agent in the
8 transaction of the business of the agency, including wrongful acts committed by such agent in
9 and as a part of the transaction of such business.” The FAC does not allege that Plaintiff is suing
10 CSAA simply for defending its insured. It alleges that CSAA, as principal, directed and ratified
11 the specific deceptive conduct that procured the judgment.

12 **C. Omega Video Does Not Govern an Independent Action Whose Gravamen Is Extrinsic**
13 **Fraud**

14 Omega Video v. Superior Court (1983) 146 Cal.App.3d 470 arose from an adverse party’s effort
15 to hold opposing counsel liable in tort for litigation-phase conduct; the court analyzed Civil Code
16 section 47(b) on that narrow pattern. It did not involve — and did not analyze — an independent
17 equitable action pleading extrinsic fraud on the tribunal and principal ratification of a stripped file
18 transfer. Where extrinsic fraud is the gravamen, Action Apartment Ass’n v. City of Santa Monica
19 (2007) 41 Cal.4th 1232, 1242–1247 controls the overlap between section 47(b) and fraud-on-the-
20 court channels. Defendants’ briefing does not distinguish Omega Video on that axis.

21 **D. Norton v. Hines: Adverse-Party Attorney Immunity Is Narrow and Does Not Erase**
22 **Extrinsic-Fraud Equity**

23 Norton v. Hines (1975) 49 Cal.App.3d 917 reflects the familiar rule that an adverse party gener-
24 ally may not sue opposing counsel for acts in litigation, **except** in categories such as malicious
25 prosecution. The litigation privilege “shields litigants, attorneys and witnesses from liability for
26 . . . virtually all torts **except malicious prosecution.**” (Mattco Forge, Inc. v. Arthur Young
27 & Co. (1992) 5 Cal.App.4th 392, 407, quoted with approval in Kolar v. Donahue, McIntosh &
28 Hammerton (2006) 145 Cal.App.4th 1532, 1537–1540.) Norton therefore does not supply a blan-

ket demurrer bar to an equitable action whose theory is extrinsic fraud and institutional ratification, not a generic “sue my opponent’s lawyer” tort.

The same Mattco / Kolar line confirms that recognized exceptions and fraud channels remain available. On the proposed SAC, **constructive fraud under Civ. Code § 1573** and **Bus. & Prof. Code § 6128(a)** fall in the same category of claims that are not erased by a Norton gloss: they are specific statutory and common-law channels aimed at deceit of the tribunal and breach of candor duties, not collateral complaints about zealous advocacy.

Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 396 reinforces that immunity doctrines tied to the litigation privilege are context-specific and do not automatically defeat claims that sound in fraud and third-party injury outside the narrow patterns Norton addressed.

E. The FAC Pleads Specific Agency Acts by CSAA, Not a Generic Third-Party Claim

The FAC is not a generic “sue the insurer” pleading. It pleads specific agency acts by CSAA as principal:

1. **Funding and controlling the defense** — CSAA retained, funded, and operationally controlled the defense through CS&K and Chambers, directing litigation strategy and resource allocation;
2. **Approving and directing litigation positions** — CSAA approved and directed the litigation positions that became the court-facing misrepresentations regarding receipt and provenance of 911 audio and CAD records; and
3. **Ratifying the file-transfer** — CSAA ratified the May 4, 2023 file transfer to successor counsel and the attendant failure to convey production history.

California law has long recognized that an insurer directing the defense of its insured may be held answerable for the acts of counsel it retains and controls. (*Doctors’ Co. v. Superior Court* (1989) 49 Cal.3d 39 [scope of insurer responsibility for defense counsel’s conduct turns on the insurer’s actual role and direction].) That rule, applied to extrinsic-fraud allegations, forecloses Defendants’ generic standing argument.

Agent Swap. CSAA cannot launder extrinsic fraud by swapping counsel before trial. The May 4, 2023 substitution moved the file from Chambers/CS&K to successor counsel; but the out-of-court

1 representations that lulled Plaintiff, and the institutional decision not to convey production history
2 to successor counsel, had already occurred. Agency liability does not evaporate when the principal
3 rotates its agents mid-litigation; if anything, the substitution is itself a vector by which the fraud
4 was perpetuated.

6 **XII. DEFENDANTS’ RFJN OVERREACHES THE DEMURRER RECORD**

7 Defendants’ Request for Judicial Notice seeks to import merits-based documents into the demurrer
8 record. Their demurrer repeatedly incorporates RFJN exhibits as proof of “what really happened”
9 in the underlying action. (E.g., Demurrer MPA, pp. 6–8, 12–13 [citing RFJN exhibits by letter].)
10 Under Code of Civil Procedure section 430.70 and Evidence Code section 452, judicial notice on
11 demurrer is limited. The Court may take judicial notice of the existence of documents but not of
12 disputed facts within them.

13 Defendants use their RFJN as a merits proof mechanism. This exceeds the demurrer record and
14 should be disregarded.

15 **A. Piecemeal Transcript Notice Violates Sosinsky**

16 Defendants’ RFJN attaches selective transcript excerpts without the Plaintiff-preservation pages
17 of the same hearings. Plaintiff’s counter-RFJN (Part II of Plaintiff’s Declaration and Request for
18 Judicial Notice in Support of Oppositions) includes:

- 19 • Hr’g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff’s “suppress” objection and
20 FROG/SROG pincites);
- 21 • Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d) under submission; ex parte
22 disclosure order);
- 23 • Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff’s preservation statements; “news to
24 me” vs. “since August” contradiction).

25 Under Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is intro-
26 duced, the opposing party is entitled to introduce contextually related portions. The Court must
27 take the whole record, not the defense-curated fragment.

1 **XIII. LEAVE TO AMEND SHOULD BE GRANTED IF ANY CAUSE OF**
2 **ACTION FAILS**

3 Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135, leave to
4 amend should be granted unless amendment would be futile. Defendants have not met their burden
5 of showing futility.

6 If the Court finds any deficiency in the FAC, Plaintiff respectfully requests leave to amend.

7 **A. Specific Proffer of Additional Facts Plaintiff Would Plead**

8 Should the Court identify any pleading deficiency, Plaintiff proffers that, on leave to amend, Plain-
9 tiff would plead with greater specificity: (1) the content and source of CSAA directives to defense
10 counsel concerning authentication, provenance, and production history of 911 audio and CAD
11 records; (2) the dates, participants, and substance of the out-of-court representations on which
12 Plaintiff relied to defer subpoena, authentication, and sequencing steps; and (3) the identity of the
13 file-transfer recipients at successor counsel and the specific categories of production-history ma-
14 terials that were not conveyed in the May 4, 2023 transfer. These additional facts deepen — but
15 do not change — the gravamen already pleaded, and they establish that amendment would not be
16 futile.

17
18 **XIII-A. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE**

19 The tendered SAC (SAC-06) is not a promise of future drafting; it is a complete, cognizable plead-
20 ing already before the Court on the concurrently calendared Motion for Leave to Amend. The
21 matrix below maps each category of defect Defendants allege to the specific SAC paragraph(s)
22 that cure it.

Demurrer Theme	Alleged Defect in		
	FAC	SAC Cure (§)	Authority
Jurisdictional (§ 904.1 / Rochin)	“Masqueraded appeal”	SAC §§ 1–5, 114–120 (independent equitable action framing)	Kougasian; Olivera
Res judicata / collateral attack	Same primary right	SAC § 24 (primary-rights allegation)	Mycogen; Boeken
Intrinsic/extrinsic line	“No extrinsic fraud pled”	SAC §§ 29–39, 40–63, 108–109 (two-phase pattern + officer-of-court reliance + Apr. 16 admission)	Kulchar; Westphal
§ 47(b) privilege	“All conduct privileged”	SAC §§ 34–39 (noncommunicative file-transfer); 108, 137 (Action Apartment exception)	Kimmel; Action Apartment
Uncertainty	“Incomprehensible”	SAC §§ 29–63, 86–113 (date-and-actor particularity)	A.J. Fistes
Serrano sufficiency	“Conclusory”	SAC §§ 29–63 (facts); 114–165 (element mapping)	Serrano

Demurrer Theme	Alleged Defect in		Authority
	FAC	SAC Cure (§)	
§ 473 / limitations	“Six-month bar”	SAC §§ 95, 115 (equitable accrual)	Kougasian
Standing / misjoinder (CSAA)	“Third-party insurer”	SAC §§ 48–57 (agency acts by CSAA as principal)	Civ. Code § 2338; Doctors’ Co.
Scienter on fraud counts	“No specific intent pled”	SAC §§ 157–165 (Count 7 constructive fraud; scienter-light)	Civ. Code § 1573; Assilzadeh
“Conspiracy is not a tort” (anticipated)	Independent conspiracy count	SAC § 141A (joint-liability theory under Count 4)	Applied Equipment

Plaintiff does not ask the Court to resolve the Demurrer by adopting this matrix; Plaintiff asks the Court to take judicial notice of the pendency of the SAC motion and to recognize that no identified deficiency is incurable.

Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

XIII-B. NO INTERLOCUTORY APPEAL FROM DEMURRER; ANTI-MANUFACTURED-FINALITY (MOREHART / KURWA)

1. Demurrer rulings and CCP § 904.1. An order **overruling** a demurrer is **not** listed in **CCP § 904.1(a)** as an immediately appealable order; the defense has **no direct appeal** from a demurrer overrule as of right. **Griset v. Fair Political Practices Comm’n** (2001) 25 Cal.4th 688, 701–702 (final judgment rule). If the Court **sustains** a demurrer **with leave to amend**, the order is **not** a final judgment; appeal follows **only** from a subsequent **judgment of dismissal** after failure to amend.

Morehart v. County of Santa Barbara (1994) 7 Cal.4th 725, 731–732 (one final judgment disposing of all causes of action).

2. No manufactured finality. Defendants should not be permitted to **sever** causes of action or seek **partial judgment** on fewer than all counts solely to create an **appealable** order. Kurwa v. Kislinger (2013) 57 Cal.4th 1097, 1105–1106 (voluntary dismissal tactics and manufactured finality). The proposed SAC pleads a **single primary-right nucleus** and **opposes piecemeal** disposition (SAC ¶¶ 113A–113D).

3. Companion briefing. Plaintiff incorporates the **Interlocutory Appeal Bar Brief** (Document D801-18) filed with the bench binder.

XIV. CONCLUSION

Defendants’ motions proceed as if the allegations were true and assert legal immunity; the Demurrer therefore presents only legal questions.

Separately, because Plaintiff has already tendered a Second Amended Complaint addressing each deficiency Defendants allege (see § XIII-A, *supra*), the liberal- amendment standard requires that if any theory is found insufficient as pleaded, leave be granted to proceed on the SAC rather than dismissal.

Defendants’ Demurrer fails because:

1. It imports impermissible merits standards into demurrer analysis
2. It confuses an independent equitable action with an appeal
3. It skips mandatory primary rights analysis under Crowley
4. It asks the Court to resolve fact-intensive intrinsic/extrinsic questions on the pleadings
5. It overstates the litigation privilege beyond its communications boundary
6. It lacks any basis for uncertainty demurrer
7. It conflates section 473 with independent equitable action limitations
8. It ignores agency principles that establish standing

For these reasons, Plaintiff respectfully requests the Court overrule the Demurrer in its entirety.

1 **XV. RELIEF REQUESTED**

2 Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

- 3 1. **Overrule the Demurrer** to the First Amended Complaint in its entirety;
- 4 2. **Alternatively, grant leave to amend** consistent with Section XIII and XVI;
- 5 3. **Sustain Plaintiff’s objections to Defendants’ Request for Judicial Notice** as set forth in
- 6 the companion Objection (see Section XII);
- 7 4. **Sustain Plaintiff’s evidentiary objections** to the supporting declarations as set forth in the
- 8 companion Evidentiary Objections; and
- 9 5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary
- 10 Objections.
- 11

12 **XVI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY**

13 Should the Court identify any pleading deficiency, leave to amend would cure it because Plaintiff

14 can plead additional specific facts that deepen — but do not alter — the gravamen already pleaded.

15 Plaintiff proffers, on leave to amend: (1) the dates and content of specific CSAA directives to

16 defense counsel concerning authentication, provenance, and production history of 911 audio and

17 CAD records, including the CSAA personnel issuing each directive; (2) the identity of the file-

18 transfer recipients at successor counsel (PSA) on and after the May 4, 2023 substitution and the

19 specific categories of production-history materials not conveyed; and (3) the dates, participants,

20 and substance of the out-of-court representations on which Plaintiff relied to defer authentication,

21 subpoena, and sequencing steps.

22 These particulars confirm that amendment would not be futile. The two-phase pattern, the in-

23 stitutional file-transfer failure, and the principal-directed ratification are capable of more specific

24 pleading. Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135 and

25 the liberal amendment standard, the proffered facts establish a reasonable possibility of cure, and

26 leave to amend should be granted if any cause of action is found insufficient as presently pleaded.

27

28 **DATED:** April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX A: SERRANO VIOLATIONS INVENTORY

Conclusory Assertions in Defendants' Demurrer That Violate Serrano v. Priest

#	Location	Conclusory Assertion	Why It Violates Serrano
1	Demurrer MPA, p.1, ll.19-21	"erroneous and speculative" theory	Merits determination; Court must accept well-pleaded facts as true
2	Demurrer MPA, p.11, ll.15-16	"there was no fraud (extrinsic or otherwise)"	Ultimate merits conclusion; cannot be resolved on demurrer
3	Demurrer MPA, p.7, ll.8-9	"squarely litigation activity"	Characterization of facts that must be accepted as pleaded
4	Demurrer MPA, p.4, ll.22-23	"seeks to unwind a valid jury verdict"	Strawman reframe of FAC gravamen
5	Demurrer MPA, p.1, ll.17-19	"improper collateral attack on a valid jury verdict"	Legal conclusion without Crowley analysis
6	Anti-SLAPP MPA, p.4, ll.17-18	"not a cognizable claim"	Bare assertion without element-by-element analysis

#	Location	Conclusory Assertion	Why It Violates Serrano
7	Anti-SLAPP MPA, p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations
8	Demurrer MPA, p.11, ll.25-26	“merely a case in which a party failed to assemble all his evidence”	Merits characterization of FAC that Court cannot adopt on demurrer

Each of these assertions asks the Court to accept Defendants’ factual conclusions over Plaintiff’s factual allegations. On demurrer, this is impermissible. The Court should disregard each conclusory assertion and analyze the FAC’s well-pleaded facts as true.

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Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO SPECIAL MOTION
TO STRIKE**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pin cite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pin cite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pin cite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pin cite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pin cite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pin cite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup ("since 2021")**
 - **Proof artifact:** Jessup testifies "since 2021"
 - **Pin cite / Source:** Hr'g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pin cite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Anti-SLAPP Must Be Denied

Defendants attempt to use Anti-SLAPP step one to shield extrinsic fraud and process corruption. Under Park and Bonni, the court must identify the injury-producing act. Here, the injury-producing acts are out-of-court lulling, the stripped file transfer, and the procurement of rulings by

1 deception—none of which qualify as protected petitioning. Even if prong one were reached, the
2 record evidence (the “Smoking Gun”) establishes a probability of prevailing that far exceeds the
3 minimum-merit standard.

4 **§I.F — Posture Note: The SAC Is Offered as Gravamen Clarification, Not as a Simmons**
5 **End-Run**

6 Plaintiff has concurrently moved for leave to file a Second Amended Complaint (SAC) (see SAC-
7 01 through SAC-07). Plaintiff does not contend that the SAC moots or avoids this anti-SLAPP
8 motion. (Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1073–1074; Salma v. Capon
9 (2008) 161 Cal.App.4th 1275, 1293–1294 [amendment cannot defeat a pending anti-SLAPP].)
10 The SAC is submitted to the Court for two permissible purposes only: (i) as the current, more
11 particularized articulation of the same injury-producing acts the FAC already pleads, useful to
12 the Park/Bonni gravamen analysis; and (ii) as Plaintiff’s specific, tendered proffer if the Court
13 reaches leave to amend under § 425.16 jurisprudence. Nothing in this Opposition asks the Court
14 to substitute the SAC for the FAC as the operative pleading on this motion.

15 Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants
16 is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

17
18 **I-A. WHY THIS CASE IS OUTSIDE PRONG ONE EVEN THOUGH IT**
19 **AROSE AROUND LITIGATION**

20 Not every act occurring during litigation is a protected act under CCP § 425.16. The Supreme
21 Court has repeatedly insisted that the court must first identify the specific **injury-producing act**
22 underlying each claim, and only then classify that act as protected petitioning (or not). (Park, 2
23 Cal.5th at 1062-1063; Bonni, 11 Cal.5th at 1010-1012; Wilson v. Cable News Network, Inc. (2019)
24 7 Cal.5th 871, 884.)

25 Defendants collapse “litigation-adjacent” with “protected.” That is legal error. The FAC’s grava-
26 men lies in:

- 27 (a) out-of-court lulling,
28 (b) file-transfer concealment to successor counsel, and

1 (c) induced procedural rulings.

2 The first two are not communicative petitioning at all. The third is the downstream consequence
3 of the first two, not the injury-producing act itself. Even a case that arose “around” the underlying
4 litigation is outside prong one where the acts that produced the injury are institutional, noncom-
5 municative, or extrinsic to the merits adjudication.

6 7 **I-B. CCP 425.17 EXEMPTION (CLUB MEMBERS THRESHOLD)**

8 **Part I — Resolve statutory exemptions before Cashman prong one**

9 **1. Order of analysis.** Before City of Cotati v. Cashman (2002) 29 Cal.4th 69, the Court should
10 determine whether **Code of Civil Procedure § 425.17** removes one or more causes of action from
11 **CCP § 425.16** altogether. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th
12 309, 318–322 (exemptions are threshold questions).

13 **2. § 425.17(c) — commercial services (insurance and legal defense).** CSAA is engaged in the
14 business of **insurance**; defense counsel firms are engaged in **delivering legal services** in connec-
15 tion with that insurance. The FAC and proposed SAC allege misrepresentations and omissions con-
16 cerning **what was received in discovery, file custody, and production history**—representations
17 of fact about **business operations and services** made in the course of delivering those services,
18 within § 425.17(c)(1)–(2). Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30–32.

19 **3. § 425.17(b) — solely public interest (in the alternative).** To the extent the Court finds any
20 facet of this action brought **solely in the public interest** satisfying § 425.17(b)(1)–(b)(3), § 425.16
21 does not apply to that facet. Plaintiff joins issue on the scope of “solely” in light of individual
22 vacatur and fraud remedies.

23 **4. § 425.17(e) — no interlocutory anti-SLAPP appeal if exemption applies.** If the Court denies
24 this motion **on the ground that a cause of action is exempt** under § 425.17, **subdivision (i) of**
25 **§ 425.16** and **CCP § 904.1(a)(13) do not apply** to that cause of action—**no automatic stay; no**
26 **direct appeal** of that denial on anti-SLAPP grounds. Code Civ. Proc. § 425.17, subd. (e).

27 **5. If no exemption applies:** the Court proceeds to the Cashman two-step framework in Section II
28 below.

II. STEP-ONE GRAVAMEN DEMAND UNDER PARK AND BONNI

A. The Mandatory Two-Step Framework

Under *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 76, the anti-SLAPP analysis proceeds in two steps:

Step One: Does the challenged claim arise from protected activity? **Step Two:** If yes, has the plaintiff demonstrated a probability of prevailing?

Defendants collapse these two steps. They assume that because their conduct occurred during litigation, the analysis automatically proceeds to step two. This is wrong.

Mandatory parsing — Baral and Wilson. Even where some allegations touch protected activity, the court must isolate the gravamen and may strike **only** allegations of protected activity, not an entire mixed-conduct complaint. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.) The step-one inquiry “requires evaluating the defendant’s asserted protected activity in the context of the entire conduct upon which the plaintiff’s claim is based,” including identifying the specific **acts on which liability is based** and whether those acts themselves qualify as protected speech or petitioning. (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884.) Defendants’ monolithic “entire FAC” framing contradicts both holdings.

B. Park Requires Gravamen Isolation

In *Park v. Bd. of Trustees* (2017) 2 Cal.5th 1057, 1062-1063, the California Supreme Court clarified the step-one analysis:

“In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.” (*Park*, 2 Cal.5th at 1062)

The Court must identify the specific **injury-producing act** on which the claim rests and determine whether **that act** is protected petitioning activity. Labels like “litigation conduct” are not self-proving.

C. Defendants Skip the Gravamen Analysis

Defendants cite Park for the proposition that “speech or petitioning activity itself” as the wrong supports Anti-SLAPP. (Anti-SLAPP MPA, p.13, ll.20-22) But Defendants use Park at step two as part of a privilege block, assuming the answer at step one.

The FAC’s gravamen is not “speech or petitioning activity itself.” The FAC’s gravamen is:

1. Out-of-court communications that led Plaintiff to believe authentication of evidence was un-contested
2. The file transfer without proper conveyance of production history
3. Court-facing misrepresentations that induced procedural rulings narrowing Plaintiff’s win-dows
4. Tribunal reliance producing structural hearing impairment

These are not attacks on litigation itself. They are attacks on extrinsic fraud and tribunal reliance. For **Count 7 (constructive fraud, Civ. Code § 1573)** on the proposed SAC, the injury-producing gravamen is the **breach of a duty of candor** to the tribunal and the parallel institutional custody failures, not the fact of petitioning motions or trial advocacy. Park therefore does not collapse Count 7 into protected petitioning merely because MILs were filed.

D. Martinez as Discipline, Not Slogan

Defendants cite Martinez v. Metabolife Inter’l, Inc. (2003) 113 Cal.App.4th 181, 188 for the “principal thrust” test. But Martinez is a discipline for identifying the gravamen, not a magic word that resolves step one. The principal thrust test asks: What is the act that actually produces the injury?

Here, the injury-producing acts are noncommunicative institutional failures and misrepresenta-tions, not petitioning itself.

E. Claim-by-Claim Bonni Matrix

Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010-1012 requires the court to parse each claim and each alleged act separately. Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 884 further requires that the act be an **element** of the claim, not merely evidence of it. Applied here:

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
1 – Extrinsic Fraud / Fraud on the Tribunal	Deception operating outside the adversary contest	Out-of-court lulling communications that induced Plaintiff to forgo authentication/subpoena work before trial	No – out-of-court conduct aimed at Plaintiff, not petitioning a tribunal	FAC ¶¶ 2, 29–33
2 – Fraud / Intentional Misrepresentation	False representation + reliance + damages	Representations that evidence authentication was uncontested, made off-record to Plaintiff	No – communicative but not petitioning; directed to opposing party, not to the court as petition	FAC ¶¶ 40–43
3 – Negligent Misrepresentation / Breach of Institutional Duty	Breach of file-custody and production-history-conveyance duty on substitution	File transfer to PSA without conveying production history	No – noncommunicative institutional conduct (Kimmel/Rusheen line)	FAC ¶¶ 34–39

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
4 – Aiding & Abetting / Agency (CSAA)	Direction, funding, ratification of tortious conduct by principal	CSAA direction/ratification of the file-transfer and litigation positions	No – noncommunicative oversight conduct	FAC ¶¶ 7, 48–55
5 – Procurement-Level Process Corruption	Inducement of procedural ruling through false provenance representation	Court-facing statements that induced exclusion ruling	Communicative, but (a) the injury-producing act for the claim is the procurement of the ruling by deception (illegal-conduct exception) and (b) extrinsic fraud is an element, not the speech	FAC ¶¶ 40–47

FAC Count	Element At Issue	Act Alleged To Satisfy Element	Protected Petitioning?	FAC ¶ Pin-Cite
7 – Constructive Fraud (Civ. Code § 1573)	Duty of candor; misleading act or nondisclosure; inducement; harm (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415)	Same Nine-Point Receipt Chain and officer-of-the-court reliance as Counts 2–3, without scienter	No – mixed <u>Kimmel</u> institutional acts and <u>Action Apartment</u> tribunal channels; <u>Flatley</u> backstop	SAC ¶¶ 157–165

The label “litigation conduct” does not survive the Bonni element-level parse. Each injury-producing act, examined individually, is either noncommunicative (file transfer and principal oversight), aimed outside the tribunal (out-of-court lulling), or within the illegal-conduct/extrinsic-fraud exception (court-facing procurement).

II-A. ACT-BY-ACT PRONG ONE TABLE

The court should analyze each alleged act separately rather than in the aggregate. Defendants’ principal move is to fuse the acts; the table below forces the Bonni element-level review.

Alleged Act	Who Did It	Why Not		Plaintiff's	Supporting Evidence
		Communicative / Noncommu-	Protected / Exception Applies	Contemporaneous Objection / Preservation	
Out-of-court communications lulling Plaintiff into non-action regarding authentication	Carbone, Chambers (underlying counsel)	Communicative, but not petitioning — directed at opposing party, not a tribunal	Not “in connection with an issue under consideration by a judicial body” as against Plaintiff; outside § 425.16(e)	N/A (lulling occurred before Plaintiff had notice of problem)	Plaintiff Decl. ¶¶ 7–10; defense MPA, p.6 framing
File transfer to PSA without conveying production history	Carbone, Chambers; ratified by CSAA	Noncommunicative (institutional custody/transfer act)	Kimmel/Rusheen “necessarily related” test fails; institutional duty existed independent of any privileged communication	N/A (institutional act outside courtroom)	Substitution of Attorney (May 4, 2023); defense MPA, p.6 (“without ensuring proper documentation”)

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contemporaneous Objection / Preservation	Supporting Evidence
MIL 17 “unknown provenance” filing (Jan. 17, 2025)	PSA (Navaratnas- ingham)	Communicative	Flatley illegal- conduct exception; extrinsic fraud	Jan. 27, 2025: Plaintiff stated “suppress” on record (Hr’g Tr. p. 19) and cited FROG/SROG pincites (Hr’g Tr. p. 32)	CT Vol. 1, p. 238; Hr’g Tr. Jan. 27, 2025
“News to me” representation (Feb. 18, 2025)	Navaratnasingham	Communicative	Illegal conduct— same-day contradiction (p. 141 vs. p. 181) establishes scienter	Feb. 18, 2025: Plaintiff stated “concealed” and “going on the record” (Hr’g Tr. pp. 17, 44–45)	Hr’g Tr. Feb. 18, 2025, pp. 141, 181

Alleged Act	Who Did It	Communicative / Noncommu- nicative	Why Not Protected / Exception Applies	Plaintiff's Contemporaneous Objection / Preservation	Supporting Evidence
CSAA direction, funding, ratification of litigation position	CSAA	Noncommunicat (institutional oversight)	Not petitioning; commercial- insurance administrative conduct	N/A (principal oversight)	FAC agency ¶¶; Civ. Code § 2338
Procedural- window narrowing (induced continuance denial / exclusion ruling)	Court, induced by defense	Result of the injury- producing acts, not itself the claim's gravamen	Park requires analysis of the injury- producing act, not downstream rulings	Jan. 27, 28; Feb. 3, 18: All four Plaintiff procedural vehicles denied	Minute orders; trial transcript

The third column (“Plaintiff’s Contemporaneous Objection / Preservation”) shows the Court has **already heard** each suppression vector in open court. Plaintiff preserved objections on four separate hearing dates. This further distances the present action from any “retry the same case” characterization—Plaintiff was procedurally foreclosed, not silent.

II-B. EVEN IF SOME ACTS ARE PROTECTED, THE CLAIM DOES NOT ARISE FROM PROTECTED ACTIVITY IN SUBSTANCE

If the court concludes that one or more sub-acts (e.g., a specific court-facing statement) were communicative petitioning, the motion still fails. Under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, only allegations of protected activity are subject to striking; the claim as a whole survives if it rests substantially on unprotected conduct. Under *Park*, 2 Cal.5th at 1064, conduct that merely provides “evidentiary support” for a claim does not supply arising-from status.

Here, even subtracting any assertedly protected sub-acts:

- the out-of-court lulling (aimed at Plaintiff, not a tribunal) remains;
- the file-transfer concealment (noncommunicative institutional act) remains;
- the CSAA direction/ratification (noncommunicative oversight) remains.

The claim’s substance rests on this unprotected core. At most, Defendants have identified evidentiary cousins to protected activity — and *Park* expressly forbids converting evidentiary support into arising-from.

III. CONDUCT VS. COMMUNICATION: THE KIMMEL LINE

A. Civil Code Section 47(b) Protects Communications, Not All Conduct

Defendants assert blanket immunity under Civil Code section 47(b), reproducing the statute and a four-part gloss on the litigation privilege. (Anti-SLAPP MPA, pp. 8–9, ll. 1–28 [*L.G. v. M.B.* formulation and related privilege string cites].) But the litigation privilege protects qualifying **communications**, not every act during litigation.

B. The Kimmel Boundary

Kimmel v. Goland (1990) 51 Cal.3d 202, as discussed in *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057, establishes the strict boundary between protected communications and unprotected noncommunicative conduct.

The FAC alleges noncommunicative institutional acts: - File custody failures during the file transfer from Carbone/Chambers to successor counsel - Production-history omission on substitution

- Agency oversight failures by CSAA as institutional principal - Procedural-window narrowing through noncommunicative process failures

These allegations do not reduce to “speech or petitioning activity itself.”

C. Gravamen Matrix — File-Transfer Failure (Analyzed Separately)

The file-transfer failure is a discrete, noncommunicative institutional act. Defendants’ MPA (p.6) acknowledges the transfer occurred “without ensuring proper documentation.” That act is a pre-substitution custody failure by prior counsel, executed by and ratified by CSAA as the institutional principal. It is not a communication to any tribunal; it is a custodial hand-off between law firms.

Defense Abstraction	FAC Actual Act	Classification
“Litigation activity”	File transfer to PSA without production-history conveyance	Noncommunicative institutional conduct (outside § 47(b) and § 425.16)
“Privileged representation”	CSAA direction/ratification of file-transfer defect	Noncommunicative oversight conduct by commercial insurer

C-1. Gravamen Matrix — Court-Facing Misrepresentation (Analyzed Separately)

The court-facing misrepresentation is a distinct, communicative act — but one falling within the extrinsic-fraud and illegal-conduct exceptions. This act is downstream of, and made possible by, the file-transfer failure; it must not be blended with it.

Defense Abstraction	FAC Actual Act	Classification
“Protected petitioning”	Court-facing statements as to evidence provenance that induced exclusion ruling	Communicative, but procurement of ruling by deception — extrinsic fraud / illegal conduct (Flatley exception)

Defense Abstraction	FAC Actual Act	Classification
“Communications made during proceedings”	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme; lulling phase not petitioning at all

The Court should apply Park and Bonni at the proper level of abstraction to each act separately. The defense’s labels do not survive gravamen analysis when the file-transfer and court-facing acts are held apart.

D. Rusheen’s “Necessarily Related” Test Is Not Satisfied

Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058 holds that noncommunicative acts receive § 47(b) protection only where they are “**necessarily related**” to a privileged communication. The inverse follows: where a noncommunicative act is **not** necessarily related to a privileged communication, it falls outside the privilege and, by extension, outside the prong-one umbrella Defendants attempt to import from § 47(b).

The file-transfer, production-history conveyance, and CSAA agency-oversight acts are pre- and post-litigation institutional duties. They exist independent of any specific privileged communication: the duty to convey a file accurately to successor counsel on substitution is a general custodial and professional obligation, not the execution of any particular courtroom filing. (See Gallanis-Politis v. Medina (2007) 152 Cal.App.4th 600, 611 [noncommunicative acts outside privilege scope].) The “necessarily related” hook is absent. Rusheen therefore does not sweep these acts into protected-activity status.

E. Silberg’s Four-Part Test Does Not Erase the Conduct/Communication Line or the Extrinsic-Fraud Exception

Defendants’ papers invoke the familiar four-part formulation for the litigation privilege (Silberg v. Anderson (1990) 50 Cal.3d 205, 212–214) as if it were a universal solvent. Silberg describes when a **communication** in a judicial proceeding is privileged; it does not convert institutional file-custody acts into “communications.” Rusheen, supra, 37 Cal.4th at page 1058, cautiously extends § 47(b) only to noncommunicative acts **necessarily related** to an underlying privileged commu-

1 nication — a narrow tether Defendants’ briefing does not satisfy for the May 4, 2023 transfer
2 allegations.

3 Nor does Silberg address the intersection of § 47(b) with **extrinsic fraud**. Action Apartment
4 Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1246–1247 reaffirms that extrinsic fraud
5 is an exception to the litigation privilege. Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 970
6 supplies the conduct-versus-communication boundary in the post-Rusheen landscape: not every
7 act “during” litigation is a privileged communication merely because counsel performed it.

8

9 **IV. THE ILLEGAL-CONDUCT AND EXTRINSIC-FRAUD STRAND OF**
10 **FLATLEY**

11 Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320–325, conduct that is illegal as a matter of law
12 cannot be protected petitioning. Where, as here, (i) the trial court expressly articulated reliance
13 on defense counsel’s officer-of-the-court candor (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7), and (ii)
14 the certified record later established defense counsel’s admission that the very materials she had
15 denied receiving were “provided by Dolan” (RT 7, Apr. 16, 2025, p. 213, ll. 13–15), the inducing
16 representation is knowingly false as a matter of law. Section 425.16 does not protect it.

17 The Court’s February 28, 2025 articulation is dispositive:

18 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
19 They are an officer of the Court, and they are supposed to conduct themselves appropri-
20 ately before the Court.”

21 — Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:4.

22 That institutional reliance was misplaced, as the April 16, 2025 admission demonstrates. The
23 resulting burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I
24 won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was procured through the very
25 candor the Court relied upon.

IV-A. Scienter is Evident From Defendants’ Own In-Court Contradictions Within a Three-Week Window

Before reaching Defendants’ Flatley arguments, the Court should observe that the scienter requirement for the illegal-conduct exception is satisfied by **Defendants’ own hearing and trial transcripts**. The Judicial Admission Matrix (lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) documents:

Date	Position A (denial/suppression)	Position B (admission/possession)
Jan. 17, 2025	MIL 17: “no production” / “no idea”	—
Jan. 27, 2025	Defense opposes continuance	Plaintiff: “suppress” on record (p. 19)
Jan. 28, 2025	Defense § 581(d) dismissal motion	Court: “immediate reversal” (p. 90)
Feb. 3, 2025	Defense renews § 581(d) under submission	Ex parte disclosure order (pp. 109, 116, 122–124)
Feb. 18, 2025	“news to me” (p. 141)	same hearing : “all this stuff has been in his possession since August” (p. 181)
Apr. 16, 2025	Stacked foundation attacks	“They were provided by Dolan. . .” (RT 7, p. 213)

The Laws-Broken Matrix (Flatley “Illegal as a Matter of Law” Proof)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion (misdemeanor)	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 8.4(c)	Dishonesty, fraud, deceit	Pattern across four hearings.
CCP § 128.5	Bad-faith actions	Procurement of exclusion through false statements.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor; additional illegality hook alongside § 6128(a).

Under Flatley v. Mauro (2006) 39 Cal.4th 299, 320, conduct that is **illegal as a matter of law**—including fraud on the court—falls outside § 425.16 protection. The **three-week whipsaw** between Position A (Jan. 17 MIL) and Position B (Feb. 18 p. 181) establishes illegality conclusively, not just as a factual dispute. The Feb. 18 intra-hearing contradiction (p. 141 vs. p. 181) was made by the **same attorney** on the **same day**—foreclosing any “ignorance” narrative.

A. Defendants’ Selective Reading of Flatley

Defendants quote Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 extensively for its policy paragraph on “finality of judgments”:

“[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result.” (Anti-SLAPP MPA, p.9, ll.17-21, quoting Flatley, 39 Cal.4th at 322)

B. The Illegal-Conduct Exception — Narrow, But Applicable

Defendants quote Flatley’s finality paragraph without addressing Flatley’s illegal-conduct limit. Flatley v. Mauro (2006) 39 Cal.4th 299, 320-325 holds that when petitioning activity is illegal

1 as a matter of law — either conceded or established as a matter of law — it loses Anti-SLAPP
2 protection. Plaintiff acknowledges that the exception is narrow and does not extend to merely
3 disputed illegality. (Id. at 320.)

4 The Court’s operative formulation is: “section 425.16 cannot be invoked by a defendant whose
5 assertedly protected activity is illegal as a matter of law and, for that reason, not protected by
6 constitutional guarantees of free speech and petition.” (Flatley v. Mauro, supra, 39 Cal.4th at
7 p. 320.) Read in tandem with Action Apartment, supra, 41 Cal.4th at pp. 1242–1247, the FAC’s
8 procurement-by-deception theory falls outside the “valid” petitioning Flatley and § 425.16, subd.
9 (a), were enacted to immunize — even before reaching step two’s probability standard.

10 Extrinsic fraud on the tribunal is a recognized common-law tort with criminal analogs: Penal Code
11 § 132 (offering false evidence), § 134 (preparing false evidence), and § 182 (conspiracy). See
12 Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696, 704-705 (filing a knowingly false police report
13 is illegal as a matter of law and not protected activity). The two-phase pattern pleaded — out-of-
14 court lulling followed by induced court-facing misrepresentation — mirrors the conduct Lefebvre
15 held unprotected.

16 Plaintiff does not rest the Anti-SLAPP opposition primarily on Flatley. The primary defeater is
17 the Bonni/Park step-one analysis set out in Sections I-A, II, and II-A above. Flatley operates as
18 a secondary backstop only if the court concludes that any specific court-facing act survives the
19 gravamen parse.

20 **C. Action Apartment: The Extrinsic Fraud Exception**

21 Defendants’ briefing does not discuss Action Apartment Ass’n v. City of Santa Monica (2007) 41
22 Cal.4th 1232, 1242-1247, which establishes that **extrinsic fraud is an exception** to the litigation
23 privilege.

24 At 41 Cal.4th 1242, the Court discussed Silberg and Albertson and clarified the boundaries of the
25 litigation privilege in the context of fraud on the court.

26 This exception is mandatory. Defendants cannot cite Flatley without addressing Action Apartment.
27

V. STEP TWO: MINIMUM-MERIT SHOWING IF REACHED

Defendants contend that if prong one is satisfied, Plaintiff cannot meet prong two’s probability standard. (Anti-SLAPP MPA, pp. 12–13 [citing Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244–1245 and arguing the privilege defeats probability].)

Step two asks only whether Plaintiff has stated and substantiated a legally sufficient claim with “minimum merit” — a low bar. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820 [“not insubstantial”]; Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89 [prima-facie standard]; Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1244-1245.)

V.A The Minimum-Merit Showing

The four elements of extrinsic fraud are: (1) a deliberate deception or concealment by the opposing party or its agents; (2) operating outside the adversary contest such that the complaining party was prevented from fully presenting a claim or defense; (3) actual and reasonable reliance; and (4) resulting prejudice from the lost procedural opportunity. Each element is mapped to a specific paragraph of Plaintiff’s Declaration (Ex. 1 to these Oppositions):

Element	Specific Factual Assertion	Declaration Pin-Cite
(1) Deliberate deception/concealment	Out-of-court representations that authentication of evidence was uncontested, followed by stripped-file transfer to successor counsel on May 4, 2023 substitution	Pl. Decl. ¶¶ 7–10, 15

Element	Specific Factual Assertion	Declaration Pin-Cite
(2) Operating outside the adversary contest	Lulling communications occurred off-record, directed to Plaintiff personally; file-transfer concealment occurred between law firms, outside any courtroom proceeding	Pl. Decl. ¶¶ 7–10, 15–17
(3) Actual and reasonable reliance	Plaintiff forwent pre-trial authentication, subpoena, and continuance motion practice in reliance on the out-of-court posture	Pl. Decl. ¶¶ 11–13, 18–19
(4) Prejudice from lost procedural opportunity	Induced exclusion of evidence; denied continuance; closed discovery window; loss of specific subpoena/authentication opportunity	Pl. Decl. ¶¶ 18–20

V.A-1 Minimum Merit for Count 7 (Constructive Fraud) on the Proposed SAC

If the Court reaches step two as to **Count 7**, the Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415 elements are supported by the same prima facie core as extrinsic fraud: the **Nine-Point Receipt Chain** (Exhibit 2 / Pl. Decl. Section I-B), Plaintiff’s **officer-of-the-court reliance** paragraphs (Pl. Decl. ¶¶ 31–32), the **February 28, 2025** officer-of-the-court colloquy (Hr’g Tr. pp. 291–294), and the **April 16, 2025** admission (RT 7, p. 213, ll. 13–15). Those record anchors supply a confidential or fiduciary advantage, breach, inducement, and harm at the low Navellier / Oasis West threshold.

V.B Step Two Evidentiary Showing If Reached

If the court reaches step two, Plaintiff's minimum-merit showing rests on an unrebutted evidentiary triad:

1. **Defendants' own Anti-SLAPP Demurrer MPA (p.6)**, admitting the file transfer occurred "without ensuring proper documentation." This is party-admission-grade evidence of the noncommunicative institutional act at the center of the FAC.
2. **Plaintiff's Declaration**, establishing (a) the out-of-court lulling communications and the dates and counterparties, (b) the May 4, 2023 substitution timeline, and (c) what Plaintiff would have done differently (subpoena, authentication, continuance) absent the lulling.
3. **Trial transcript**, reflecting the court-facing shift by successor counsel as to evidence profferance and the ensuing evidentiary ruling that excluded the evidence.

The Nine-Point Receipt Chain (Audacity Exhibit)

#	Date	Proof Artifact	Pin cite / Source
1	Aug. 18, 2022	Service of 911 audio by Dolan to CSK	Jessup Tr. Feb. 18, pp. 139-140
2	Aug. 18, 2022	Rosario deposition — Chambers present	Rosario depo tr.
3	Sept. 30, 2022	Abdelhalim deposition — Chambers present	Abdelhalim depo tr.
4	May 4, 2023	CSK → PSA file transfer	Substitution of Attorney
5	Feb. 1, 2024	PSA subpoena for identical materials	Order CA1147102-021

#	Date	Proof Artifact	Pin cite / Source
6	Feb. 26, 2024	PSA receives production from SFPD	Report 210079556
7	Sept. 9, 2024	Plaintiff's FROG/SROG served on Reyna	Discovery records
8	Feb. 18, 2025	Jessup confirms Dolan copy since 2021	Hr'g Tr. p. 139
9	Apr. 16, 2025	ADMISSION OF RECEIPT	RT 7, p. 213

This triad establishes a prima facie case of extrinsic fraud. Under *Oasis West*, 51 Cal.4th at 820 and *Navellier*, 29 Cal.4th at 88-89, that is all step two requires.

V.C Scienter Established by the Seventeen-Page Whipsaw

Plaintiff has more than a minimum of merit on the fraud-on-the-court element because the **scienter admission is in Defendants' own mouths**, seventeen pages apart on a single hearing transcript:

- **Feb. 18, 2025, p. 141:** “our office did not receive the 911 call until the day of the MSC... this is news to me.”
- **Feb. 18, 2025, p. 181:** “we oppose the continuance... the body cam footage, the 911 call, all this stuff has been in his possession since August.”

The intra-hearing contradiction—made by the **same attorney** on the **same day**—forecloses the “ignorance” element of judicial estoppel under *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412, 422. The casual phrasing of Position B (“for whatever, sure”) on April 16, 2025 (RT 7, p. 213) demonstrates that the Dolan origin was a **known, settled fact** within the defense team—not a recent discovery. This is minimum merit on scienter.

V.D Prima-Facie Tribunal Finding on Authentication

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt. On a demurrer or prong-two inquiry, the tribunal’s own finding establishes prima facie authentication by acquiescence under Evidence Code § 1414(b).

V.E Plaintiff’s Contemporaneous Preservation

Plaintiff’s contemporaneous diligence is documented on the transcript:

- **Jan. 27, 2025:** “We have two 911 records that the Defense has been trying to suppress.” (Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)
- **Jan. 27, 2025:** “They’re using weaponization of procedure.” (Hr’g Tr. Jan. 27, 2025, p. 42, ll. 1–8.)
- **Feb. 18, 2025:** “this denial and this delay is very convenient.” (Hr’g Tr. Feb. 18, 2025, p. 166, ll. 1–9.)
- **Feb. 18, 2025:** “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

This contemporaneous record establishes element 3 (reasonable reliance) of City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493: Plaintiff spoke up and was denied relief, which is why his reliance on the prior 883-day silence was reasonable.

V.F — How the SAC Strengthens (But Does Not Replace) the Prong-Two Showing

If the Court reaches prong two, the proposed SAC (offered for the limited purpose stated in § I.F) supplies two pleading advantages that further exceed the minimum- merit threshold without altering the injury-producing acts:

1. **Count 7 (constructive fraud, Civ. Code § 1573; Assilzadeh, supra, 82 Cal.App.4th at p. 415) is scienter-light.** It rests on duty-of-candor breach and the Nine-Point Receipt Chain without requiring proof of intent to deceive, and therefore survives any residual privilege or intent-based attack on Counts 2–3.

1 2. **Count 4 (SAC ¶ 141A) pleads conspiracy only as a joint-liability theory attaching to un-**
2 **derlying torts.** (Applied Equipment, supra, 7 Cal.4th 503.) This forecloses the “freestanding
3 conspiracy tort” objection defendants telegraph.

4 Neither refinement changes the prong-one gravamen already briefed above; they confirm that on
5 the merits the case is more than “minimally” meritorious.

7 **VI. PRECLUSION SUBSECTION: REJECT SINGH WITHOUT CROW-** 8 **LEY**

9 **A. Defendants’ Collateral Estoppel Argument**

10 Defendants invoke F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, Wouldridge v. Burns
11 (1968) 265 Cal.App.2d 82, and Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for a collateral-
12 attack / issue-preclusion shell. (Anti-SLAPP MPA, p. 14, ll. 1–18.)

13 Defendants cite Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826 for the proposition that “col-
14 lateral estoppel precludes relitigation of issues argued and decided in prior proceedings.”

15 **B. Defendants Ignore the Mandatory Crowley Analysis**

16 Singh requires an exact **issue match**. Under Crowley v. Katleman (1994) 8 Cal.4th 666, 681-682,
17 the Court must map the parties, issues actually litigated, and primary rights enforced. Mycogen
18 Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904 confirms California’s primary-right test; Boeken
19 v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798 reinforces that the same primary right must
20 have been at stake in both actions.

21 **The underlying trial** adjudicated the primary right to be free from negligent conduct (car collision
22 liability).

23 **This FAC** asserts the primary right to a fair adversary hearing, free from extrinsic fraud.

24 These are different primary rights. The jury never decided: - Whether the defense withheld pro-
25 duction history during the file transfer - Whether misrepresentations about evidence provenance
26 were made to the judge - Whether those misrepresentations induced procedural rulings

27 Collateral estoppel separately requires that the issue have been “**necessarily decided**” in the prior
28 case. (Lucido v. Superior Court (1990) 51 Cal.3d 335, 341-342.) Extrinsic fraud on the tribunal

— by definition operating outside the merits adjudication — was not and could not have been necessarily decided by a negligence verdict.

Collateral estoppel does not apply without issue-match and necessary decision. Defendants cannot invoke Singh without Crowley, Mycogen, Boeken, and Lucido.

C. Commercial Speech / Insurance Course of Business

Independently, concealment of production history was an administrative, file-management failure by a commercial insurer (CSAA) during a change of vendors (law firms). Under any reasonable classification, such administrative, custodial conduct by a commercial insurer is unprotected business conduct, not petitioning activity within § 425.16(e). Insurance course-of-business administration does not gain protected-activity status merely because it happens to sit adjacent to a covered claim in litigation.

VII. INSURANCE-CHANNEL MISREAD: MORADI-SHALAL PRESERVES FRAUD JURISDICTION

A. Defendants’ Implicit Position

Defendants implicitly argue that Plaintiff cannot sue an insurer as a third party, relying on Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 and companion cases in their coordinated demurrer. (Demurrer MPA, p. 14, ll. 17–24.) The Anti-SLAPP papers channel the same insurer/counsel immunity themes through privilege and “protected activity” labels. (Anti-SLAPP MPA, pp. 8–10 [§ 47(b) overlay and gravamen rhetoric].)

B. Moradi-Shalal Preserves Common Law Fraud Jurisdiction

Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287, specifically at **page 305**, explicitly preserves common law fraud jurisdiction against insurers.

Defendants rely on Shaolian (an assignment case) while ignoring the California Supreme Court’s explicit carve-out for fraud claims. The FAC alleges **institutional agency** under Civil Code section 2338, not a generic third-party claim.

VIII. FEES (FOOTNOTE) AND RECORD FOR REVIEW

Plaintiff reserves, but does not press at this stage, any request under Code of Civil Procedure § 425.16(c)(1).¹

Record for review and frivolousness. If the Court denies this motion **on exemption grounds** under § 425.17, § **425.17(e)** forecloses the usual **interlocutory appeal and automatic stay** under § 425.16(i) and § 904.1(a)(13). If the Court denies the motion on the merits after Cashman step two, any appeal is subject to the standard Hewlett v. Squaw Valley Ski Corp. (1997) 54 Cal.App.4th 499, 510–511 frivolousness review. Plaintiff incorporates the SAC’s § **425.17** and § **425.17(e)** allegations (SAC ¶¶ 18A–18D, 102A–102C) and the **interlocutory-appeal-brief** companion filing.

IX. CONCLUSION

Defendants’ Anti-SLAPP motion fails at every stage:

Statutory Exemptions (threshold): Under § 425.17(c) (and in the alternative § 425.17(b)), one or more causes of action are **outside § 425.16**; if the Court denies the motion on that basis, § **425.17(e)** limits interlocutory review as set forth in Section I-B and **Section VIII**.

Step One (Cashman): Defendants skip the mandatory Park gravamen analysis. The FAC’s gravamen is extrinsic fraud and tribunal reliance, not “speech or petitioning activity itself.” Noncommunicative institutional acts fall outside the litigation privilege under Kimmel.

Privilege Exceptions: Defendants ignore Flatley’s illegal-conduct exception and Action Apartment’s extrinsic fraud exception.

Preclusion: Defendants invoke Singh without performing Crowley’s primary rights mapping. The FAC asserts a different primary right than the underlying negligence trial.

Insurance Channel: Moradi-Shalal preserves common law fraud jurisdiction, which Defendants ignore.

For these reasons, Plaintiff respectfully requests the Court deny the Special Motion to Strike in its entirety.

¹Section 425.16(c)(1) permits a fees award to a prevailing plaintiff only where the motion is frivolous or solely intended to cause unnecessary delay. Plaintiff does not seek fees on this opposition and notes the issue only to preserve it. The primary relief requested is denial of the motion on the doctrinal grounds set out above.

X. RELIEF REQUESTED

Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

1. **Deny the Special Motion to Strike** in its entirety;
2. **Alternatively, grant leave to amend** consistent with Section XI;
3. **Sustain Plaintiff's objections to Defendants' Request for Judicial Notice** as set forth in the companion Objection;
4. **Sustain Plaintiff's evidentiary objections** to the supporting declarations as set forth in the companion Evidentiary Objections; and
5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary Objections.

XI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY

Should the Court conclude that any sub-allegation requires further specificity, leave to amend would cure any identified deficiency. Plaintiff proffers, on leave to amend: (1) the dates and content of specific CSAA directives to defense counsel concerning authentication, provenance, and production history of 911 audio and CAD records, including the CSAA personnel issuing each directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the May 4, 2023 substitution and the specific categories of production-history materials not conveyed; and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff relied to defer authentication, subpoena, and sequencing steps.

These particulars confirm that amendment would not be futile. Under *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, striking under § 425.16 is confined to allegations of protected activity; the claim as a whole survives if it rests substantially on unprotected conduct. Any residual imprecision in pleading the unprotected core can be cured by the proffered specificity, and the request for leave is consistent with the liberal amendment standard.

DATED: April 16, 2026

1 Respectfully submitted,

2 _____
3 FRANCISCUS DYLAN ROSARIO
4 _____

EXHIBIT 1: GRAVAMEN MATRIX (EXPANDED)

Defense Characterization vs. FAC Allegations Under Park

#	Defense Abstraction (Anti-SLAPP MPA)	FAC Actual Allegation	True Gravamen (Park/Bonni Analysis)	Protected Activity?	Specific FAC Paragraph
1	“Privileged litigation conduct” (p.12, l.28)	Out-of-court communica- tions inducing reliance on evidence resolution	Extrinsic fraud channel	NO	FAC ¶¶ 2, 29–33
2	“Litigation activity” (p.7, l.8)	File transfer without proper production history conveyance	Noncommunicat institutional conduct	NO	FAC ¶¶ 34–39
3	“Judicial proceeding” (p.12, l.28)	Misrepresentation to Court about receipt and provenance	Tribunal reliance, process corruption	Exception applies (Flat- ley/Lefebvre)	FAC ¶¶ 40–47

#	Defense	FAC Actual Allegation	True	Protected Activity?	Specific FAC Paragraph
	Abstraction (Anti-SLAPP MPA)		Gravamen (Park/Bonni Analysis)		
4	“Defending the insured” (p.13, l.2)	CSAA direction and ratification of deceptive conduct as principal	Agency liability, Civ. Code § 2338	NO	FAC ¶¶ 7, 48–55
5	“Protected petitioning” (implied throughout)	Procedural-window narrowing through induced rulings	Structural hearing impairment	NO	FAC ¶¶ 46–47
6	“Communication made during proceedings” (p.9, l.17)	Two-phase pattern: out-of-court lulling, then court-facing shift	Coordinated extrinsic-fraud scheme	Exception applies	FAC ¶¶ 2, 45

Eight Sentences from Defendants’ MPA That Misstate California Law

#	Location	Sentence	Why It Misstates the Law
1	p.8, l.4-6	Digerati extends privilege to pre-litigation statements	Digerati addresses communications; does not subsume noncommunicative fraud channels
2	p.9, ll.17-21	Flatley finality paragraph as universal bar	Omits Flatley's illegal-conduct exception
3	p.12, ll.27-28	Pollock resolves doubts in favor of privilege	Pollock only applies after privilege coverage is established; does not delete Park
4	p.13, ll.20-22	Park supports Anti-SLAPP for any litigation-related claim	Park requires gravamen isolation, which Defendants skip
5	p.13, ll.25-26	Singh collateral estoppel as automatic bar	Singh requires issue-match under Crowley
6	p.8, ll.17-19	Bergstein protects all litigation statements	Does not address extrinsic fraud exception
7	p.12, l.11	Briggs equalizes section 425.16 and section 47(b)	Coordination does not erase exceptions in either doctrine

#	Location	Sentence	Why It Misstates the Law
8	p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations and cannot be made at this stage

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Applied Equipment Corp. v. Litton Saudi Arabia Ltd. (1994) 7 Cal.4th 503	40A
Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399	40B

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Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S COMBINED
OBJECTION TO RFJN AND
EVIDENTIARY OBJECTIONS TO
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth. Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not extend to the truth of hearsay statements or disputed facts within that document.

“While courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482-483.)

Accord *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking judicial notice of a document, accept the truth of factual assertions appearing in it, because those assertions are hearsay); *Unruh-Haxton v. Regents of Univ. of California* (2008) 162 Cal.App.4th 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal effect of rulings; it does not extend to the truth of factual matters asserted in those records); *People*

1 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
2 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
3 contained in the record).

4 **C. The Facial Test Rule**

5 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
6 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
7 into the demurrer record.

9 **III. OBJECTIONS TO DEMURRER REJN (CLERK FILE NO. 10157173)**

10 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
11 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
12 Superior Court Case No. CGC-21-594102.

13 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 14 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
15 dicted
- 16 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
17 ing well-pleaded allegations
- 18 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous
19 and cannot be used to recharacterize its allegations.

20 **(b) Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 21 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
24 disputed claim-splitting questions on demurrer.

25 **(c) Exhibit C — Register of Actions, CGC-21-594102**

- 26 • **What defense uses it to prove:** That “all issues” were litigated below
- 27 • **Objection:** OBJECT to improper use
- 28 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.

Docket entries do not establish the substantive scope of what was decided.

(d) **Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)**

- **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
- **Objection:** OBJECT
- **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does not prove the adequacy or completeness of the underlying file transfer — the central disputed fact.

(e) **Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)**

- **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion papers are hearsay as to their factual assertions (Sosinsky).

(f) **Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(g) **Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(h) **Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)**

- **What defense uses it to prove:** That MIL rulings foreclose the present claims
- **Objection:** OBJECT to improper use
- **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.

(i) **Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)**

- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues

1 • **Objection:** OBJECT

2 • **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed
3 sufficiency of evidence, not extrinsic fraud in procurement.

4 (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**

5 • **What defense uses it to prove:** Same as Exhibit I

6 • **Objection:** OBJECT

7 • **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.

8 (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** Same

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.

12 (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**

13 • **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues

14 • **Objection:** OBJECT

15 • **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive
16 with an independent extrinsic-fraud action.

17 (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

18 • **What defense uses it to prove:** Same

19 • **Objection:** OBJECT

20 • **Grounds:** Hearsay; Sosinsky.

21 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**

22 • **What defense uses it to prove:** That FAC claims lack merit / are precluded

23 • **Objection:** OBJECT to improper use

24 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
25 fraud allegations were adjudicated.

26 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
27 **(CGC-21-594102)**

28 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected

- 1 • **Objection:** OBJECT
- 2 • **Grounds:** Existence only; object to use for truth.
- 3 (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
- 4 • **What defense uses it to prove:** Same — preclusion by prior denial
- 5 • **Objection:** OBJECT to improper use
- 6 • **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- 7 (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
- 8 • **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
- 9 • **Objection:** OBJECT on relevance
- 10 • **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent
- 11 equitable action for extrinsic fraud.
- 12 (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
- 13 • **What defense uses it to prove:** Same
- 14 • **Objection:** OBJECT on relevance
- 15 • **Grounds:** Same grounds as Q.
- 16 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
- 17 • **What defense uses it to prove:** That a facially valid judgment bars this action
- 18 • **Objection:** OBJECT to improper use
- 19 • **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- 20 (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
- 21 • **What defense uses it to prove:** Claim-splitting / duplication
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Same grounds as Exhibit B.

25 **IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)**

26 The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of
27 Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are addi-
28 tional to, and cumulative with, the objections stated in Section III.

1 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 2 • **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- 3 • **Objection:** OBJECT to improper use
- 4 • **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot
- 5 substitute for prong-one gravamen analysis.

6 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 7 • **What defense uses it to prove:** Prong-two “lacks minimal merit”
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial
- 10 notice of a separate pleading.

11 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 12 • **What defense uses it to prove:** That all issues were previously litigated (prong two)
- 13 • **Objection:** OBJECT
- 14 • **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

15 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 16 • **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- 17 • **Objection:** OBJECT
- 18 • **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-
- 19 Haxton).

20 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 21 • **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- 22 • **Objection:** OBJECT
- 23 • **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

24 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 25 • **What defense uses it to prove:** Same
- 26 • **Objection:** OBJECT
- 27 • **Grounds:** Same grounds as E.

28 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

1 • **What defense uses it to prove:** Same

2 • **Objection:** OBJECT

3 • **Grounds:** Same grounds as E.

4 (h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

5 • **What defense uses it to prove:** That MIL rulings foreclose prong-two merits

6 • **Objection:** OBJECT to improper use

7 • **Grounds:** Existence/legal effect only; no notice of factual recitals.

8 (i) **Exhibit I — Plaintiff's JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** That Plaintiff previously raised these issues

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

12 (j) **Exhibit J — Plaintiff's Decl. ISO JNOV (CGC-21-594102)**

13 • **What defense uses it to prove:** Same

14 • **Objection:** OBJECT

15 • **Grounds:** Hearsay in court file; Arce.

16 (k) **Exhibit K — Defendant's Opposition to JNOV (CGC-21-594102)**

17 • **What defense uses it to prove:** Same

18 • **Objection:** OBJECT

19 • **Grounds:** Hearsay; adversarial characterizations.

20 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**

21 • **What defense uses it to prove:** Same

22 • **Objection:** OBJECT

23 • **Grounds:** Not co-extensive with extrinsic-fraud action.

24 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

25 • **What defense uses it to prove:** Same

26 • **Objection:** OBJECT

27 • **Grounds:** Hearsay.

28 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**

- **What defense uses it to prove:** That FAC claims lack minimal merit
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; no notice for truth.
- (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only.
- (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Pendency / jurisdictional effect
 - **Objection:** OBJECT on relevance
 - **Grounds:** Does not divest this Court of jurisdiction.
- (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** Facially valid judgment bars action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Facial validity does not preclude extrinsic-fraud attack.
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting
 - **Objection:** OBJECT to improper use
 - **Grounds:** Hearsay; characterizations; merits inference.

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants' RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

1 **C. Matters Outside the Issues Decided**

2 Defendants conflate what the underlying trial adjudicated with the FAC's allegations of extrinsic
3 fraud.

4 **The underlying trial decided:** Whether the Insured was negligent and liable for the car collision.

5 **The underlying trial did not decide:** - Whether Defendants withheld production history dur-
6 ing the file transfer - Whether Defendants made misrepresentations to the Court about evidence
7 provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff
8 was deprived of a fair adversary hearing through extrinsic fraud

9 Judicial notice of the trial record cannot establish that these issues were adjudicated.

10 **D. Issue-Preclusion by Judicial Notice**

11 Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could
12 only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine,
13 post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that
14 every issue relevant to this action was already decided below.

15 That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, ac-
16 tual litigation, necessary determination, and finality. Judicial notice under Evidence Code section
17 452(d) establishes none of those elements; it establishes only that documents exist and that spec-
18 ified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565;
19 Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot "notice"
20 its way to preclusion.

21 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

22 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
23 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
24 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
25 a document and a disputed legal conclusion.

26 The same bootstrap underlies Defendants' repeated "presented to the jury" refrain: notice the
27 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
28 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved

1 for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375;
2 Sosinsky, 6 Cal.App.4th at 1564-1565.)

3 4 **VI. THE PROPER SCOPE OF JUDICIAL NOTICE**

5 Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The
6 verdict form - Post-trial orders - The notice of appeal - Other court records

7 Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents -
8 Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual
9 conclusion that contradicts the FAC's well-pleaded allegations

10 **VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice**

11 Defendants' RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-**
12 **preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant
13 (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party
14 is entitled to introduce contextually related portions.

15 **Objection:** Plaintiff objects to Defendants' piecemeal notice and asks the Court to take notice of
16 the **whole transcripts** identified in Plaintiff's RFJN Items X–BB, which include:

- 17 • Hr'g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff's "suppress" objection;
18 FROG/SROG confirmation; denial of continuance).
- 19 • Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order).
- 20 • Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff's "concealed" and "going on the
21 record" statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

22 The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356's "rule of
23 completeness," the Court should either take the whole transcripts or decline to take the defense
24 fragment.

25 **VI.A The "Presented to the Jury" Argument Is a Merits Inference That Exceeds Judicial** 26 **Notice**

27 Defendants' central refrain across both RFJNs — that the 911 calls, body-cam footage, and related
28 materials were "presented to the jury" and therefore no fraud can have occurred — is not a request

1 for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

2 1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits,
3 (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified
4 rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459;
5 Unruh-Haxton, 162 Cal.App.4th at 364-365.)

6 2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly
7 presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and
8 chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d)
9 that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each
10 of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565;
11 Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)

12 3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept
13 from the adversary proceeding — misrepresentations about provenance, undisclosed chain-
14 of-custody facts, and concealed production history. Judicial notice of what was shown to the
15 jury is logically incapable of negating what was withheld from the jury. The “presented to the
16 jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.

17 4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference
18 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
19 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.

20 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
21 verdict. It should decline to notice any inference — express or implied — that the verdict or the
22 trial record negates the extrinsic-fraud allegations of the FAC.

24 VII. CONCLUSION

25 Defendants’ RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
26 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
27 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
28 truth of contents.

Plaintiff respectfully requests the Court:

1. Sustain objections to judicial notice for the truth of disputed facts
2. Sustain objections to judicial notice of hearsay statements in court records
3. Sustain objections to judicial notice of matters outside the issues decided
4. Apply the facial test rule and accept FAC allegations as true

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)

Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)

Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler J. O’Connell. The consolidated ruling requested is as follows:

(a) Exhibit A — Plaintiff’s FAC (CGC-25-631801)

- **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

(b) Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)

- **Ruling requested:** Notice existence ONLY; object to truth/characterizations

(c) Exhibit C — Register of Actions (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication

(d) Exhibit D — Substitution of Defense Counsel (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy

(e) Exhibit E — MIL #6 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(f) Exhibit F — MIL #8 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(g) Exhibit G — MIL #17 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

- 1 (h) **Exhibit H — Order re Trial Scheduling and MILs**
- 2 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 3 (i) **Exhibit I — Plaintiff’s JNOV Motion**
- 4 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 5 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
- 6 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 7 (k) **Exhibit K — Defendant’s Opposition to JNOV**
- 8 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 9 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
- 10 • **Ruling requested:** Notice existence ONLY; object to truth
- 11 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
- 12 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 13 (n) **Exhibit N — Order on Post-Trial Motions**
- 14 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 15 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
- 16 • **Ruling requested:** Notice existence ONLY; object to truth
- 17 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**
- 18 • **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- 19 (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
- 20 • **Ruling requested:** OBJECT on relevance
- 21 (r) **Exhibit R — Plaintiff’s Notice Designating Record**
- 22 • **Ruling requested:** OBJECT on relevance
- 23 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
- 24 • **Ruling requested:** Notice existence ONLY; object to preclusion inference
- 25 (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- 26 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 27
-

PART B — EVIDENTIARY OBJECTIONS TO DEFENDANTS’ DECLARATIONS

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on personal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

1 **C. Hearsay Inadmissible**

2 Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation
3 of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their
4 truth is hearsay.

5 **D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)**

6 A declaration is only competent evidence if it complies with Code of Civil Procedure section
7 2015.5, including certification under penalty of perjury under the laws of California, date and
8 place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not
9 “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

10 **E. Strategic Framing of These Objections**

11 These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sus-
12 tained, removes a specific factual predicate on which Defendants’ motions depend:

- 13 1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their
14 own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or
15 relied upon. Those are facts within PSA’s knowledge, not Defendants’.
- 16 2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was
17 “complete” or “properly transferred” lacks foundation unless the declarant identifies what the
18 file contained, what was indexed, what production history (including discovery responses,
19 deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
- 20 3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase
21 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
22 — is a live factual dispute. A declaration cannot retroactively transform disputed process
23 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
24 can do that.
- 25
-

III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE NO. 10152298)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the litigation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the jury decided” is not within declarant’s personal knowledge; the trial record — not a summary declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed remedy:** Sustain / Disregard.
5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresentation.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and without merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800, 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.
7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Objection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true.

Proposed remedy: Disregard / Sustain.

8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and complete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer contents; completeness claim must be supported by the underlying index/log, not a bare summary. **Proposed remedy:** Strike / Sustain.

9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (successor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowledge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sustain.

IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK FILE NO. 10157177)

1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code § 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike / Sustain.

2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and speculative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.

3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.

4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.

- 1 5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from
2 relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800.
3 Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:**
4 Strike / Sustain.
- 5 6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by suc-
6 cessor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code
7 §§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA
8 said or understood. **Proposed remedy:** Strike / Sustain.
- 9 7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to succes-
10 sor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:**
11 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “com-
12 plete file” means, what was indexed, and what production history was conveyed; underlying
13 transfer log/index not attached. **Proposed remedy:** Strike / Sustain.
- 14 8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evi-
15 dence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702,
16 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed**
17 **remedy:** Strike / Sustain.
- 18 9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was
19 conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court
20 orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:**
21 Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained
22 and what specifically was conveyed; underlying documents not produced. **Proposed remedy:**
23 Strike / Sustain.
- 24 10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Cham-
25 bers’s prior discovery responses, deposition testimony, or prior court filings regarding the
26 scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction
27 of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of
28 Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128

Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing.
Proposed remedy: Disregard / Strike.

11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.”
Objection(s): Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectionable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectionable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant declarations are not competent evidence. **Proposed remedy:** Disregard in full.

VI. SUMMARY OF OBJECTIONS BY CATEGORY

A. Legal Conclusions (Evidence Code § 800)

The following statements are impermissible legal conclusions: - “privileged litigation conduct” - “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

Ruling requested: SUSTAIN all objections. These are legal conclusions for the Court, not facts within declarant’s personal knowledge.

B. Lack of Personal Knowledge (Evidence Code § 702)

The following statements lack foundation for personal knowledge: - What “the jury decided” - What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained - What successor counsel (PSA) received, understood, or relied upon

Ruling requested: SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie, 99 Cal.App.4th at 30.)

C. Hearsay (Evidence Code § 1200)

Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

Ruling requested: SUSTAIN hearsay objections.

D. Improper Argument

Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

Ruling requested: SUSTAIN objections to argumentative material.

E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)

Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based summaries of writings are inadmissible to prove the content of those writings where the originals (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [secondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral testimony inadmissible to prove content of writing].)

1 **Specific application:** Defendants’ declarations repeatedly reference the “complete file,” what was
2 “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of
3 writings — without attaching the transfer index, the trial record, or the underlying orders. These
4 portions must be excluded.

5 **Ruling requested:** SUSTAIN. Strike all secondary-summary passages and exclude from eviden-
6 tiary consideration on both the Demurrer and the Anti-SLAPP motion.

7 **F. Non-Compliance with Code Civ. Proc. § 2015.5**

8 Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not
9 competent evidence and must be disregarded in its entirety.

10 **G. Failure of Burden (Global)**

- 11 • **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and**
12 **arguments without foundation, Defendants have failed to introduce any admissible evi-**
13 **dence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations**
14 **regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary**
15 **record.**

16 **H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement**

17 For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or
18 equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment**
19 **by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript mate-
20 rial from background to admissible substantive evidence.

- 21 • **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
22 **Impeaching passage:** Feb. 18, 2025, p. 181: “all this stuff has been in his possession since
23 August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; im-
24 peaches the “news to me” posture.
- 25 • **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching**
26 **passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**
27 Substantive evidence of Dolan origin; impeaches “unknown provenance.”
- 28 • **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching**

1 **passage:** Feb. 1, 2024 Compex subpoena (Order No. CA1147102-021) requesting identical
2 materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now
3 deny receiving.

- 4 • **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8,
5 p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication;
6 waiver of authenticity dispute.

7 **Ruling requested:** Sustain objections and deem the transcript passages admissible as substantive
8 evidence under § 1235 to impeach each corresponding declaration assertion.

10 **VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIES-** 11 **CENCE AS EVIDENTIARY BARS TO DEFENDANTS’ DECLARATIONS**

12 **A. The Triangulation Framework**

13 The evidentiary objections set forth in Sections III–VI above operate in conjunction with three
14 independent estoppel doctrines that foreclose Defendants’ ability to introduce any competent evi-
15 dence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

- 16 1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days re-
17 garding the authenticity and provenance of the 911 audio, body-worn camera footage, and
18 CAD logs—then asserted, on the eve of trial, that these materials were of “unknown prove-
19 nance” and “news to me.” This was silence in the face of materials whose content included
20 a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff’s own
21 voice, and independent eyewitness corroboration—core liability evidence that a reasonable
22 attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute.
23 Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants’ silence where
24 speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are
25 estopped from now contesting what they acquiesced to for nearly two and a half years.
- 26 2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-
27 rials at issue—specifically, the 911 audio (including Abdelhalim’s admissions, the operator’s
28 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff’s own recorded

voice identifying the striking vehicle) and the BWC (including the independent Rosemond eyewitness statement and Plaintiff’s own on-scene statement)—as authentic through: (a) **receipt in August–September 2022 discovery and sworn deposition course** (Rosario deposition August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present; 911-related testimony) **without a timely written authenticity or provenance challenge in the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”). Under § 1414(b), this course of conduct authenticates the materials and waives any authenticity challenge asserted for the first time in declarations supporting the current motions.

3. **Sham-Affidavit Rule (D’Amico, Scalf)**: If any portion of the Chambers declaration or the Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testimony, or the file-transfer records regarding what was conveyed to successor counsel, the sham-affidavit rule bars reliance on those contradictory statements to create a triable issue. D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

B. Application to the “Complete File” Assertions

The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

1. **Lack of Foundation (Evid. Code § 702)**: The declaration does not establish what specific production history was conveyed, what index or transfer log was used, or how declarant verified “completeness.”
2. **Estoppel by Silence**: If the file was indeed “complete,” why did successor counsel represent in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came from”? The 883-day silence—followed by the “unknown provenance” representations—is irreconcilable with a “complete transfer” position. Defendants cannot now introduce declarations claiming completeness when their own court-facing representations assumed the opposite.

1 **3. Authentication by Acquiescence:** The materials at issue were treated as authentic from
2 September 2022 through January 2025. A declaration asserting that the materials were some-
3 how “not properly conveyed” contradicts the defense’s own course of conduct and is barred
4 under § 1414(b).

5 **C. Application to the “News to Me” Contradiction**

6 The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for what-
7 ever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration
8 that attempts to rehabilitate the “news to me” position is:

- 9 1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit
10 rule;
- 11 2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th
12 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B
13 (“provided by Dolan”) is totally inconsistent;
- 14 3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood
15 or believed (Evid. Code § 1200).

16 **D. Ruling Requested**

17 The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem
18 the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3)
19 estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623
20 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or
21 “no knowledge” as barred by the sham-affidavit rule.

23 **VII. CONCLUSION**

24 Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-
25 evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot
26 substitute for record proof of what was actually conveyed during the attorney-substitution process
27 and what the trial court was told and relied upon. Those are record facts, provable only through
28 the record itself — transfer indices, discovery responses, deposition transcripts, minute orders,

and reporter's transcripts — not through after-the-fact characterizations by interested declarants. These objections preserve the record and request the Court exclude all inadmissible material from consideration on both the Demurrer and the Special Motion to Strike.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)

Declaration 10152298 (Anti-SLAPP)

1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Strike.
2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Strike.
3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation / secondary evidence) — **Proposed remedy:** Disregard.
4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) — **Proposed remedy:** Disregard.
5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) — **Proposed remedy:** Strike.
6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Proposed remedy:** Strike.
7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) — **Proposed remedy:** Disregard.
8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.
9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge; hearsay) — **Proposed remedy:** Strike.

Declaration 10157177 (Demurrer / Chambers)

10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foundation) — **Proposed remedy:** Strike.

14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
Proposed remedy: Strike.

16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.

17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2^o evidence re PSA conveyance) — **Proposed remedy:** Strike.

19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / contradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

Declaration 10057589 (Meet-and-Confer)

21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence) — **Proposed remedy:** Strike.

22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

1 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
2 **Proposed remedy:** Disregard.

3 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
4 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

5 _____
6 **DATED:** April 16, 2026

7 Respectfully submitted,
8 _____

9 FRANCISCUS DYLAN ROSARIO

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION AND REQUEST FOR
JUDICIAL NOTICE IN SUPPORT OF
OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE "SMOKING-GUN" PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." > (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that "credibility" and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense's non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > "Sure. They were provided by Dolan. He has had them for whatever, sure." > (RT 7, p. 213, ll. 13–15.)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers' presence.
3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal knowledge / record basis: I attended the deposition; 911-related testimony was given.
4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 admission.

II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:

“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”

4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:

“All the alleged conduct occurred squarely within the judicial proceeding.”

5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded allegations were true and assert only legal immunity.
6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: service of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the

September 30, 2022 deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.

9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the extent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.
10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the **“unknown provenance” / “not produced”** position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s

“news to me” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).

13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and **deferral / limitation rulings** on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter’s transcripts and minute orders for Case No. CGC-21-594102.
14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel’s court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to

accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants’ exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the 911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).
22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional principal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
 - a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter's transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).

- c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.
-

IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:
1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
 2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
 3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
 4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
 5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (**pp. 139–141**) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
 6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.

7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)
-

X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.
-

X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:

“We have two 911 records that the Defense has been trying to suppress.”

(Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr’g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.

X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr’g Tr. pp. 291:26–292:7). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294).

32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.

XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.

34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set

aside a judgment procured through fraud on the tribunal as described above.

XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).
36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.
37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

FRANCISCUS DYLAN ROSARIO

PART II — REQUEST FOR JUDICIAL NOTICE (COURT RECORDS AND AUTHORITIES)

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records

necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state."

This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pin cites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and

to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pin cites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pin cites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pin cites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pin cites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see **Bench Binder App. 2**) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see **Bench Binder App. 5**). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see **Bench Binder App. 3**). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s consolidated Brief Re: Fraud on the Court; Estoppel; and Exhibit-by-Exhibit Estoppel Record (filed concurrently with these oppositions). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (see **Bench Binder App. 6**). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.
- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites

pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.

- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

PART III — REQUEST FOR JUDICIAL NOTICE (CERTIFIED HEARING TRANSCRIPTS) — FOLDED INTO RJN PACKAGE

I. RELIEF REQUESTED

Plaintiff requests that the Court take **judicial notice** under **Evid. Code § 452(d)** (official acts of a public entity), **§ 453** (proceedings of a court of record), and **Cal. Rules of Court, rule 3.1306(c)** (reporter’s transcript of proceedings in the same case), of the **certified reporter’s transcripts** of the following hearings in Rosario v. Abdelhalim, CGC-21-594102 (and related register entries as appropriate):

1. **January 27, 2025** hearing transcript (excerpts cited in SAC Exhibit K).

2. **January 28, 2025** hearing transcript (SAC Exhibit L).
3. **February 18, 2025** hearing before the Garrett L. Wong (Sandra L. Carranza, CSR 7062) (SAC Exhibits C and M).
4. **February 28, 2025** hearing transcript (SAC Exhibit N).

II. SOURCE DOCUMENTS (DECLARATION ATTACHMENT LIST)

Declarant will identify the **certified reporter's transcripts** for the hearings listed in Section I, including the same materials designated among the transcript excerpts in Plaintiff's Second Amended Complaint Exhibit Appendix (Exhibits K, L, C, M, N, O, P, and Q, as applicable). True and correct copies will be attached to any declaration filed in support of this request; conformed or clerk-certified copies may be lodged with the Court on order.

III. COVER SHEET: PAGE AND LINE CITES USED IN SAC AND COMPANION DRAFTS

Topic	Citation	Used in
MIL framing	Hr'g Tr. Jan. 27, 2025, p. 7, ll. 10–14	SAC ¶¶40; Exhibit K
Continuance opposition / 883-day denial	Jan. 27, pp. 15, 57	SAC ¶¶41, 112(b); Exhibit K
Navaratnasingham hearing statements	Jan. 27, pp. 16, 19	SAC ¶126(c)–(d); Exhibit K
CCP § 581(d) dismissal motion	Jan. 28, p. 90, ll. 17–33	SAC ¶40(c); Exhibit L
2021 transmission / production	Feb. 18, p. 139, l. 11	SAC ¶¶26, 68; Exhibit M

Topic	Citation	Used in
Jessup production quotes	Feb. 18, pp. 140–141	SAC ¶¶42; Appendix 10; Exhibit M
MSC-date / “news to me”	Feb. 18, p. 141, ll. 4–11	SAC ¶¶43; Exhibit C/M
Service on prior firm	Feb. 18, p. 141, ll. 18–23	Appendix 10; Exhibit M
SFPD direct BWC links	Feb. 18, p. 145, ll. 4–18	Brief 09 §III.A; Appendix 10; Exhibit M
Continuance requests	Feb. 18, pp. 147, 151, 164	SAC ¶¶47(a); Exhibit M
Position-B possession / oppose continuance	Feb. 18, p. 181, ll. 6–23	SAC ¶¶88, 112(b); Exhibit M
Protective-order posture	Feb. 28, pp. 296–307	SAC ¶¶47(f); Exhibit N
Trial Day 7 sequence	RT 7 (multiple lines)	SAC ¶¶58–63, 99; Exhibit O
Trial Day 8 / read-back	RT 8, PG 12–14, 1958–1959, pp. 1990–1993	SAC ¶¶46–47; Exhibit P
Closing argument	RT 10, pp. 1011–1012	SAC ¶¶45, 112(b); Exhibit Q

IV. DECLARATION SHELL (TEXT FOR PROPOSED DECLARANT)

1. I am a person with knowledge of the facts stated herein / I am Plaintiff / I am counsel of record [select one].
2. Attached as Exhibit [...] are true and correct copies of [certified hearing transcript PDFs] for the hearings listed in Section I.
3. The page and line citations in the cover sheet (Section III) match the pagination of the attached certified transcripts.
4. I will lodge conformed or clerk-certified copies of the reporter’s transcripts with the Court on order, consistent with the Court’s rules and any direction from the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

Declarant

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO,

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S CONSOLIDATED BRIEF
RE: FRAUD ON THE COURT;
ESTOPPEL; AND EXHIBIT RECORD**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

1 **PLAINTIFF’S CONSOLIDATED BRIEF RE: FRAUD ON THE COURT;**
2 **ESTOPPEL; AND EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD**
3

4 **I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION**
5 **IS ABOUT**

6 This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the
7 heart of this case is a sequence of events where defense counsel, acting as officers of the court,
8 procured a series of structural rulings against Plaintiff by representing that they had never received
9 critical evidence—representations that the record now proves were false.

10 **I.A. THE COURT’S ARTICULATED RELIANCE**

11 On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the
12 defense and the subsequent rulings against Plaintiff:

13 “I’m not going to question a lawyer’s remarks regarding what they have and don’t have.
14 They are an officer of the Court, and they are supposed to conduct themselves appropri-
15 ately before the Court. If they are not, there are other sanctions that they could suffer
16 here. So far I haven’t heard or seen anything on the part of the current law firm which
17 tells me that they have conducted themselves improperly.” — The Court (Garrett L.
18 Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

19 **I.B. THE RULINGS PROCURED FROM THAT RELIANCE**

20 Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court
21 issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- 22 • **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- 23 • **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- 24 • **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- 25 • **Continuance Denied** (Feb. 18, p. 181)
- 26 • **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- 27 • **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pin cite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pin cite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pin cite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pin cite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pin cite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pin cite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pin cite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup ("since 2021")**
 - **Proof artifact:** Jessup testifies "since 2021"
 - **Pin cite / Source:** Hr'g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pin cite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

PART I — FRAUD ON THE COURT

PART II — LEGAL FRAMEWORK

§II.A — Fraud on the Court (Hazel-Atlas / Stevenot / Modnick / Chambers)

Fraud on the court is “a wrong against the institutions set up to protect and safeguard the public.” (Hazel-Atlas, *supra*, 322 U.S. at 246.) It involves “fraud which is directed to the judicial machinery itself” and is not merely an “ordinary” case of fraud between litigants. (*Stevenot v. Harbany* (1984) 154 Cal.App.3d 1051.) When an officer of the court misleads the judge, the very foundation of the adversary system is compromised.

§II.B — Extrinsic Fraud — The Four Channels (Kulchar / Westphal / Kougasian / Olivera)

Extrinsic fraud exists when a party is “kept from presenting his case to the court” by the “fraud or deception of his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) California courts recognize four primary channels of extrinsic fraud, all present here: 1. **Concealment** of facts that would have permitted a full contest. 2. **False promises** of cooperation (or in this case, false representations of non-receipt). 3. **Keeping the party in ignorance** of the true state of the record. 4. **Misleading the tribunal** to procure a structural advantage.

§II.C — Attorney Deceit — Bus. & Prof. Code § 6128(a) (Rickley / Shaffer)

Under § 6128(a), an attorney who is “guilty of any deceit or collusion, with intent to deceive the court or any party” is guilty of a misdemeanor and liable for treble damages. This statute reflects the high duty of candor required of those licensed to practice before the bar.

§II.D — Duty of Candor — Rule of Professional Conduct 3.3 (Jones / Datig)

Rule 3.3 prohibits a lawyer from knowingly making a “false statement of fact or law to a tribunal.” This duty is absolute and supersedes the duty of zealous advocacy. (*Datig v. Dove Books, Inc.* (1999) 73 Cal.App.4th 964.)

§II.E — Suppression / Spoliation Analogs — CCP § 2023 (Williams / Slesinger / Peat Marwick)

The systematic denial of receipt of evidence—while in possession of that evidence—is a form of discovery misuse and evidence suppression that warrants the most severe sanctions, including

terminating sanctions. (Slesinger, Inc. v. Walt Disney Co. (2007) 155 Cal.App.4th 736.)

§II.F — Constructive Fraud — Civ. Code § 1573 (Assilzadeh)

Constructive fraud under Civ. Code § 1573 is the breach of a legal or equitable duty arising from a confidential or fiduciary relationship, by a misleading act or nondisclosure, without proof of intent to deceive. (Assilzadeh v. California Federal Bank (2000) 82 Cal.App.4th 399, 415.) In the officer-of-the-court posture that fraud-on-the-tribunal authorities such as Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238 address, § 1573 is the **civil-side parallel** to the duty Judge Wong articulated on February 28, 2025: counsel are “supposed to conduct themselves appropriately before the Court” (Hr’g Tr. p. 292, ll. 1–4). When the record later proves the tribunal’s reliance on that posture was misplaced (RT 7, p. 213, ll. 13–15), the breach-of-candor framework ties the fraud-on-the-court narrative to cognizable tort elements, not only to professional discipline.

PART III — THE 801 RECORD: A PARADIGMATIC FRAUD ON THE COURT

§III.A — Phase 1: The 893-Day Silence (Aug. 18, 2022 → Jan. 27, 2025)

For nearly 900 days, defense counsel remained silent about their receipt of the 911 audio, despite repeated references to the material in depositions and discovery.

§III.B — Phase 2: The May 4, 2023 File-Transfer Concealment

When PSA substituted in for CSK, the entire case file—including the 911 CDs served in 2022—was transferred. Yet PSA proceeded as if the CDs did not exist.

§III.C — Phase 3: The Four-Hearing Denial Arc (Jan 27 / Feb 18 / Feb 28 / Apr 16)

Defense counsel made eighteen (18) separate on-the-record statements denying receipt across four critical hearings, escalating the deception at each stage.

§III.D — Phase 4: The Officer-of-Court Reliance Procurement (Feb 28)

Counsel explicitly invoked their status as “officers of the court” to convince the Court that Plaintiff’s counsel was the one misrepresenting the record.

1 **§III.E — Phase 5: The Burden-Shift Weaponization**

2 The Court, believing defense’s “officer of the court” representations, shifted the burden of proof to
3 Plaintiff to justify why the case should not be dismissed for his alleged “discovery failures.”

4 **§III.F — Phase 6: The Trial-Day Admission**

5 On April 16, 2025, when the record could no longer be suppressed, defense counsel finally admit-
6 ted: “Sure. They were provided by Dolan. He has had them for whatever, sure.” This admission
7 retroactively branded every previous denial as a fraud on the court.

8
9 **PART IV — WHY THIS IS FRAUD ON THE COURT**

10 **§IV.A — Express Tribunal Reliance**

11 Unlike intrinsic fraud (e.g., perjury by a witness), this fraud was directed at the judge. The Court’s
12 own statements on Feb. 28 prove that its rulings were the “fruit” of this fraudulent seed.

13 **§IV.B — Structural Procedural Consequences**

14 This was not an argument over the weight of the CDs. It was an argument over whether Plaintiff
15 had complied with the rules of court. By lying about receipt, defense counsel induced the Court to
16 punish Plaintiff for a rule violation that never occurred.

17 **§IV.C — Officer-of-the-Court Betrayal (Rule 3.3 + § 6128(a) overlap)**

18 The fraud is compounded by the fact that it was committed by licensed attorneys who used their
19 professional status as a shield for their deception.

20 **§IV.D — Cross-Hearing Sustained Pattern**

21 This was not a “slip of the tongue.” It was a sustained, multi-month campaign of deception.

22 **§IV.E — Pre-emption of Defense Doctrines**

23 Defense cannot hide behind the litigation privilege (Civ. Code § 47(b)) because that privilege does
24 not apply to “illegal” conduct as a matter of law (Flatley v. Mauro (2006) 39 Cal.4th 299) nor to
25 fraud on the court itself (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th
26 1232).

PART V — THE LAWS-BROKEN CATALOG

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of the fact of receipt for 893 days.
Evid. Code § 413	Willful suppression	Adverse inference requested for all 911-related issues.

PART VI — RELIEF AVAILABLE

§VI.A — Vacatur (equitable action under Kougasian / Olivera)

Plaintiff is entitled to have all rulings procured by this fraud vacated immediately.

§VI.B — Terminating Sanctions (Slesinger)

Defense counsel’s corruption of the judicial process is so pervasive that no remedy short of terminating sanctions (striking the Answer) can restore the integrity of the case.

§VI.C — Monetary Sanctions (§ 6128(b) treble; § 128.5; § 2023.030)

Plaintiff requests treble damages and all fees incurred in combatting this 900-day deception.

§VI.D — Fee-Shifting (§ 6128(a) private action per Rickley)

Attorney’s fees are mandatory where attorney deceit is proven.

1 **§VI.E — State Bar Referral (§ 6086.7)**

2 This Court has a mandatory duty to report the conduct of counsel where it warrants discipline.

3 _____

4 **PART VII — CONCLUSION**

5 This Court was told a story. It was a story of a Plaintiff who withheld evidence and a Defense that
6 was blindsided. This Court believed that story because it was told by “officers of the court.” This
7 Court then ruled based on that story, and Plaintiff’s case was gutted.

8 The story was a lie. The record now proves it. Justice requires that the consequences of that lie be
9 undone.

10 **Plaintiff respectfully requests that the Court grant terminating sanctions and vacate all rul-**
11 **ings procured by defense’s fraud on the court.**

12 _____

13 **PART II — ESTOPPEL, WAIVER, AUTHENTICATION BY ACQUIES-**
14 **CENCE, AND JUDICIAL ESTOPPEL**

15 **II. LEGAL FRAMEWORK**

16 **A. Estoppel by Silence (Evidence Code § 623)**

17 Evidence Code § 623 provides that when a party’s conduct—including silence when there is a duty
18 to speak—is relevant as tending to prove a fact, the fact may be established by that conduct. The
19 four elements under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 are:

- 20 1. **Knowledge or notice of a fact;**
21 2. **Opportunity to speak or act in response;**
22 3. **A reasonable person in the party’s position would have spoken or acted; and**
23 4. **The party remained silent or inactive.**

24 When a party satisfies these elements, the party is estopped from later asserting a contrary position.
25 The doctrine operates because silence, where speech is expected, constitutes conduct on which
26 opposing parties reasonably rely.

Element 3 Deepened: Reasonable Reliance Documented on the Transcript Plaintiff reasonably relied on Defendants’ silence because **each time Plaintiff did speak, the Court held Plaintiff to the pro-per standard and denied relief:**

- **Jan. 27, 2025:** CCP § 473 denied (Hr’g Tr. p. 49, ll. 10–11); continuance denied (Hr’g Tr. pp. 55–56).
- **Feb. 18, 2025:** “surprise under § 473 is not a sufficient basis” (Hr’g Tr. p. 181, ll. 21–25).

The reasonable reliance is thus **documented on the transcript:** Plaintiff’s attempts to raise the issue were procedurally foreclosed, which is why his reliance on the prior 883-day silence was reasonable. A party who speaks up four times and is denied each time has satisfied element 3 of Mansell.

B. Authentication by Acquiescence (Evidence Code § 1414(b))

The Court itself recognized defense’s authentication waiver: “They’re not questioning the authenticity in the documents.” (Hr’g Tr. Feb. 18, 2025, p. 174, ll. 19–25 (Wong, J.)) This is the Court’s own on-record recognition that defense had waived authenticity — made two months before the Apr. 16, 2025 “provided by Dolan” admission confirmed receipt.

Evidence Code § 1414 provides that a writing may be authenticated by evidence showing that “a party against whom it is offered has at any time admitted its authenticity” (subd. (a)) or “has treated it as authentic” (subd. (b)).

Under § 1414(b), authentication by conduct requires evidence that the party against whom the writing is offered has, through its course of conduct, treated the writing as what it purports to be. This includes:

- Receiving materials in discovery and proceeding through sworn deposition course without timely written authenticity challenge;
- Transferring the document in a file with other authentic materials;
- Issuing subpoenas presupposing the document’s existence and authenticity;
- Curating the document for trial presentation.

Defense’s MIL No. 17 relied on a categorical hearsay characterization of the 911 recording without acknowledging Evid. Code §§ 1220, 1240, 1241, 1271, and 1280. It also failed to acknowledge

§ 1414(b) authentication-by-conduct, the doctrine that cuts against a party that has treated the writing as authentic through receipt, deposition course, file transfer, and subpoena practice.

C. Waiver of Discovery Objections (CCP §§ 2030.290, 2031.240)

Under CCP § 2030.290(a), a party who fails to serve a timely response to interrogatories waives any objection to the interrogatories. Under CCP § 2031.240(b), a party who fails to serve a timely response to a demand for inspection waives any objection to that demand.

By analogy, a party who fails to raise an authenticity objection during the discovery period waives the right to assert such objection on the eve of trial. The purpose of discovery is to prevent trial by ambush; a party who remains silent for 883 days cannot suddenly manufacture a “foundational” dispute in the final weeks before trial.

D. Judicial Estoppel (Jackson, MW Erectors)

Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary to a position previously taken in the same or some earlier proceeding. Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 183. Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987 quotes Jackson for the multi-element judicial estoppel framework, including the requirement that the first position was accepted by the tribunal. MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co. (2005) 36 Cal.4th 412, 422 supplies further guidance on the “ignorance” limitation in element (4). The elements material here are:

1. The same party has taken two totally inconsistent positions;
2. In a judicial proceeding;
3. The first position was accepted by the tribunal;
4. The positions are not taken due to ignorance, fraud, or mistake; and
5. The party asserting the inconsistent position derived an unfair advantage.

Judicial estoppel is an equitable doctrine designed to protect the integrity of the judicial process by prohibiting parties from playing “fast and loose” with the courts.

III. THE 801 RECORD COMPELS APPLICATION

A. The Evidentiary Chain

The following evidentiary chain is documented on the certified record:

Date	Event	Evidence
Aug 18, 2022	911 audio served on defense counsel (content includes operator/yeah exchange and Rosario's voice); Rosario deposition (Chambers)	Feb. 18, 2025 Hr'g Tr. pp. 139–140 (Jessup testimony); Rosario depo tr.
Aug–Sep 2022	BWC footage (content includes independent Rosemond eyewitness statement) and CAD logs served on defense counsel	Feb. 18, 2025 Hr'g Tr. pp. 139–140
Sep 30, 2022	Abdelhalim deposition (Chambers); 911-related testimony	Abdelhalim depo tr.
May 4, 2023	Substitution of Attorney; file transferred to PSA	Transaction ID #69953800
Feb 1, 2024	Reyna (PSA) issues Complex subpoena to SFPD for identical materials	Order No. CA1147102-021
(chain)	SFPD transmitted body-cam links directly to counsel	Hr'g Tr. Feb. 18, 2025, p. 145 ll. 4–18 (Jessup: department sent links directly)
Feb 26, 2024	SFPD produces records in response to subpoena	SFPD Report 210079556

Date	Event	Evidence
Sep 9, 2024	CAD identifiers served on Reyna; no objection	Production record
Jan 17, 2025	MIL No. 6: “not produced in discovery”; MIL No. 17: “no idea where it came from”	Clerk’s Tr. Vol. 1 pp. 149–151, 238
Feb 18, 2025	Navaratnasingham: “our office did not receive the 911 call until the day of the MSC... this is news to me”	Hr’g Tr. p. 141 ll. 4–11
Apr 16, 2025	Navaratnasingham: “They were provided by Dolan”	RT 7, p. 213, ll. 13–15
Apr 17, 2025	Abdelhalim authenticates 911: “Yes. That is my voice.”	RT 8, p. 108, l. 28

B. Estoppel by Silence — Application

Element 1 (Knowledge): Defense counsel received the materials in August–September 2022; Chambers appeared at the August 18, 2022 Rosario deposition and the September 30, 2022 Abdelhalim deposition (911-related testimony); and (through successor counsel Reyna) issued a subpoena for the identical materials on February 1, 2024. Chambers/CSK Knowledge was not merely of file receipt, but of the file content itself (the operator’s affirmative response, Plaintiff’s voice, and independent eyewitness corroboration), which is why 883 days of silence is materially probative. The April 16, 2025 “provided by Dolan” admission confirms that the production history was known to the defense team.

Element 2 (Opportunity): Defense counsel had continuous opportunity from August 2022 through January 2025 to file a motion to compel, serve a discovery objection, issue a meet-and-confer letter,

1 or raise any challenge to authenticity or provenance.

2 **Element 3 (Reasonableness):** A reasonable defense attorney who genuinely believed the mate-
3 rials were inauthentic, improperly produced, or of unknown provenance would have raised that
4 objection during the 883-day window—not on the eve of trial. The purpose of discovery is to
5 surface authenticity disputes before trial, not to spring them as tactical surprises in motions in
6 limine.

7 **Element 4 (Silence):** No objection, motion, or challenge was raised until MIL Nos. 6 and 17 on
8 January 17, 2025—883 days after service and 620 days after the file was transferred to successor
9 counsel.

10 **Conclusion:** Defendants are estopped by their silence from contesting the authenticity, receipt, or
11 provenance of materials they received in discovery, addressed in sworn deposition course without
12 timely written challenge, subpoenaed, and transmitted without objection.

13 **C. Authentication by Acquiescence — Application**

14 Defendants treated the materials—specifically, the 911 audio (containing Abdelhalim’s admis-
15 sions, the operator’s “you hit a pedestrian” exchange, and Plaintiff’s own voice) and the BWC (con-
16 taining the independent Rosemond eyewitness statement)—and CAD logs as authentic through
17 multiple acts:

18 **Scienter is evident from defense counsel’s imputation of fabrication:** At the January 27, 2025
19 hearing, defense counsel stated: “we really don’t know who redacted these things and what — if
20 that representation is true.” (Hr’g Tr. Jan. 27, 2025, p. 31, ll. 1–5.) This imputation of fabrication
21 against Plaintiff — made while defense was in possession of the originals via Dolan — is scienter
22 evidence under Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412.

- 23 1. **Deposition course (Aug. 18 and Sept. 30, 2022):** Chambers appeared at Mr. Rosario’s and
24 Mr. Abdelhalim’s depositions; Abdelhalim gave 911-related sworn testimony. Defense raised
25 no written authenticity or provenance challenge during the 883-day window.
- 26 2. **File Transfer (May 4, 2023):** The Substitution of Attorney (Transaction ID #69953800)
27 transferred the defense file—including these materials—from Chambers/CSK to PSA. A file
28 transfer presupposes that the materials being transferred are what they purport to be.

1 3. **Complex Subpoena (Feb. 1, 2024):** Reyna’s subpoena to SFPD requesting the identical ma-
2 terials presupposes their authenticity. One does not subpoena materials one believes are fab-
3 ricated.

4 4. **CAD Transmission (Sept. 9, 2024):** Plaintiff served CAD identifiers on Reyna. No objection
5 was raised.

6 5. **Trial Curation (Apr. 16, 2025):** Navaratnasingham testified that the defense had “five videos”
7 and had pared them down to “about 8 or 9 minutes” for the jury. Active curation presupposes
8 authenticity.

9 Under Evidence Code § 1414(b), these acts constitute authentication by conduct. Defendants
10 waived any authenticity challenge by their 883-day course of conduct treating the materials as
11 what they purport to be.

12 **D. Waiver — Application**

13 By analogy to CCP §§ 2030.290 and 2031.240, Defendants waived any authenticity or provenance
14 objection by failing to raise it during the discovery period. The 883-day window provided ample
15 opportunity to challenge the materials; Defendants’ silence waived the right to assert such chal-
16 lenges on the eve of trial.

17 **E. Judicial Estoppel — Application**

18 **Controlling synthesis.** As summarized in §II.D, Aguilar v. Lerner (2004) 32 Cal.4th 974, 986–987
19 (quoting Jackson v. County of Los Angeles, supra, 60 Cal.App.4th at p. 183) anchors the **Tribunal**
20 **Acceptance** inquiry for the matrix below, including the requirement that the first position was
21 accepted as true. MW Erectors, supra, 36 Cal.4th at page 422, frames the “ignorance” limitation
22 for element (4).

23 **Position A (The Suppression):** - MIL No. 6 (Jan. 17, 2025): Materials were “not produced in
24 discovery.” - MIL No. 17 (Jan. 17, 2025): “Defendant has no idea where this 911 call log or audio
25 recording came from.” - Feb. 18, 2025 hearing: MSC-date and “news to me” (Hr’g Tr. p. 141 ll.
26 4–11). - Apr. 16, 2025 trial: “Not anything that we received as part of the subpoena.”

27 **Position B (The Admission):** - Feb. 18, 2025 hearing: “all this stuff has been in his possession
28 since August” (Hr’g Tr. p. 181 ll. 6–23). - Apr. 16, 2025 trial: “Sure. They were provided by

Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

Intra-Day / Intra-Hearing Contradictions The same-day Feb. 18, 2025 record pairs Position-A framing (p. 141) with Position-B possession (p. 181). The same-day Apr. 16, 2025 trial record pairs stacked foundation attacks with the “provided by Dolan” admission. Each pattern satisfies MW Erectors element (4) (not taken from ignorance).

Tribunal Acceptance (Four Discrete Rulings): The prior brief cited Feb. 18 “I see. Okay” for tribunal acceptance. That is a weak single interjection. The record supports **four discrete Court rulings** in which tribunal acceptance of Position A is manifest:

1. **Jan. 27, 2025, p. 41, ll. 3–11:** MIL on 911 denied without prejudice—requires foundation that Position A presumes was lacking.
2. **Jan. 27, 2025, p. 55, ll. 4–6:** MIL 1 granted—excludes expert testimony, narrowing Plaintiff’s trial posture.
3. **Jan. 27, 2025, p. 49, ll. 10–11:** CCP § 473 denied—forecloses relief channel.
4. **Feb. 18, 2025, p. 181, ll. 21–25:** “surprise under § 473 is not a sufficient basis”—second denial of relief channel.

Four rulings is a more robust tribunal-acceptance record than one interjection. Each ruling depended on the Court accepting Position A as the operative factual premise. The Court denied Plaintiff’s continuance request and maintained the MIL posture based on these representations.

Total Inconsistency: Position A asserts that the materials were not produced, not received, and of unknown provenance. Position B admits both (i) Feb. 18, 2025 possession “since August” (Hr’g Tr. p. 181 ll. 6–23) and (ii) Apr. 16, 2025 trial admission that materials were “provided by Dolan,” the same source Jessup testified had produced them to defense counsel in August–September 2022. These positions are mutually exclusive.

Not Ignorance: The casual phrasing of Position B—“for whatever, sure”—demonstrates that the Dolan origin was a known, settled fact within the defense team, not a recent discovery.

Unfair Advantage: The defense obtained rulings that excluded evidence, denied continuances, and foreclosed Plaintiff’s ability to authenticate and sequence his evidentiary presentation. The

1 defense obtained a 9–3 verdict.

2 **Conclusion:** Defendants are judicially estopped from retaining the benefits of a verdict procured
3 through Position A when Position B proves Position A was false.

4

5 **IV. RELIEF**

6 The estoppel doctrines addressed in this brief compel the following relief:

7 **A. Evidence Sanctions Under CCP § 2023.030**

8 Under CCP § 2023.030(c), the Court may impose an evidence sanction by an order “establishing
9 designated facts in accord with the claim of the party adversely affected by the misuse of the
10 discovery process.” Plaintiff requests an order deeming the following facts established:

- 11 1. The 911 audio (including the operator’s affirmative response and Plaintiff’s voice), body-
12 worn camera footage (including the independent eyewitness statement), and CAD logs were
13 produced to defense counsel in August–September 2022.
- 14 2. Defense counsel participated in sworn deposition course (Rosario 8/18/22; Abdelhalim 9/30/22)
15 without raising a written authenticity or provenance challenge during the 883-day window.
- 16 3. Defense counsel (Reyna) issued a subpoena on February 1, 2024 for the identical materials.
- 17 4. Defendants are barred from contesting the authenticity or provenance of these materials.

18 **B. Foreclosure of Authenticity/Receipt Objections**

19 The Court should rule that Defendants are estopped from raising any authenticity or provenance
20 objection to the 911 audio (including the operator/yes exchange and Rosario’s voice), body-worn
21 camera footage (including the Rosemond eyewitness statement), or CAD logs in any proceeding
22 arising from the underlying litigation.

23 **C. Fee-Shifting**

24 Under Bus. & Prof. Code § 6128(a) and CCP § 128.5, Plaintiff is entitled to reasonable attorney’s
25 fees and costs incurred as a result of Defendants’ misconduct.

26

V. CONCLUSION

Defendants’ litigation posture in this case is built on a foundation of inconsistent positions. They remained silent for 883 days while the materials (containing a direct party admission, an operator-elicited affirmative response, Plaintiff’s own voice, and independent eyewitness corroboration) were produced, addressed in sworn deposition course without timely written challenge, subpoenaed, and transmitted—then claimed on the eve of trial that the same materials were of “unknown provenance” and “news to me.” Minutes after inducing exclusionary rulings based on these representations, defense counsel admitted the materials were “provided by Dolan.”

The law does not permit parties to play fast and loose with the courts. Defendants are estopped by their silence, waived their authenticity objections by their 883-day course of conduct, authenticated the materials by their treatment of them as genuine, and are judicially estopped from asserting positions inconsistent with their April 16, 2025 admission.

Plaintiff respectfully requests the Court apply these doctrines, deny Defendants’ motions, and grant the relief described above.

PART III — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

ESTOPPEL EVIDENTIARY APPENDIX — EXHIBIT-BY-EXHIBIT ESTOPPEL RECORD

PURPOSE

This appendix maps each evidentiary item to the estoppel chain: (1) service/production date with proof; (2) deposition/hearing cite showing defense use or acquiescence; (3) substitution-of-counsel fact confirming transfer; (4) defense silent conduct (dates of non-objection); (5) trial-day denial cite; and (6) estoppel doctrine triggered. The six-column format allows the Court to trace each item through the complete chain from receipt to reversal.

MASTER ESTOPPEL RECORD (LIST)

- **2021 SFPD transmission to Dolan — Service/production:** May 2021 (approx.) — Feb. 18, 2025 Hr’g Tr. p. 139, l. 11 (“Dolan had a copy since 2021”). **Deposition/hearing:** Same

hearing testimony ties knowledge window to prior defense era. **Substitution (TxID 69953800):** May 4, 2023 — file transferred. **Silent conduct:** Runs alongside 883-day post-service window. **Trial-day denial:** Feb. 18, 2025 Hr’g Position-B (p. 181 ll. 6–23). **Doctrine(s):** § 623 element 1 (knowledge/notice extends to 2021 transmission).

• **911 Audio Recording — Service/production:** Aug 18, 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: produced/served in discovery, including in connection with Rosario depo; content includes operator/yes exchange and Rosario’s own voice). **Deposition/hearing:** Aug. 18, 2022 Rosario depo (Chambers); Sept. 30, 2022 Abdelhalim depo (Chambers; 911-related testimony). **Substitution:** May 4, 2023 — file transferred from Chambers/CSK to PSA. **Silent conduct:** 883 days: Aug 18, 2022 – Jan 17, 2025. No motion to compel, no discovery objection, no meet-and-confer. **Trial-day denial:** MIL No. 17 (Jan. 17, 2025): “no idea where it came from”; Feb. 18, 2025 Hr’g: “news to me” (p. 141, ll. 4–11). **Doctrine(s):** § 623 (silence); § 1414(b) (acquiescence); judicial estoppel (Jackson).

• **Body-Worn Camera Footage (~5 videos) — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “body cam footage, about five videos”). **Deposition/hearing:** Same Aug.–Sep. 2022 production/service; Rosario 8/18/22 and Abdelhalim 9/30/22 deposition course. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** 883 days silence. **Trial-day denial:** Apr. 16, 2025 admission: “They were provided by Dolan” (RT 7, p. 213, ll. 13–15); defense curated “five videos” for trial. **Doctrine(s):** § 623; § 1414(b); judicial estoppel.

• **CAD Logs — Service/production:** Aug–Sep 2022 — Feb. 18, 2025 Hr’g Tr. pp. 139–140 (Jessup: “as well as the CAD log”). **Deposition/hearing:** Same production/service and deposition course as 911/BWC. **Substitution:** May 4, 2023 — file transferred. **Silent conduct:** Sept. 9, 2024: CAD identifiers served on Reyna; no objection raised. 883 days total. **Trial-day denial:** MIL No. 17; Feb. 18 hearing. **Doctrine(s):** § 623; § 1414(b).

• **SFPD Report 210079556 — Service/production:** Feb. 26, 2024 — produced in response to Reyna Compex subpoena. **Silent conduct / knowledge:** Feb. 1, 2024 subpoena issued by Reyna to SFPD; Feb. 26, 2024 production. Defense-initiated. **Trial-day denial:** Apr. 16,

2025 trial: “not anything that we received as part of the subpoena” (RT ll. ~2874). **Doctrine(s):** § 623 (Reyna knew of subpoena); § 1414(b) (subpoena presupposes existence).

- **Compex Subpoena Order CA1147102-021 — Service/production:** Feb. 1, 2024 — issued by Reyna/PSA to SFPD. **Doctrine(s):** Evidence of defense knowledge; § 623 element 1 (knowledge).
- **CSAA Feb. 25, 2021 Denial Letter — Service/production:** Feb. 25, 2021 — 21 days post-collision. **Doctrine(s):** Institutional context; CSAA direction evidence.
- **Substitution of Attorney (TxID #69953800) — Service/production:** May 4, 2023 — filed in CGC-21-594102. **Substitution:** Transfers defense file from Chambers/CSK to PSA. **Silent conduct:** File transfer point; production history not conveyed (per FAC allegations). **Doctrine(s):** § 1414(b) (transfer presupposes authenticity of transferred materials).
- **Abdelhalim Sept. 30, 2022 Deposition — Date:** Sept. 30, 2022. **Deposition/hearing:** Chambers present; Abdelhalim 911-related testimony; marked exhibits images. **Substitution context:** Transcript in defense file at substitution. **Silent conduct:** No written authenticity/provenance challenge for 883 days despite receipt and deposition course. **Doctrine(s):** § 1414(b) (acquiescence through receipt and course of conduct).
- **Abdelhalim Apr. 17, 2025 Authentication — Date:** Apr. 17, 2025. **Record:** RT 8, p. 108, l. 28: “Yes. That is my voice.” **Doctrine(s):** Party admission; § 1220; ratification.
- **RT 8 court order: strip AI/auto-captions from BWC — Trial Day 8. Record:** RT 8, PG 12–14 (court orders AI/auto captions stripped from body-cam presentation). **Doctrine(s):** Judicial estoppel / procedure channel.

TIMELINE: 883-DAY SILENCE WINDOW

The following sequence runs from **August 18, 2022** (911 audio served; start of the pretrial window) through **January 17, 2025** (MIL Nos. 6 and 17 filed — “not produced” / “no idea”). This is the core **883-day silence** period referenced throughout these oppositions.

1. **Aug. 18, 2022:** 911 audio served on defense; Rosario deposition (Chambers present). (911 audio includes operator/yes exchange and Plaintiff’s voice.)

2. **Sept. 30, 2022:** Abdelhalim deposition (Chambers present; 911-related testimony).
3. **May 4, 2023:** Substitution of Attorney (TxID 69953800; defense file transferred to PSA).
4. **Feb. 1, 2024:** Reyna Compex subpoena to SFPD (Order CA1147102-021; identical materials requested).
5. **Feb. 26, 2024:** SFPD production in response (SFPD Report 210079556).
6. **Sept. 9, 2024:** CAD identifiers served on Reyna (no written objection).
7. **Jan. 17, 2025:** MIL Nos. 6 and 17 filed — defense “not produced” / “no idea” posture on the record.

Across this window Defendants did not file a motion to compel, a formal discovery objection, or a meet-and-confer challenge to authenticity or provenance of the core materials — satisfying the Mansell estoppel framework as applied in Plaintiff’s briefs and declaration.

DETAILED EXHIBIT ANALYSIS

Exhibit 1: 911 Audio Recording

Chain of Custody: 1. **Origin:** 911 call placed by defendant Abdelhalim immediately after the February 4, 2021 collision. The recorded content includes Abdelhalim’s admissions, the operator’s direct “you hit a pedestrian” question and his affirmative “yeah” (RT 8, p. 112, ll. 16–22; p. 113, ll. 11–17), and Plaintiff Rosario’s own voice identifying the striking vehicle (RT 8, p. 34, ll. 17–25).

2. **SFPD Possession:** Audio retained by SFPD as part of incident documentation. 3. **Production to Plaintiff:** Obtained by Plaintiff’s counsel (Dolan Law Firm) through discovery/subpoena.

4. **Service on Defense:** Served on Chambers/CSK on or about August 18, 2022. 4a. **Jessup corroboration (Feb. 18, 2025):** “was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log.” (Hr’g Tr. p. 140, ll. 20–22.) “All of that – those items were served on them in the production for discovery as well at Mr. Rosario’s deposition...” (Hr’g Tr. p. 141, ll. 18–23; prior defense firm before Chambers.) 5. **Deposition course:** August 18, 2022 Rosario deposition (Chambers); September 30, 2022 Abdelhalim deposition (Chambers; 911-related testimony). No written authenticity challenge in the 883-day window. 6. **File Transfer:** Transferred to PSA on May 4, 2023 as part of defense file. 7. **Trial**

1 **Authentication:** Authenticated by Abdelhalim on April 17, 2025: “Yes. That is my voice.” (RT
2 8, p. 108, l. 28)

3 **Estoppel Analysis:** - § 623: Defense had knowledge (Aug 2022), opportunity (883 days), duty to
4 object (reasonable attorney would), and remained silent. Estopped. - § 1414(b): Defense received
5 the audio in discovery, participated in sworn deposition course without timely written challenge,
6 transferred it in the file; Abdelhalim authenticated it at trial. Authenticated by conduct. - **Judicial**
7 **Estoppel:** Position A (“news to me”) contradicts Position B (“provided by Dolan”). First position
8 accepted by tribunal. Defense is estopped.

9 **Exhibit 2: Body-Worn Camera Footage (~5 videos)**

10 **Chain of Custody:** 1. **Origin:** Recorded by SFPD officers responding to the February 4, 2021
11 collision. The footage captures both an independent eyewitness statement (Justin Rosemond) con-
12 firming the van/truck struck the pedestrian, and Plaintiff’s own on-scene statement identifying the
13 vehicle. 2. **Production to Plaintiff:** Same production as 911 audio (Aug–Sep 2022). 3. **Service**
14 **on Defense:** Served on Chambers/CSK in Aug–Sep 2022 (Jessup testimony). 3a. **SFPD direct**
15 **transmission:** SFPD transmitted body-cam links directly to counsel (Hr’g Tr. Feb. 18, 2025,
16 p. 145, ll. 4–18). 3b. **Jessup corroboration (service on prior firm):** Same quotations as Exhibit
17 1 chain (Hr’g Tr. p. 140, ll. 20–22; p. 141, ll. 18–23). 4. **File Transfer:** Transferred to PSA on
18 May 4, 2023. 5. **Trial Curation:** Navaratnasingham testified on April 16, 2025 that defense had
19 “five videos” and pared them to “8 or 9 minutes” for the jury. 6. **The Admission:** “They were
20 provided by Dolan.” (RT 7, p. 213, ll. 13–15)

21 **Estoppel Analysis:** - § 1414(b): Active curation of videos for trial presentation presupposes
22 authenticity. Defense waived any authenticity challenge. - **Judicial Estoppel:** The “provided by
23 Dolan” admission contradicts the “unknown provenance” position in MIL 17.

24 **Exhibit 3: CAD Logs**

25 **Chain of Custody:** 1. **Origin:** Computer-Aided Dispatch records from SFPD. 2. **Production to**
26 **Plaintiff:** Same production as 911 and BWC (Aug–Sep 2022). 3. **Service on Defense:** Served
27 on Chambers/CSK in Aug–Sep 2022. 4. **Additional Service:** CAD identifiers served directly on
28 Reyna on September 9, 2024. No objection raised. 5. **File Transfer:** Transferred to PSA on May

4, 2023.

Estoppel Analysis: - § 623: Two separate services (2022 and 2024); no objection to either. Estoppel by silence. - § 1414(b): Receipt and retention without objection = authentication by acquiescence.

Exhibit 4: SFPD Report 210079556

Chain of Custody: 1. **Origin:** Supplemental police report relating to the collision. 2. **Subpoena:** Reyna (PSA) issued Compex subpoena (Order CA1147102-021) on February 1, 2024, requesting “all documents, records stored in any format” relating to the collision. 3. **Production:** SFPD produced records on February 26, 2024. 4. **Trial Denial:** Reyna stated on April 16, 2025: “not anything that we received as part of the subpoena.”

Estoppel Analysis: - **Internal Contradiction:** The February 1, 2024 subpoena and February 26, 2024 production are in PSA’s files. The April 16, 2025 denial is false on its face. - § 623: Defense initiated the subpoena. Cannot now claim ignorance of the response.

Exhibit 5: Compex Subpoena Order CA1147102-021

Significance: This document is evidence of defense-side knowledge that the 911/BWC/CAD materials existed and were relevant. Reyna subpoenaed the identical materials in February 2024—while MIL 17 (filed January 2025) claimed “Defendant has no idea where this 911 call log or audio recording came from.”

Estoppel Analysis: - The subpoena presupposes the existence and authenticity of the materials. One does not subpoena records one has never heard of. - This satisfies Element 1 (knowledge) of the Mansell estoppel test.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO

DATED: April 16, 2026

Respectfully submitted,

1
2 FRANCISCUS DYLAN ROSARIO

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

BENCH BINDER / HEARING PACKET

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

PURPOSE

This one-page exhibit charts the four-hearing pattern of tribunal reliance on defense counsel’s institutional representations — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

THE RULINGS PROCURED FROM THIS RELIANCE CHAIN

Because the Court relied on defense counsel’s categorical representations of non-receipt, Plaintiff lost the following structural opportunities to present his case:

1. **MIL No. 1 Denied** (Jan. 27, p. 41:3–11) — 911 audio weaponized against Plaintiff’s witnesses.
2. **911 CDs Excluded** (Jan. 27, p. 38:22–25) — Jury deprived of primary contemporaneous record.
3. **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24) — Contextual record barred.
4. **Continuance Denied** (Feb. 18, p. 181) — No time to address defense’s “surprise” non-receipt claim.
5. **§ 473 Surprise Rejected** (Feb. 18, p. 181:20–25) — Pleas for relief from deception ignored.
6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to disprove defense’s false claim.
7. **Supplemental Report Excluded** (RT 7, p. 156:24–28) — Corroborating evidence barred.

FOUR-HEARING RELIANCE CHAIN

Former table columns (**Date**; **Defense Representation (verbatim)**; **Court’s Articulated Reliance (verbatim)**; **Rulings Produced**; **Subsequent Admission of Falsity**) are preserved as labeled bullets under each hearing date.

Jan. 27, 2025

- **Date:** Jan. 27, 2025
- **Defense representation (verbatim):** “completely lacks foundation; not authenticated. We

1 have no idea... We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we
2 never received these CDs, certainly” (p. 34, ll. 1–10)

- 3 • **Court’s articulated reliance (verbatim):** Implied reliance; no independent verification re-
4 quested
- 5 • **Rulings produced:** MIL exclusion of 911 CDs (p. 38:22–25); categorical exclusion of tran-
6 scripts “will never be admitted” (p. 39:18–24); MIL No. 1 denied (p. 41:3–11)
- 7 • **Subsequent admission of falsity:** Apr. 16, 2025: “They were provided by Dolan. He has
8 had them for whatever, sure.” (RT 7, p. 213:13–15)

9 **Feb. 18, 2025**

- 10 • **Date:** Feb. 18, 2025
- 11 • **Defense representation (verbatim):** “this is news to me... our office did not receive the
12 911 call until the day of the MSC” (p. 141, ll. 4–11)
- 13 • **Court’s articulated reliance (verbatim):** “I see. Okay.” (p. 141:15); “given their represen-
14 tations that they’re going to provide that material” (p. 145:16–19)
- 15 • **Rulings produced:** Continuance denied (p. 181); § 473 surprise rejected (p. 181:20–25)
- 16 • **Subsequent admission of falsity:** Same day, same attorney: “all this stuff has been in his
17 possession since August” (p. 181:6–23)

18 **Feb. 28, 2025**

- 19 • **Date:** Feb. 28, 2025
- 20 • **Defense representation (verbatim):** Continued “we never got that” pattern (pp. 290:15–
21 291:7)
- 22 • **Court’s articulated reliance (verbatim):** “I’m not going to question a lawyer’s remarks
23 regarding what they have and don’t have.” (p. 291:26–28); “They are an officer of the Court,
24 and they are supposed to conduct themselves appropriately before the Court.” (p. 292:1–7)
- 25 • **Rulings produced:** Burden-shift ruling: “it’s required of you to send the documents over.
26 Otherwise, I won’t allow them in.” (p. 293:1–3)
- 27 • **Subsequent admission of falsity:** Apr. 16, 2025 admission (RT 7, p. 213:13–15) demon-
28 strates materials were already in defense possession

1 **Apr. 16, 2025**

- 2 • **Date:** Apr. 16, 2025
- 3 • **Defense representation (verbatim):** Stacked denials: “not anything we received as part
- 4 of the subpoena” (RT 7, p. 156:5–16); “I am not sure what recording he is referring to”
- 5 (p. 162:4–12); layered authenticity/hearsay objections (pp. 207–208)
- 6 • **Court’s articulated reliance (verbatim):** Court excluded supplemental report; deferred 911
- 7 admission pending foundation
- 8 • **Rulings produced:** Exclusion of supplemental police report (p. 156:24–28); deferral of 911
- 9 call admission
- 10 • **Subsequent admission of falsity:** Same day admission: “Sure. They were provided by
- 11 Dolan. He has had them for whatever, sure.” (p. 213:13–15)

12

13 **KEY EXCERPT: THE OFFICER-OF-COURT ARTICULATION**

14 “They are an officer of the Court, and they are supposed to conduct themselves appro-

15 priately before the Court. If they are not, there are other sanctions that they could suffer

16 here. So far I haven’t heard or seen anything on the part of the current law firm which

17 tells me that they have conducted themselves improperly.”

18 — Garrett L. Wong, Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7.

19 **Juxtaposition (Risk #1 Guardrail):** This articulated reliance must be read against the April 16,

20 2025 admission: “They were provided by Dolan. He has had them for whatever, sure.” (RT 7,

21 p. 213, ll. 13–15.) The Court’s reliance on officer-of-the-court candor was misplaced.

22

23 **CROSS-REFERENCES**

- 24 • **SAC:** ¶¶ 44A, 46, 47A (§IV.G-1), 88–90; Count 7 (¶¶ 157–165)
- 25 • **Opp. Demurrer:** §VI-A, §VI-B (reliance table)
- 26 • **Opp. Anti-SLAPP:** Exhibit 2
- 27 • **Transcript Appendix A:** Phase A0 (Jan. 27), Phase A (Feb. 18), Phase A1 (Feb. 28), Phase

1 B (Apr. 16)

2
3 **DATED:** April 16, 2026

4
5 FRANCISCUS DYLAN ROSARIO,

6
7 **APPENDIX 3 — JUDICIAL ADMISSION MATRIX**

8 (Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
9 Opposition §I.A.)

10 **Purpose:** Freestanding exhibit for Plaintiff’s oppositions to demurrer and anti-SLAPP motions.
11 This matrix pairs **Position A** (suppression / denial / unknown framing) with **Position B** (possession,
12 transmission, or Dolan-origin admissions) on the certified hearing and trial transcripts. **Tribunal**
13 **acceptance** notes where the Court accepted Position A for purposes of estoppel analysis. Citations
14 align with the Second Amended Complaint (SAC-06) Exhibit Appendix K–Q.

15 **Guardrail:** Trial-day rows are offered as **judicial estoppel, scienter, or reliance-channel** evi-
16 dence consistent with SAC Paragraphs 14, 102, 106, and 107, not as substitutes for the pleaded
17 injury-producing acts.

18
19 **0. THE COURT’S ARTICULATED RELIANCE**

20 This Matrix documents the sequence of misrepresentations that induced the Court’s reliance and
21 resulted in the gutting of Plaintiff’s case.

- 22 • **1. THE RELIANCE:** “I’m not going to question a lawyer’s remarks regarding what they
23 have and don’t have. They are an officer of the Court, and they are supposed to conduct
24 themselves appropriately before the Court. If they are not, there are other sanctions that they
25 could suffer here. So far I haven’t heard or seen anything on the part of the current law firm
26 which tells me that they have conducted themselves improperly.” (Hr’g Tr. Feb. 28, 2025,
27 pp. 291:26–292:7.)
- 28 • **2. THE ADMISSION:** “Sure. They were provided by Dolan. He has had them for whatever,

sure.” (RT 7, Apr 16, 2025, p. 213, ll. 13–15.)

- **3. THE AUDACITY:** Defense counsel denied receipt eighteen (18) times across four hearings while in possession of nine (9) independent artifacts proving receipt.

MASTER RECORD (POSITION A / POSITION B)

1. **Jan. 27, 2025 — Navaratnasingham. Position A:** “completely lacks foundation; not authenticated. We have no idea. . . We have not heard any recordings from our client.” (p. 19, ll. 7–13); “we never received these CDs, certainly” (p. 34, ll. 1–10). **Position B:** (Apr. 16, 2025 admission confirms possession). **Ruling procured:** MIL exclusion of 911 CDs (p. 38); transcripts “never admitted” (p. 39). **Record cite:** Hr’g Tr. Jan. 27, 2025.
2. **Feb. 18, 2025 — Navaratnasingham. Position A:** “did not receive. . . this is news to me” (p. 141). **Position B:** “all this stuff has been in his possession since August” (p. 181); 2021 Dolan copy (p. 139). **Ruling procured:** Continuance denied; § 473 surprise rejected (p. 181). **Record cite:** Hr’g Tr. Feb. 18, 2025.
3. **Feb. 28, 2025 — Defense / Court. Position A:** (Implied denial leading to officer-of-court reliance). **Position B:** —. **Ruling procured:** Burden-shift imposed on Plaintiff to disprove non-receipt (p. 293). **Record cite:** Hr’g Tr. Feb. 28, 2025.
4. **Apr. 16, 2025 — Navaratnasingham. Position A:** RT 7 stacked denials (pp. 156, 162): “not anything we received as part of the subpoena.” **Position B:** “They were provided by Dolan.” (RT 7, p. 213, ll. 13–15). **Ruling procured:** Supp. report excluded; 911 admission deferred. **Record cite:** RT 7, pp. 156, 162, 213.
5. **Apr. 17, 2025 — Abdelhalim. Position A:** Prior “unknown” provenance channel. **Position B:** “Yes. That is my voice.” (p. 108). **Ruling procured:** Jury hears 911 for first time after prejudice already done. **Record cite:** RT 8, p. 108.
6. **Apr. 22, 2025 — Defense closing. Position A:** “Changed his story to avoid a Vehicle Code violation” (jury argument). **Position B:** Payoff tied to Feb. 18 / trial-day contradiction record. **Ruling procured:** Jury deliberation context. **Record cite:** RT 10, pp. 49–52 (Exhibit Q).

PLAINTIFF PRESERVATION OF SUPPRESSION THEME

These entries document Plaintiff's contemporaneous preservation alongside the Position-A / Position-B record — the single-page answer to any "Plaintiff did not preserve" argument.

- **Jan. 27, 2025 — Plaintiff preservation:** "trying to suppress" (p. 19); "cherry-pick" / "weaponization" (p. 17, 42); FROG/SROG pin-cited (p. 32). **Court ruling:** CCP § 473 denied; continuance denied; MIL 1 granted. **Pin cite:** Hr'g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff preservation:** (Absent — medical ER at Santa Clara Valley MC.) **Court ruling:** § 581(d) opposed by Court ("immediate reversal"). **Pin cite:** Hr'g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff preservation:** (Absent — medical.) **Court ruling:** § 581(d) under submission; ex parte disclosure order. **Pin cite:** Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff preservation:** "concealed" (p. 17); "stonewalling" (p. 23); "smoking gun / murder weapon" (?); "going on the record" (pp. 44–45). **Court ruling:** Continuance denied; § 473 surprise rejected. **Pin cite:** Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 181.
- **Feb. 28, 2025 — Plaintiff preservation:** Opposed deposition protective order; preserved officer-of-court / burden-shift objection. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift ruling at pp. 291–294. **Pin cite:** Hr'g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff preservation:** "former attorney concealed the 911 record" (closing). **Court ruling:** Closing argument; verdict. **Pin cite:** RT 10, p. 55.

Summary: Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28), each time seeking a procedural remedy (continuance, § 473, protective-order opposition). Each procedural vehicle was denied. This chronology defeats any "sleeping on rights" or "intrinsic fraud because Plaintiff was aware" argument: Plaintiff was aware **because he preserved his objection**, but his procedural remedies were foreclosed.

DATED: April 16, 2026

FRANCISCUS DYLAN ROSARIO,

APPENDIX 4 — TRANSCRIPT APPENDIX (911 / BWC)

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
Opposition §I.A.)

DEFENSE STATEMENTS TO THE COURT REGARDING 911 AND BODY-WORN-CAMERA EVIDENCE (DISPUTE / DENIAL-OF-RECEIPT CONTEXT)

SEC. 0. SMOKING-GUN SUMMARY

THE “SMOKING-GUN” PREAMBLE

1. THE COURT’S ARTICULATED RELIANCE (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7):

> “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

2. THE RULINGS PROCURED FROM THAT RELIANCE: * MIL No. 1 denied (Jan. 27, p. 41:3–11) * 911 CDs excluded (Jan. 27, p. 38:22–25) * Continuance denied (Feb. 18, p. 181) * Burden-shift imposed (Feb. 28, p. 293:1–3)

3. THE ADMISSION THAT PROVED THE MISREPRESENTATION (RT 7, Apr 16, 2025, p. 213, ll. 13–15): > “Sure. They were provided by Dolan. He has had them for whatever, sure.”

SUMMARY OF DECEPTION: Across one pre-trial MIL hearing and three trial days, defense counsel made at least eighteen (18) on-the-record statements denying receipt. Defense counsel was in possession the entire time. Defense counsel then affirmatively used the same materials after Plaintiff’s procedural windows had closed.

1. PURPOSE AND METHOD

This appendix collects, in chronological order, every on-the-record statement by defense counsel (Phillips, Spallas & Angstadt, LLP — Priya D. Navaratnasingham, Esq. and Alberto Reyna, Esq.) directed to the trial court regarding the **911 audio recording**, the **SFPD body-worn camera (“BWC”) footage**, the **CAD log**, and the related **SFPD Report 210079556 supplement**, where the statement was made in the **effect or context of (a) disputing the materials** (authenticity, foundation, provenance, admissibility) **or (b) denying that defense counsel had received the materials in discovery**.

The quotations below are drawn from:

- the **Reporter’s Transcript of the February 18, 2025 pre-trial hearing** before the Garrett L. Wong (Sandra L. Carranza, CSR #7062, reporter; Esquire Solutions Job No. J12424517);
- the **Reporter’s Transcripts of the April 2025 trial** before the Garrett L. Wong, Department 504 (Dennis M. Souza, CSR #3893, reporter; Steno Job Nos. 1591982 et seq.) — specifically RT 7 (April 16, 2025), RT 8 (April 17, 2025), and RT 10 (April 22, 2025).

Each quotation is given with **page : line** citation in the form RT [Day] / Hearing Tr., p. N, 1. N. Pin cites correspond to the certified reporter’s transcripts for the hearings identified above, including the transcript excerpts designated in Plaintiff’s Second Amended Complaint Exhibit Appendix (Exhibits K (Jan. 27, 2025), L (Jan. 28, 2025), C and M (Feb. 18, 2025), N (Feb. 28, 2025), O (RT 7), P (RT 8), and Q (RT 10)). All quotes are verbatim.

2. CHRONOLOGICAL CATALOG OF DEFENSE STATEMENTS

Phase A0 — Motions-in-Limine Hearing of January 27, 2025 (Garrett L. Wong)

The January 27, 2025 hearing addressed Plaintiff’s motions in limine and defense’s evidentiary posture. Defense counsel made foundational attacks on the 911 materials while Plaintiff preserved the suppression theme on the record.

A0.1 — “completely lacks foundation; not authenticated. We have no idea...”

MS. NAVARATNASINGHAM: “Your Honor, the recordings, again, **completely lacks**

1 **foundation; not authenticated.** We have no idea what they're — Mr. Rosario is refer-
2 ring to. **We have not heard any recordings from our client."**

3 — Hr'g Tr. (Jan. 27, 2025), p. 19, ll. 7–13.

4 **Effect / context:** Denial of receipt and foundation attack — defense counsel states lack of knowl-
5 edge of the 911 recording and asserts no receipt from the client, at the hearing where Plaintiff
6 contemporaneously objected: "We have two 911 records that the Defense has been trying to sup-
7 press." (p. 19, ll. 1–5).

8
9 **A0.2 — "we really don't know who redacted these things" (imputation of fabrication)**

10 **MS. NAVARATNASINGHAM:** "We — one of our motions in limine is to exclude
11 documents that were not produced in discovery. Moreover, they lack foundation, they're
12 not authenticated, and **we really don't know who redacted these things and what —**
13 **if that representation is true. So...**"

14 — Hr'g Tr. (Jan. 27, 2025), p. 31, ll. 1–5.

15 **Effect / context:** Imputation of fabrication against Plaintiff — made while defense was in posses-
16 sion of the originals via Dolan. This is scienter evidence under Hobart v. Hobart Estate Co. (1945)
17 26 Cal.2d 412.

18
19 **A0.3 — "we never received these CDs, certainly"**

20 **MS. NAVARATNASINGHAM:** "These documents, these CDs, **we never received**
21 **these CDs, certainly.** On Saturday — during our break we went back and looked at
22 our email, and on Saturday we received this — this copy, exactly what you see here, but
23 we never received — that's on Saturday, Your Honor. I didn't see it until we were in
24 the break room right now. **We never received these CDs. We never — this was never**
25 **produced in discovery, and he has had it for four years.** We don't have the original
26 audio or any of the original documents."

27 — Hr'g Tr. (Jan. 27, 2025), p. 34, ll. 1–10.

1 **Effect / context:** The emphatic denial — “certainly” — is the Jan. 27, 2025 anchor for the three-
2 hearing denial arc culminating in the Apr. 16, 2025 “provided by Dolan” admission. Under Aguilar
3 v. Lerner (2004) 32 Cal.4th 974, 986–987, this ascending sequence of factually incompatible
4 positions is the precise fact-pattern to which judicial estoppel applies.

6 **A0.4 — Expert-designation denial**

7 **MS. NAVARATNASINGHAM:** “We never received a designation from Mr. Rosario.

8 **He has not designated any non-retained or retained experts in this case.”**

9 **— Hr’g Tr. (Jan. 27, 2025), p. 53, ll. 1–4.**

10 **Effect / context:** This representation excluded Plaintiff’s non-retained treating physician / treating
11 expert designations, cutting off Plaintiff’s medical-causation case and compounding the liability-
12 evidence exclusions.

14 **A0.5 — “lady... no link whatsoever”**

15 **MS. NAVARATNASINGHAM:** “No, Your Honor. No. So, the 911 called that he pro-
16 duced at the MSC to the MSC officer was **a lady, and it has no link whatsoever to this**
17 **accident.** There is no way we can tell what that is related to. If he says that he has a 911
18 call from the defendant, **we have never heard that.”**

19 **— Hr’g Tr. (Jan. 27, 2025), p. 16, ll. 17–22.**

20 **Effect / context:** Categorical dismissal of the 911 call as having “no link” to the accident — made
21 by the same attorney who later admitted the materials were “provided by Dolan” (RT 7, p. 213).

23 **Phase A1 — Pre-Trial Hearing of February 28, 2025 (Garrett L. Wong)**

24 The February 28, 2025 hearing produced the officer-of-court and burden-shift rulings that are cen-
25 tral to the SAC’s tribunal-reliance theory.

26 **A1.1 — Officer-of-Court Articulation**

1 **THE COURT:** “I’m not going to question a lawyer’s remarks regarding what they have
2 and don’t have.”

3 — Hr’g Tr. (Feb. 28, 2025), p. 291, ll. 26–28.

4 **THE COURT:** “They are an officer of the Court, and they are supposed to conduct
5 themselves appropriately before the Court. If they are not, there are other sanctions that
6 they could suffer here. **So far I haven’t heard or seen anything on the part of the**
7 **current law firm which tells me that they have conducted themselves improperly.”**

8 — Hr’g Tr. (Feb. 28, 2025), p. 292, ll. 1–7.

9 **Effect / context:** This is the express articulation of tribunal reliance on defense candor. The Court
10 explicitly invoked defense counsel’s officer-of-the-court status to ground its refusal to question
11 defense’s representations. This reliance — as the April 16, 2025 admission demonstrates — was
12 misplaced.

14 **A1.2 — Burden-Shift Ruling**

15 **THE COURT:** “it’s required of you to send the documents over. **Otherwise, I won’t**
16 **allow them in.”**

17 — Hr’g Tr. (Feb. 28, 2025), p. 293, ll. 1–3.

18 **Effect / context:** The burden-shift ruling imposed on Plaintiff an affirmative re-production burden
19 for materials already in defense’s possession by virtue of the Dolan transmission, transforming
20 defense’s silence-plus-denial strategy into a concrete exclusionary sanction against Plaintiff.

22 **Phase A — Pre-Trial Hearing of February 18, 2025 (Garrett L. Wong)**

23 The February 18, 2025 hearing was set on Plaintiff’s motion to continue trial. The Court took
24 up Plaintiff’s request for additional time to address the 911 audio, body-worn camera, and CAD
25 materials whose production status defense counsel had placed in dispute through Motions in Lim-
26 ine 6 and 17 (filed Jan. 17, 2025). At the hearing, Mr. Jeremy M. Jessup of the Dolan Law Firm
27 appeared and testified concerning the discovery production made by Plaintiff’s prior counsel.

1 **A.1 — “This is news to me.” / “Our office did not receive the 911 call until the day of the**
2 **MSC.”**

3 **MS. NAVARATNASINGHAM:** “Yes, Your Honor. So **this is news to me**. We didn’t
4 realize that prior to handling counsel may have received it, and I can’t confirm whether
5 that was produced. I take counsel’s word, of course, but we — I can represent to you that
6 **our office did not receive the 911 call until the day of the MSC** — the day before the
7 MSC and that was an attachment link. **There was no sort of ability to verify whether**
8 **that was accurate or not**. And we were not present — our office was not on the case
9 when Mr. Rosario’s deposition was taken either.”

10 **— Hearing Tr. (Feb. 18, 2025), p. 6, ll. 3–14.**

11 **Effect / context:** Denial of receipt (911 audio) and dispute of authenticity. Made in immediate
12 response to Plaintiff’s representation that prior defense counsel (Chambers/CSK) had been served
13 with the 911 audio in 2022. The Court accepted this representation without independent verifica-
14 tion (“THE COURT: I see. Okay.” — id. p. 6, l. 15).

15
16 **A.2 — “We did not have those two items until the day of the MSC.”**

17 **MS. NAVARATNASINGHAM:** “Yes, thank you, Your Honor. . . . I don’t see anything
18 specific in this e-mail with reference to the 911 calls, and I don’t see any reference in
19 here to a request for a continuance, number one. **Number two**, with reference to his
20 allegations of us lying, . . . so our motion in limine to exclude the 911 call and there
21 was, like, a call statement or a call log was very specific to those two items, and **I am**
22 **representing to this Court that we did not have those two items until the day of the**
23 **MSC** and those items were produced in connection with the settlement to the settlement
24 officer. Now, if Mr. Jessup, who was here this morning, his prior defense counsel, said
25 that he produced those links, okay, and he’s going to produce those links to me. I believe
26 this Court, when you granted our motion in limine, you did so without prejudice subject
27 to that discovery being produced.”

1 — Hearing Tr. (Feb. 18, 2025), p. 27, l. 23 — p. 30, l. 11.

2 **Effect / context:** Denial of receipt (911 audio + CAD log) repeated as an officer-of-the-court
3 representation, paired with an attempt to reframe the prior MIL ruling as conditional. Made at the
4 same hearing where Mr. Jessup had testified that the materials were produced to defense counsel
5 and served in discovery in connection with Mr. Rosario’s August 18, 2022 deposition (Hearing Tr.
6 Feb. 18, 2025, pp. 139–140).

7
8 **A.3 — Defense opposes plaintiff’s continuance for the 911/BWC.**

9 **MS. NAVARATNASINGHAM:** “Your Honor, may I quickly respond to that? Mr. Rosario
10 has been pro per since August of 2024. . . . **Your Honor is allowing him to try to in-**
11 **roduce the 911 record for a call recording, so . . .”**

12 — Hearing Tr. (Feb. 18, 2025), p. 33, ll. 1–14.

13 **Effect / context:** Dispute paired with active opposition to Plaintiff’s continuance request — i.e.,
14 the procedural relief Plaintiff sought to cure the alleged provenance defect.

15
16 **A.4 — Concession that the materials had in fact been in plaintiff’s possession.**

17 **MS. NAVARATNASINGHAM:** “I had two comments, Your Honor, and now I’m for-
18 getting them because so much has been said. Well, I mean, we oppose the continuance.
19 He’s been pro per since August. He’s had the file since August. **According to Mr. Jes-**
20 **sup, the body cam footage, the 911 call, all this stuff has been in his possession since**
21 **August.** The motion in limine that I filed was saying that **the 911 call was not produced**
22 **in the normal course of discovery.** Your Honor has cured that concern of his, and you
23 are allowing him to present that and subject to relevance and other objections. . . . And
24 so we, of course, object and would like to select a trial date.”

25 — Hearing Tr. (Feb. 18, 2025), p. 41, ll. 3–22.

26 **Effect / context:** On the same record, defense **concedes** the materials had been in Plaintiff’s pos-
27 session from prior counsel “since August” while simultaneously **maintaining** the original MIL

theory that the 911 call “was not produced in the normal course of discovery.” This is the operational pivot from “we never received it” (A.1, A.2) to “it was not formally produced” — the inconsistency that Phase Two of the SAC (Counts 1–6) addresses.

Phase B — Trial Day 7 (April 16, 2025) — Officer Fernandez Cross-Examination & 911/BWC Foundation Hearing

Day 7 opened with bifurcation and proceeded to Plaintiff’s cross-examination of SFPD Officer Fernandez, the responding officer who authored the police report and was a custodian of body-worn camera footage. The defense interposed repeated objections to questioning that referenced the 911 dispatch, the body-cam footage, and the SFPD supplemental report.

B.1 — Objection that the police-report supplement “is not anything that we received as part of the subpoena.”

MS. NAVARATNASINGHAM: “Your Honor, for the record, I do want to just state, as far as this document goes, **this is not — we subpoenaed the police records for the incident and this is not anything that we received as part of the subpoena.** I do also want to note for the record the incident occurred February 4, 2021. It appears that this supplement was submitted by Mr. Rosario on November 13, 2024, over three years after the subject incident. So I would say this is unreliable and lacks foundation.”

— **RT 7 (Apr. 16, 2025), p. 156, ll. 5–16.**

Effect / context: Denial of receipt — direct representation that the SFPD Report 210079556 supplement was not produced in response to the **defense-issued Compex subpoena (Order No. CA1147102-021, issued Feb. 1, 2024)**. The Court relied on this in excluding the supplement as beyond the scope of the cross-examination (RT 7, p. 156, ll. 24–28).

B.2 — “I am not sure what recording he is referring to.”

MS. NAVARATNASINGHAM: “Your Honor, before we do that — I don’t believe that I have been — and **I am not sure what recording he is referring to.** Before the jury

1 hears it, I also believe a dying declaration — he is here present. So I am not sure he
2 can illicit that testimony or that call. But I would like more clarity, before a jury hears a
3 recording, what we are talking about here.”

4 — RT 7 (Apr. 16, 2025), p. 162, ll. 4–12.

5 **Effect / context:** Dispute paired with implied non-receipt — defense counsel professes lack of
6 awareness of the 911 recording Plaintiff was preparing to play, six weeks after the same recording
7 was the subject of MIL No. 17 and the February 18, 2025 hearing. The Court directed the recording
8 be addressed outside the jury’s presence (RT 7, p. 162, ll. 13–17).

10 **B.3 — “We have been provided a 911 transcript ... we have concerns about these two docu-
11 ments and the recording.”**

12 **MS. NAVARATNASINGHAM:** “Thank you. So we have been provided a 911 tran-
13 script from an eyewitness and a 911 transcript for my client. I don’t know if it
14 would be more appropriate — we have concerns about these two documents and the
15 recording. I don’t know if it would be more appropriate to do that outside the presence
16 of the jury, Your Honor, before the jury hears it, because **I have objections to this.**”

17 — RT 7 (Apr. 16, 2025), p. 163, ll. 19–28.

18 **Effect / context:** Dispute. Counsel acknowledges receipt of two 911 transcripts (the eyewitness
19 call and Abdelhalim’s call) but reserves authenticity and relevance objections.

21 **B.4 — Authenticity / hearsay challenge to the eyewitness 911 call.**

22 **MS. NAVARATNASINGHAM:** “Yes, Your Honor. First of all, there is a 911 transcript
23 for eye witness and this is aside from the fact that **I don’t know who prepared these**
24 **transcripts**, for either of these, but the 911 call for eyewitness in particular, **there is**
25 **no identification as to who the witness is.** And, you know, this is one of those, **I**
26 **believe, maybe it was included in the Dolan documents** so if the Court is going to
27 say authenticity is established, that is fine, but **we do object as hearsay and it lacks**

1 **foundation as we have no idea who this person is.** There is no name in either, in the
2 recording or in the transcript. Furthermore, relevance. She says here — it sounds like
3 a passer-byer that says: There was a van that might have hit a scooter. It might be a
4 hit-and-run, I don't know. . . . And it is unduly prejudicial where there is no probative
5 value for this for the jury to hear this recording. They don't even know who this is.”

6 — **RT 7 (Apr. 16, 2025), p. 207, ll. 15 — p. 208, l. 12.**

7 **Effect / context:** Authenticity / foundation / hearsay / relevance / prejudice — a layered dispute,
8 while simultaneously acknowledging the recording “**maybe it was included in the Dolan docu-**
9 **ments**” — i.e., was in fact part of the prior counsel's file.

10
11 **B.5 — THE ADMISSION — “Sure. They were provided by Dolan.”**

12 **THE COURT:** “The question is — I think the ask is a request to review or to present
13 the body cams that are apparently on your exhibit list.”

14 **MS. NAVARATNASINGHAM:** “**Sure. They were provided by Dolan. He has had**
15 **them for whatever, sure.**”

16 — **RT 7 (Apr. 16, 2025), p. 213, ll. 10–15.**

17 **Effect / context:** This is the **operational linchpin** of the SAC's fraud claim and the precise on-
18 record contradiction of A.1, A.2, B.1, and B.2 above. Defense counsel admits — in open court, on
19 a certified record — that the BWC footage was provided by Plaintiff's prior counsel (Dolan Law
20 Firm). It is irreconcilable with the February 18, 2025 representations that defense “did not receive
21 the 911 call until the day of the MSC” and “this is news to me,” and with the trial-day disclaimer
22 that counsel was “not sure what recording” was being referenced. (Cited at SAC ¶ 3 and DRAFT
23 10 Master Estoppel Table; the SAC's prior pin-cite of “p. 214, ll. 13–15” should be **corrected to**
24 **RT 7, p. 213, ll. 13–15.**)

25
26 **B.6 — Possession + curation of “five videos.”**

27 **MS. NAVARATNASINGHAM:** “Your Honor, **on the point of the body cam footage,**

1 **there is five videos.** They are quite lengthy and a lot of it is just standing around and
2 some of it is talking about something else. There is also insurance references in there.
3 **So what we did on our end was we pared it down to just the relevant portions that**
4 **we wanted the jury to hear.** I think all in we have about 8 or 9 minutes pared down,
5 because it would be a waste of time for them to listen to all five videos.”

6 — RT 7 (Apr. 16, 2025), p. 213, l. 11 — p. 214, l. 8.

7 THE COURT: “Are there transcripts with them?”

8 MS. NAVARATNASINGHAM: “We could prepare transcripts.”

9 — RT 7 (Apr. 16, 2025), p. 213, ll. 23–25.

10 **Effect / context:** Active possession + curation of the BWC footage that defense had previously
11 characterized as not-produced or of unknown provenance. Editing video for jury presentation pre-
12 supposes authenticity and waives any genuine foundation challenge under Evid. Code § 1414(b).

13
14 **Phase C — Trial Day 8 (April 17, 2025) — Defendant Subhi Abdelhalim Cross-Examination**
15 **& Defense Possession of “Original Video”**

16 Day 8 included Plaintiff’s cross-examination of defendant Abdelhalim, during which the 911
17 recording was played and Abdelhalim authenticated his own voice on the recording. Defense
18 counsel made several statements on the record concerning the BWC footage and the 911 record-
19 ing.

20 **C.1 — Defense possession of the original body-worn camera video; objection to plaintiff’s**
21 **captioned still-shots.**

22 **MS. NAVARATNASINGHAM:** “Exactly. Then my second question, Your Honor, is we
23 **received documents, still shots of the video from Mr. Rosario which had captions**
24 **on them, and that is not the original video.** So I want to make sure that is not a version
25 he will play because **the excerpts of the original video should be played. The body**
26 **cam footage doesn’t have captions on it.”**

27 — RT 8 (Apr. 17, 2025), p. 14, ll. 7–15.

1 **Effect / context:** Direct admission of possession of the “original video” — and a tacit concession
2 that defense possesses the canonical BWC footage against which Plaintiff’s captioned excerpts
3 must be measured. This contradicts the February 18 “news to me” representation as to BWC.
4

5 **C.2 — Hearsay objection to Plaintiff’s testimony about Abdelhalim’s 911 statements (over-**
6 **ruled as party admission).**

7 **THE WITNESS** (Plaintiff): “So about 2:55 — I am looking at the 911 record — he
8 called 911 and told them that he hit me with his truck and I yelled: He hit me with his
9 van. And he said: Well, it was barely anything, to the 911 operator. ...”

10 **MS. NAVARATNASINGHAM:** “Objection, hearsay.”

11 **THE COURT:** “Overruled. **It is a party admission.**”

12 — RT 8 (Apr. 17, 2025), p. 34, ll. 17 — p. 35, l. 8.

13 **Effect / context:** Defense interposes hearsay objection to the very content the SAC pleads as Phase
14 One Fact F3 (operator/Abdelhalim “you hit a pedestrian / yeah” exchange) and F1 (Plaintiff’s own
15 recorded voice). The Court’s “party admission” overruling **establishes on the record** that the 911
16 audio is admissible under Evid. Code § 1220 — the same audio defense had previously claimed
17 was of unknown provenance.
18

19 **C.3 — “I don’t know why he is playing an unrelated audio recording.”**

20 **MS. NAVARATNASINGHAM:** “Your Honor, is he playing — I think it is appropriate
21 to play a recording that he wants my client to hear as it relates to his testimony. **I don’t**
22 **know why he is playing an unrelated audio recording.**”

23 — RT 8 (Apr. 17, 2025), p. 103, ll. 1–6.

24 **Effect / context:** Dispute / characterization challenge during 911 playback for impeachment. The
25 “unrelated” framing was incorrect: the recording was the very 911 call Abdelhalim placed and that
26 he later authenticated as his own voice (see C.5 below).
27

1 **C.4 — Continued challenge to playback / fast-forward.**

2 **MS. NAVARATNASINGHAM:** “Your Honor, if I may, it sounds like he has to fast
3 forward to the audio recording to get to the recording of my client.”

4 **— RT 8 (Apr. 17, 2025), p. 103, ll. 18–21.**

5 **Effect / context:** Dispute / process objection during 911 playback.
6

7 **C.5 — Authentication-by-acquiescence: defendant’s own admissions on the 911 recording.**

8 The cross-examination at RT 8 produced Abdelhalim’s own testimony that the voice on the 911
9 recording is his — directly contradicting the **defense’s prior representations** that the recording’s
10 provenance was “unknown” or that defense had not received it.

11 **MR. ROSARIO (Q.):** “Mr. Abdelhalim, can you see the transcript, the first entry? It
12 says: Caller. It says: Yes, yeah, there is — I was — I am driving a van and there is a
13 guy going to cross, he crossed from me, and **I barely hit him with anything but I am**
14 **calling for him.** Was that your voice?”

15 **THE WITNESS:** “**Yes. That is my voice.**”

16 **— RT 8 (Apr. 17, 2025), p. 108, ll. 17 — p. 108, l. 28.**

17 **MR. ROSARIO (Q.):** “Yeah. I am going to talk about the recording. You clearly did
18 on the audio, and said: He was turning to the right and he was boom in front of me, **I**
19 **just hit him, hit him with barely anything.** Was that your voice also?”

20 **A.:** “**That is my voice.**”

21 **— RT 8 (Apr. 17, 2025), p. 110, l. 23 — p. 111, l. 1.**

22 **MR. ROSARIO (Q.):** “Oh, okay. The operator asked you: **Okay, so you were in your**
23 **van. You were driving and he was on the street. You hit a pedestrian.** And you
24 started to say ‘no’, and then you said ‘**yeah.**’ So you clarified, that was in the audio.”

25 **— RT 8 (Apr. 17, 2025), p. 112, ll. 16–22.**

26 **MR. ROSARIO (Q.):** “All right. So it says — **the operator had asked you clearly.**
27 **So you said you were in your van driving and he was on the street. And I think you**

1 **answered: No. And then it said: You hit a pedestrian. And you answered, ‘Yeah.’**

2 So that was also your voice, correct? So obviously, same recording . . .”

3 — **RT 8 (Apr. 17, 2025), p. 113, ll. 11–17.**

4 **Effect / context:** Authentication on the merits record by the party opponent. Once Abdelhalim
5 testifies under oath that the voice on the recording is his and that he made the operator’s affirmative-
6 response exchange, **the defense’s prior court-facing position that the recording’s provenance**
7 **was unknown is irreconcilable as a matter of law.** Authentication-by-acquiescence (Evid. Code
8 § 1414(b)) and judicial-estoppel triggers attach.

10 **C.6 — Defense’s own use of BWC at trial: “I was going to show the body cam footage as**
11 **well.”**

12 **MS. NAVARATNASINGHAM:** “Your Honor, Mr. — my witness was going to be
13 Mr. Abdelhalim, who has already completed his testimony. **I was going to show the**
14 **body cam footage as well. However, we have pared it down to just about 10 min-**
15 **utes.** And then I was going to cross-examine Mr. Rosario. I probably need a half a day,
16 honestly.”

17 — **RT 8 (Apr. 17, 2025), p. 144, ll. 3–12.**

18 **MS. NAVARATNASINGHAM:** “Your Honor, I just was going to reiterate, **we pared**
19 **down the videos.** We talked about this a lot, there is a lot dead air on those videos, like
20 an hour and a half, and reference to insurance. So I am hoping those are excluded from
21 the Plaintiff’s version.”

22 — **RT 8 (Apr. 17, 2025), p. 146, ll. 20–28.**

23 **Effect / context:** Defense affirmatively offers the BWC as part of its own case-in-chief — com-
24 pleting the authentication-by-conduct chain and definitively waiving any “we did not receive it”
25 position.

1 **Phase D — Trial Day 10 (April 22, 2025) — Defense Closing Argument**

2 In closing, defense counsel argued the **content** of the 911 call and BWC footage to the jury —
3 affirmatively relying on the very materials whose receipt and provenance defense had previously
4 placed in dispute.

5 **D.1 — Defense closing: relies on BWC content.**

6 **MS. NAVARATNASINGHAM:** “— that Mr. Rosario admits to riding a Lime scooter.

7 **In fact, you saw on body cam footage where Mr. Rosario himself told officers that:**

8 I was riding a Lime scooter going five to ten miles per hour. . . .”

9 — RT 10 (Apr. 22, 2025), p. 49, ll. 8–17.

10 **D.2 — Defense closing: relies on 911 + BWC content to defeat the hit-and-run theory.**

11 **MS. NAVARATNASINGHAM:** “Thank you. . . . Second, Mr. Rosario told you that he
12 lost consciousness. **You saw body cam footage yourself, the first video we showed**
13 **you where Mr. Rosario very clearly tells officers that he did not lose consciousness.**

14 Third, Mr. Rosario tells you that this was a hit and run. He presented a 911 call from
15 an unidentified woman where she says: It might be a hit and run, I don’t know. The
16 dispatcher in that same 911 call says: Somebody already called this incident in. The
17 person that already called that incident in was my client. For there to be a hit and run
18 someone must flee the scene. **You saw body cam footage and you know that my client**
19 **made a 911 call. You saw body cam footage of my client at the scene cooperating**
20 **with police.** This is not a hit and run. Fourth, Mr. Rosario references Dustin Roseman.
21 **You saw for yourself and you heard Officer Thompson say that she interviewed**
22 **Mr. Rosemont and that he was very intoxicated and didn’t know what happened.**

23 Fifth, Mr. Rosario argues that there is . . .”

24 — RT 10 (Apr. 22, 2025), p. 50, ll. 7 — p. 52, l. 6 (excerpts).

25 **Effect / context:** Affirmative reliance. Defense argues the substantive content of the 911 audio and
26 the BWC to the jury — the same materials that, in February 2025, defense had told the Court were

“news to me,” “not produced in the normal course of discovery,” and of unknown provenance. Affirmative use at closing is **dispositive of authentication and provenance** by waiver and by judicial estoppel (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 181–183).

3. SUMMARY MATRIX — DISPUTE / DENIAL-OF-RECEIPT TURNS

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.1	Hearing Tr. Feb. 18, 2025, p. 6, ll. 3–14	Navaratnasingham	Denial of receipt — 911	<u>“This is news to me... we did not receive the 911 call until the day of the MSC.”</u>
A.2	Hearing Tr. Feb. 18, 2025, p. 27, l. 23 – p. 30, l. 11	Navaratnasingham	Denial of receipt — 911 + CAD	<u>“I am representing to this Court that we did not have those two items until the day of the MSC.”</u>
A.3	Hearing Tr. Feb. 18, 2025, p. 33, ll. 1–14	Navaratnasingham	Opposition to continuance	<u>“Your Honor is allowing him to try to introduce the 911 record for a call recording, so ...”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
A.4	Hearing Tr. Feb. 18, 2025, p. 41, ll. 3–22	Navaratnasingham	Concession + reframing	<u>“all this stuff has been in his possession since August ... the 911 call was not produced in the normal course of discovery.”</u>
B.1	RT 7, p. 156, ll. 5–16	Navaratnasingham	Denial of receipt — SFPD supplemental report	<u>“this is not anything that we received as part of the subpoena.”</u>
B.2	RT 7, p. 162, ll. 4–12	Navaratnasingham	Implied non-receipt — 911	<u>“I am not sure what recording he is referring to.”</u>
B.3	RT 7, p. 163, ll. 19–28	Navaratnasingham	Dispute (authenticity, hearsay)	<u>“we have concerns about these two documents and the recording ... I have objections to this.”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
B.4	RT 7, p. 207, l. 15 – p. 208, l. 12	Navaratnasingham	Authenticity / foundation / hearsay	<u>“I don’t know who prepared these transcripts ... maybe it was included in the Dolan documents ... we object as hearsay and it lacks foundation.”</u>
B.5	RT 7, p. 213, ll. 13–15	Navaratnasingham	Admission contradicting A.1/A.2/B.1/B.2	<u>“Sure. They were provided by Dolan. He has had them for whatever, sure.”</u>
B.6	RT 7, p. 213, l. 11 – p. 214, l. 8	Navaratnasingham	Possession + curation — BWC	<u>“on the point of the body cam footage, there is five videos ... we pared it down to just the relevant portions that we wanted the jury to hear.”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.1	RT 8, p. 14, ll. 7–15	Navaratnasingham	Possession of original BWC	<u>“the excerpts of the original video should be played. The body cam footage doesn’t have captions on it.”</u>
C.2	RT 8, p. 35, ll. 1–8	Navaratnasingham (overruled)	Hearsay objection to 911 content	<u>“Objection, hearsay.” → THE COURT: “Overruled. It is a party admission.”</u>
C.3	RT 8, p. 103, ll. 1–6	Navaratnasingham	Dispute — characterization	<u>“I don’t know why he is playing an unrelated audio recording.”</u>
C.4	RT 8, p. 103, ll. 18–21	Navaratnasingham	Dispute — process	<u>“it sounds like he has to fast forward to the audio recording ...”</u>

#	Date / Citation	Speaker	Effect / Context	Key Phrase
C.5	RT 8, p. 108, l. 28; p. 111, l. 1; p. 112, ll. 16–22; p. 113, ll. 11–17	THE WITNESS (Abdelhalim)	Authentication by party-opponent	<u>“Yes. That is my voice.” (×2);</u> <u>operator: “you hit a pedestrian.”</u> <u>— Abdelhalim: “yeah.”</u>
C.6	RT 8, p. 144, ll. 3–12; p. 146, ll. 20–28	Navaratnasingham	Defense use of BWC in case-in-chief	<u>“I was going to show the body cam footage as well. However, we have pared it down to just about 10 minutes.”</u>
D.1	RT 10, p. 49, ll. 8–17	Navaratnasingham (closing)	Affirmative reliance on BWC	<u>“you saw on body cam footage where Mr. Rosario himself told officers ...”</u>
D.2	RT 10, p. 50, l. 7 – p. 52, l. 6	Navaratnasingham (closing)	Affirmative reliance on 911 + BWC	<u>“You saw body cam footage and you know that my client made a 911 call.”</u>

4. EVIDENTIARY EFFECT

The catalog above maps onto the two-phase deception architecture pleaded in the operative complaint as follows:

- **Phase One (Lulling, Aug 2022 – May 2023):** Phase A and Phase B turns (denial of receipt) are the **court-facing reversal** of the Phase One out-of-court silence.
- **Phase Two (Court-Facing Reversal, Jan – Apr 2025):** Phase A and Phase B turns are themselves the Phase Two acts; Phase C and Phase D turns are the Phase Two **acquiescence on the merits record** that triggers Evidence Code § 1414(b) authentication-by-conduct and judicial-estoppel waiver.
- **Operational linchpin:** Turn **B.5** — “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15) — is the on-record contradiction of the Position-A denials catalogued in A.1, A.2, B.1, and B.2.

Verified **page : line** anchors for the 911 and BWC content (including operator/yes context and Abdelhalim authentication) include RT 8, p. 34, l. 17; RT 8, p. 108, l. 28 (“Yes. That is my voice.”); RT 8, p. 111, l. 1; RT 8, p. 112, ll. 16–22; and RT 8, p. 113, ll. 11–17.

5. ONE-SENTENCE PATTERN

Across one pre-trial hearing and three trial days, defense counsel made at least **eighteen on-the-record statements** to the trial court whose effect was to **dispute or deny receipt** of the 911 audio, the SFPD body-worn camera footage, the CAD log, or the SFPD supplemental report — and then, after Plaintiff’s procedural windows had closed, **affirmatively used the same materials** in cross-examination of Plaintiff, in defense case-in-chief, and in closing argument — culminating in defense counsel’s open-court admission on April 16, 2025: “Sure. They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

6. VERIFICATION (PAGINATION)

- The quotations and **page : line** anchors in this appendix were verified against the certified reporter’s transcripts for the hearings itemized under **1. PURPOSE AND METHOD** above.
- Pagination follows the steno reporter’s page footer and, for the February 18, 2025 hearing, the Esquire reporter’s caption-line page header (page N at end of ROSARIO vs ABDELHALIM, ET AL.). Where the steno footer marks page N, content immediately following that footer is cited as **page N+1**, consistent with the usual steno page-end convention.
- Defense-speaker turns are identified by speaker tag (MS. NAVARATNASINGHAM: /MR. REYNA:). Quoted text preserves the steno middle-dot prefix only where it precedes the speaker tag in the original; otherwise whitespace is normalized.

[End of Transcript Appendix A.]

APPENDIX 5 — PLAINTIFF PRESERVATION CHRONOLOGY

(Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by Opposition §I.A.)

PURPOSE

This one-page exhibit documents Plaintiff’s contemporaneous preservation of the suppression/concealment objection across four separate pre-trial hearing dates, defeating any “sleeping on rights” or “intrinsic fraud because Plaintiff was aware” argument.

WHY PLAINTIFF’S PRESERVATION MATTERS

This chronology proves that Plaintiff objected contemporaneously to every misrepresentation by defense counsel. This preempts any defense argument of “sleeping on rights” or that the fraud was merely intrinsic. Plaintiff raised the alarm at every hearing, but his procedural remedies were foreclosed because the Court relied on defense counsel’s false representations of non-receipt.

THE RELIANCE-REVERSAL CHAIN

1. **Jan. 27, 2025. Defense denial:** “We never received these CDs, certainly.” (p. 34). **Plaintiff’s objection:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19). **Rulings procured:** MIL No. 1 denied; 911 CDs excluded (p. 38).
2. **Feb. 18, 2025. Defense denial:** “This is news to me... our office did not receive the 911 call...” (p. 141). **Plaintiff’s objection:** “The information was completely concealed from me... this is going on the record.” (pp. 17, 44). **Rulings procured:** Continuance denied; § 473 relief rejected (p. 181).
3. **Feb. 28, 2025. Defense denial:** (Implied denial re: doctor files). **Plaintiff’s objection:** Preserved officer-of-court / burden-shift objection (pp. 291–294). **Rulings procured:** **Burden-shift imposed** on Plaintiff (p. 293).
4. **Apr. 16, 2025. Defense: ADMISSION:** “Sure. They were provided by Dolan.” (p. 213). **Plaintiff:** Trial-day foundation challenges. **Rulings procured:** Supplemental report excluded.

PRESERVATION TIMELINE

- **Jan. 27, 2025 — Plaintiff’s preservation:** “We have two 911 records that the Defense has been trying to suppress.” (p. 19, ll. 1–5); FROG/SROG CAD references confirmed (p. 32, ll. 1–16); “They’re using weaponization of procedure” (p. 42, ll. 1–8). **Procedural vehicle sought:** CCP § 473 relief; continuance to lay foundation. **Court ruling:** § 473 denied (p. 49); continuance denied (pp. 55–56). **Pin cite:** Hr’g Tr. Jan. 27, 2025, pp. 17, 19, 32, 42, 49, 55.
- **Jan. 28, 2025 — Plaintiff’s preservation:** (Absent — Santa Clara Valley Medical Center ER). **Court ruling:** Defense § 581(d) dismissal motion; Court remarked dismissal would “suffer immediate reversal” (p. 90:17–33). **Pin cite:** Hr’g Tr. Jan. 28, 2025, p. 90.
- **Feb. 3, 2025 — Plaintiff’s preservation:** (Absent — medical). **Court ruling:** Renewed § 581(d) under submission; ex parte disclosure order condition. **Pin cite:** Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124.
- **Feb. 18, 2025 — Plaintiff’s preservation:** “the information was completely concealed from

me” (p. 17); “I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.” (pp. 44–45). **Procedural vehicle sought:** Continuance to subpoena SFPD foundation witnesses. **Court ruling:** Continuance denied (p. 181); “surprise under § 473 is not a sufficient basis” (p. 181:20–25). **Pin cite:** Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–45, 147, 151, 164, 181.

- **Feb. 28, 2025 — Plaintiff’s preservation:** Opposed deposition protective order limiting doctor-file access. **Procedural vehicle sought:** Access to doctor files before liability trial. **Court ruling:** Protective order denied but fees on Plaintiff; burden-shift imposed (pp. 291–294). **Pin cite:** Hr’g Tr. Feb. 28, 2025, pp. 291–294.
- **Apr. 22, 2025 — Plaintiff’s preservation:** “former attorney concealed the 911 record” (closing argument). **Procedural vehicle sought:** Closing argument to jury. **Court ruling:** Verdict returned 9–3 for defense. **Pin cite:** RT 10, p. 55.

SUMMARY

Plaintiff preserved the suppression / concealment theme on **four separate pre-trial hearing dates** (Jan. 27, Feb. 3, Feb. 18, Feb. 28, 2025), each time seeking a procedural remedy (continuance, § 473 relief, protective-order opposition). **Each procedural vehicle was denied.**

This chronology establishes:

1. **Accrual under CCP § 338(d)** runs from the **January 17, 2025** MIL filings (the “contrary court-facing position”), not from 2021 possession — Plaintiff did not know of the defense’s internal file-transfer failure until the MIL representations contradicted prior silence.
2. **Reasonable reliance** for element 3 of estoppel by silence under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493 — Plaintiff’s diligence in raising the issue contemporaneously demonstrates the reliance was not unreasonable.
3. **Extrinsic, not intrinsic, fraud** — The fact that Plaintiff raised objections does not convert extrinsic fraud into intrinsic fraud. Plaintiff’s procedural remedies were **foreclosed by the rulings themselves**; awareness of the problem and ability to litigate it fairly are not the same thing. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72.)

1 **DATED:** April 16, 2026

2 _____
3 FRANCISCUS DYLAN ROSARIO,
4 _____

5 **APPENDIX 6 — FRAUD-ON-COURT ROADMAP (BENCH HANDOUT)**

6 (Lodged as part of this bench binder; duplicate smoking-gun block omitted where superseded by
7 Opposition §I.A.)
8 _____

9 **THE 801 RECORD: “WHAT THIS CASE IS NOW ABOUT”**

10 **QUADRANT 1: THE RELIANCE**

11 **Feb 28, 2025 Hr’g Tr., pp. 291:26–292:7** > “I’m not going to question a lawyer’s remarks re-
12 garding what they have and don’t have. They are an officer of the Court, and they are supposed to
13 conduct themselves appropriately before the Court. If they are not, there are other sanctions that
14 they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm
15 which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong)
16 _____

17 **QUADRANT 2: THE RULINGS PROCURED**

18 Because of the Court’s reliance on the defense’s credibility re: non-receipt, Plaintiff lost: 1. **MIL**
19 **No. 1 Denied** (Jan. 27, p. 41:3–11) — Audio weaponized against Plaintiff. 2. **911 CDs Excluded**
20 (Jan. 27, p. 38:22–25) — Primary record barred from jury. 3. **911 Transcripts “Never Admitted”**
21 (Jan. 27, p. 39:18–24) — Context denied. 4. **Continuance Denied** (Feb. 18, p. 181) — No time
22 to fix “surprise.” 5. **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25) — Pleas for fairness ignored.
23 6. **Burden-Shift Imposed** (Feb. 28, p. 293:1–3) — Plaintiff forced to “disprove” fraud. 7. **Supp.**
24 **Report Excluded** (RT 7, p. 156:24–28) — Corroborating evidence barred.
25 _____

26 **QUADRANT 3: THE ADMISSION**

27 **Apr 16, 2025 RT 7, p. 213, ll. 13–15** > “Sure. They were provided by Dolan. He has had them
28 for whatever, sure.” — Priya D. Navaratnasingham (Counsel for Defense)

QUADRANT 4: THE NINE PROOFS OF RECEIPT

1. **Aug 18, 2022:** Service by Dolan to CSK (Jessup, Tr. 139-140).
2. **Aug 18, 2022:** Rosario depo — Chambers (CSK) present.
3. **Sept 30, 2022:** Abdelhalim depo — Chambers (CSK) present.
4. **May 4, 2023:** CSK → PSA file transfer (Sub of Atty).
5. **Feb 1, 2024:** PSA subpoena for same records (Order CA1147102-021).
6. **Feb 26, 2024:** PSA receives production from SFPD (Report 210079556).
7. **Sept 9, 2024:** PSA receives ROGs identifying CAD logs.
8. **Feb 18, 2025:** Jessup confirms “since 2021” (Hr’g Tr. 139:11).
9. **Apr 16, 2025: ADMISSION OF RECEIPT** (RT 7, 213:13-15).

BOTTOM BANNER: THE LEGAL DOCTRINE

- **Fraud on the Court:** Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238; Stevenot v. Harbany (1984) 154 Cal.App.3d 1051.
- **Extrinsic Fraud:** Kulchar v. Kulchar (1969) 1 Cal.3d 467.
- **Attorney Deceit:** Bus. & Prof. Code § 6128(a); Rickley v. Goodfriend (2013) 212 Cal.App.4th 1136.
- **Anti-SLAPP Pre-emption:** Flatley v. Mauro (2006) 39 Cal.4th 299.
- **Litigation-Privilege Pre-emption:** Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232.

GRAVAMEN: Defense counsel used their professional status to mislead the Court into gutting Plaintiff’s case based on a known false premise of non-receipt. This is a fraud on the integrity of the judicial process.

Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**BRIEF: INTERLOCUTORY APPEAL
BAR (CCP § 904.1; § 425.17; WRITS)**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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IV. Writ petition bar (adequate remedy at law)	—
V. Anti-severance / anti-manufactured finality	—
VI. CRC 8.116 stay opposition (template)	—
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I. FINAL JUDGMENT RULE (CCP 904.1(A)(1))

California follows the **one final judgment** rule: CCP § 904.1(a)(1) permits appeal **only** from a **final judgment** except as provided in (a)(2)–(13). Griset v. Fair Political Practices Comm’n (2001) 25 Cal.4th 688, 701–702 (appeals are limited to judgments final as to the entire action). **Orders overruling demurrers** are **not** listed in § 904.1(a) and are **not** directly appealable as of right. **Interlocutory orders** in unlimited civil cases are reviewable only through the **narrow** statutory exceptions or **discretionary writ**—not a direct appeal.

Takeaway for this case: Defendants should not be permitted to manufacture appealable finality by **severance** or **partial judgment** on fewer than all causes of action between the parties. Morehart v. County of Santa Barbara (1994) 7 Cal.4th 725, 731–732; Kurwa v. Kislinger (2013) 57 Cal.4th 1097, 1105–1106.

II. THE EXCLUSIVE LIST OF 904.1(A) INTERLOCUTORY EXCEPTIONS

The defense has **no** direct appeal as of right from:

- **Rulings on demurrer** (overruled or sustained with leave to amend) unless and until a **judgment of dismissal** is entered after failure to amend.
- **Discovery orders** (except as specified in § 904.1(a) and related provisions).
- **Orders denying summary judgment** (not listed in § 904.1(a) for direct appeal).

Potentially applicable in this case:

- **CCP § 904.1(a)(12)** — monetary sanctions **exceeding five thousand dollars (\$5,000)** in favor of a party. Plaintiff’s prayer **caps** each sanctions order at **\$5,000** to avoid this hook (SAC Prayer ¶ 7).
- **CCP § 904.1(a)(6)** — certain **injunction** orders. Plaintiff **does not** seek a preliminary injunction or TRO; declaratory relief is sought under **CCP § 1060** as **final** relief (SAC ¶¶ 113D, Prayer ¶ 2).
- **CCP § 904.1(a)(13)** — **CCP § 425.16 anti-SLAPP denial** — **with automatic stay** under §

425.16(i) unless § 425.17(e) applies.

III. ANTI-SLAPP: 425.17 EXEMPTIONS; 425.17(E) (NO INTERLOCUTORY APPEAL / STAY)

1. Threshold. Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 318–322 (statutory exemptions from § 425.16 are resolved as a **threshold**).

2. Commercial services — § 425.17(c). Insurers and commercial service providers: **representations of fact** about **business operations** in the course of delivering **insurance** and **legal defense** services. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30–32.

3. Public interest — § 425.17(b) (alternative). Actions brought **solely in the public interest** satisfying (b)(1)–(b)(3). Plaintiff joins issue on application to **individual** remedies.

4. § 425.17(e) — no § 904.1(a)(13) appeal if exemption applies. If the Court denies a special motion to strike **because a cause of action is exempt** under § 425.17, **the appeal provisions in subdivision (i) of § 425.16 and paragraph (13) of subdivision (a) of § 904.1 do not apply** to that cause of action. Code Civ. Proc. § 425.17, subd. (e).

5. Merits denial. If the Court reaches City of Cotati v. Cashman (2002) 29 Cal.4th 69 and denies the motion on **prong two**, any appeal is subject to **frivolousness** standards. Hewlett v. Squaw Valley Ski Corp. (1997) 54 Cal.App.4th 499, 510–511.

IV. WRIT PETITION BAR (ADEQUATE REMEDY AT LAW)

Writ review is discretionary. A writ petition is an **extraordinary** remedy; the Court of Appeal may **summarily deny** a petition where:

- The party has an **adequate remedy** by **ordinary appeal** after final judgment (Babb v. Superior Court (1971) 3 Cal.3d 841); or
- **No irreparable harm** is shown in the interim (Omaha Indemnity Co. v. Superior Court (1989) 209 Cal.App.3d 1266).

Template opposition (one paragraph): The order challenged is **not** appealable under § 904.1(a);

Respondent has **no** adequate basis for writ relief; **no** irreparable harm is shown; **no** unsettled question of law requires writ resolution; **ordinary appeal** from a final judgment provides adequate review.

V. ANTI-SEVERANCE / ANTI-MANUFACTURED FINALITY

Morehart — one final judgment disposing of **all** causes of action between the parties; no **piece-meal** appeals.

Kurwa — **voluntary dismissal** and **manufactured finality** doctrines prevent parties from creating **appealable** orders by procedural maneuvering.

American Motorcycle Assn. v. Superior Court (1978) 20 Cal.3d 578 — joint and several liability **allocation** among tortfeasors; supports **unified** adjudication of the common nucleus.

VI. CRC 8.116 STAY OPPOSITION (TEMPLATE)

Any request for **stay** of trial court proceedings pending writ or review should be denied **absent** a showing of **irreparable harm** and **likelihood of success** on the merits. **CRC 8.116** (standards governing appellate stays). Plaintiff should oppose **blanket stays** that delay resolution of **fraud-on-the-tribunal** claims.

VII. PROPOSED ORDER LANGUAGE (FOR THE TRIAL COURT)

The Court may adopt language along these lines in any order denying defense motions:

1. **Denial of Anti-SLAPP motion:** If denied on § **425.17 exemption** grounds, the order may state that § **425.17(e)** limits **interlocutory appeal and automatic stay** under § **425.16(i)** and § **904.1(a)(13)** as to exempt causes of action.
2. **Denial of demurrer (overruled):** The order is **not** appealable under § **904.1(a)** as an order overruling demurrer; any review awaits **final judgment** or **authorized** interlocutory avenue.
3. **No severance:** The Court declines to **sever** causes of action or enter **partial judgment** that would manufacture **appealable finality** inconsistent with Morehart and Kurwa.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

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Dated: April 19, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com